

A HISTORY OF THE
UNIVERSITY OF OXFORD

G. C. BRODRICK.

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THE UNIVERSITY OF OXFORD ***

Epochs of Church History

EDITED BY

MANDELL CREIGHTON, D.D., LL.D.

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THE

UNIVERSITY OF OXFORD

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BY THE
HON. G. C. BRODRICK, D.C.L.

WARDEN OF MERTON COLLEGE

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PREFACE.



The present volume is an attempt to present in a succinct form the history of an University which, however uncertain its origin, is among the oldest institutions in Europe. The result of such a task must needs fall very far short of perfection, and it is probably a just appreciation of its difficulties which has deterred abler historians from undertaking it. The voluminous remains of Anthony Wood contain a mine of precious records, but they are singularly ill-arranged, and his narrative breaks off long before the end of the seventeenth century. The great monograph of Father Denifle, now in course of publication, on the early history of European Universities, promises to be an exhaustive discussion of its subject; but its enormous bulk and unwieldy construction will repel most English readers, while it deals only with the rudimentary development of academical constitutions. The well-known compilation of Huber shows considerable research and grasp of the subject, but it follows no historical order, and is disfigured by much irrelevance and prejudice. The publications of the Oxford Historical Society have already placed documents hitherto scarcely accessible within the reach of ordinary students, but it will be long before the series can be completed. All these works, as well as the valuable 'Munimenta Academica' of Mr. Anstey, Professor Burrows' 'Visitors' Register,' and many other treatises of less note, have been freely consulted by me. I have also made use of the Merton College Register, which has been kept with few interruptions since the year 1482, and of other MSS. documents in the possession of my own College. But I have not thought it well to encumber the pages of so compendious a narrative with constant references to authorities. My principal aim has been to exhibit the various features and incidents of University history, age by age, in their due proportion; dwelling more upon broad and undisputed facts than upon comparatively obscure points which are the natural field of antiquarian speculation or criticism. Guided by a similar principle, I have not treated all periods of University history with equal detail. Thus, I have devoted a large share of space to the

period of the Civil Wars, during which the University played a great part in the national drama; while I have passed lightly over the reign of George III., when the University had not only lost all political importance, but had forfeited its reputation as a place of the highest education and learning. In the selection of topics from so vast a mass of materials, I have sought to preserve the continuity of events, so far as possible, rather than to produce a series of essays on special aspects of University life. I have deviated, however, from this method in one or two instances, such as the chapter on Oxford politics in the eighteenth century, and that on the Neo-Catholic Revival. In several of the earlier chapters, and in those on Oxford in the present century, I have borrowed the substance of passages from my own volume, 'Memorials of Merton College,' and from articles on recent University reforms contributed by myself to various periodicals. If I have succeeded in bringing within a single view the successive phases of development through which the University has passed in the course of seven hundred years, and in paving the way for a more comprehensive and detailed history, the object of this little volume will have been attained.

GEORGE C. BRODRICK.

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THE UNIVERSITY OF OXFORD.



CHAPTER I.

THE RISE OF THE UNIVERSITY.

Mythical origin of
the University

The University of Oxford has long ceased to claim the fabulous antiquity for which its mediæval champions had contended, as for an article of faith, and which found credit with so conscientious an historian as Anthony Wood. It is now admitted that nothing is certainly known of its origin, and that its alleged foundation by Alfred the Great rests upon a tradition which cannot be traced back to a period beyond the fourteenth century. There is no evidence whatever to show that any germ of a University, much less that any college, existed at Oxford in the reign of Alfred, who was born in the neighbouring town of Wantage. The very contrary may reasonably be inferred from the negative fact that Asser, in his contemporary biography of Alfred, makes no allusion to his supposed institution of ‘schools’ at Oxford, though he amply attests his paternal zeal for English education. The early chroniclers are, without exception, equally silent on the subject, which is noticed by no extant writer before the age of Edward III. In the next reign, the primary myth—for so we must regard it—was developed into a secondary myth, attributing to Alfred the foundation of University College, and this imaginary pretension was actually advanced by that college in the course of a lawsuit. Meanwhile, the simpler tradition of Alfred’s connection with the University Schools was repeated by author after author in days when the very nature of historical proof was unknown, and was reinforced in the sixteenth century by the insertion of a spurious passage into the work of Asser. It has been reserved for the present century to recognise the plain truth that we are entirely ignorant of the first stage in the growth of the University, and that its name is never mentioned in history before the Norman Conquest.

Early schools of
Oxford

The silence of Domesday Book respecting the University of Oxford must be taken as presumptive, though by no means conclusive, proof that it had no corporate existence at that date. Much learning has been spent in

speculations on its origin and primitive constitution, but these speculations have little support in any facts historically known to us before the Norman Conquest. It is more than probable, however, that Oxford was already a resort of students and a place of education. Having been a residence of Edmund Ironside, Canute, and Harold I., as well as the seat of several National Councils, it was now recognised as a provincial capital by the erection of its castle, embracing within it the Collegiate Church of St. George; while the number of its monastic establishments would naturally attract poor scholars from all parts of England. The earliest schools, not in England only but throughout Europe, were attached to monasteries or cathedrals; and, in the absence of any contrary evidence, analogy almost compels us to regard the Church as the foster-mother of the University. In the 'claustral' schools of St. Frideswide, and the houses in Oxford belonging to abbeys, such as those of Abingdon and Eynsham, we may discern the original seminaries of academical teaching—the first rudiments of the *Studium Generale*, afterwards developed into the *Universitas Literaria*. On the other hand, it is certain that, side by side with these claustral schools, secular or lay schools were gradually opened—some boarding-schools, mainly designed for the reception of boys from the country, others mere classrooms frequented by the students who lodged either in private dwellings or in public hostels. It appears that before long the secular outnumbered the claustral schools, and became centred in a particular quarter of the city, stretching northward from the west end of St. Mary's Church, afterwards known as School Street, and said to have existed in the year 1109. We may surmise with some confidence that in the infancy of the University its lecturers were almost exclusively clerks, but too often scholastic adventurers of mean attainments, whose lessons rose little above the barest elements of knowledge. But all theories of its rudimentary organisation are purely conjectural. 'The Schools of Oxford' first emerge into history in the next century, when they really attained a national celebrity, soon eclipsing those of Canterbury, Winchester, Peterborough, and others, which may have rivalled them in earlier times.

Intellectual revival
of the twelfth
century

The twelfth century, the golden age of feudalism and the Crusades, was also marked by a notable movement of thought and revival of speculative activity. The culture and science which had long found a home at Cordova now began to diffuse themselves over Western Europe, and the

works of Avicenna introduced a curious relish for Aristotle's 'Natural Philosophy,' which veiled itself in mysticism to escape ecclesiastical censure. The old scholastic *Trivium* of grammar, logic, and rhetoric, with the mathematical *Quadrivium*, comprising arithmetic, geometry, astronomy, and music, still constituted the magic circle of 'Arts' in the mediæval sense. But the 'sciences,' as they were then called, of physics, Roman law, and systematic theology, if not medicine, were now claiming a place in the curriculum of education; and valuable histories, in the form of chronicles, were compiled in several English monasteries. That age cannot be called intellectually barren which produced Lanfranc, Anselm, Abelard, Bernard, Peter the Lombard, Averroes, Gratian, and Maimonides. The University of Bologna, with its School of Law, opened by Irnerius under imperial patronage, was among the first fruits of this mediæval renaissance. The cultivation of Roman jurisprudence is usually dated from the discovery of a copy of the Pandects at the capture of Amalfi in 1135, but it cannot have been wholly unknown at an earlier period, since the religious orders had been forbidden by a Papal mandate to study it. The lectures of Irnerius, however, apparently preceding the capture of Amalfi, methodised and popularised the new learning, which spread rapidly through Western Europe.

Lectures of
Vacarius, and first
germs of the
University

There is historical evidence of Vacarius, a professor from Bologna, having commenced lectures in civil law at Oxford, under the patronage of Archbishop Theobald, about 1149, in the reign of Stephen, by whom they were prohibited for a while at the instance of teachers interested in philosophy and theology. This is the earliest well-ascertained event in the academical life of Oxford, but it may safely be inferred that if Vacarius came from Italy to lecture in the schools of Oxford, those schools had already attained something like a European reputation, and were fitted to become the germ of an University.^[1] We have the positive testimony of John of Salisbury, who had studied at Paris, that Oxford, just before the accession of Henry II., was engrossed by logical controversies about the nature of Universals. Yet this concourse of eager students apparently possessed no chartered rights. There is no sufficient ground for the assertion that Henry I. was educated at Oxford, and granted some important privileges to the so-called 'University;' but we know that he lived much both at Oxford and at Woodstock, that he built the palace of Beaumont on

the north of the city, and that he demised to its corporation the fee farm of the city for the annual rent of sixty-three pounds. Nor can it be proved, as it has been alleged, that, having sunk again to a low ebb under Stephen and Henry II., it was revived by the judicious patronage of Richard I., himself born at Beaumont. On the other hand, starting from the fact that the Oxford schools attracted a professor from Italy in the reign of Stephen, we are justified in believing that they could scarcely have escaped the notice of Henry I., who earned a name for scholarship in that unlettered era, and is said to have ‘pleased himself much with the conversation of clerks;’ or of Stephen, who twice held Councils at Oxford; or of Henry II., who, like his grandfather, constantly resided in the immediate neighbourhood. Without the encouragement of the Crown as well as of the Church, they could not have attained the position which they clearly occupied before the end of the twelfth century. By this time Oseney Abbey had been founded, and had annexed the church of St. George within the Castle. Both of these religious houses served as lodgings for young scholars, who contributed to swell the number of Oxford students. It is true that we have no trace of academical endowments, or of royal charters recognising the Oxford schools, in the twelfth century. But we are informed on good authority that Robert Pullen (or Pulleyne), author of the *Sententiarum Libri Octo*, and for some years a student at Paris, delivered regular courses of lectures on the Scriptures at Oxford some years before the visit of Vacarius. More than a generation later, in the year 1186 or 1187, Giraldus Cambrensis, having been despatched to Ireland by Henry II. as companion of Prince John, publicly read at Oxford his work on the Topography of Ireland. According to his own account, ‘not willing to hide his candle under a bushel, but to place it on a candlestick, that it might give light to all, he resolved to read it publicly at Oxford, where the most learned and famous of the English clergy were at that time to be found.’ These recitations lasted three successive days, and the lecturer has left it on record that he feasted not only ‘all the doctors of the different faculties and such of their pupils as were of fame and note,’ but ‘the rest of the scholars,’ with many burgesses and even the poor of the city. Whether or not the schools thus frequented at Oxford were mainly founded by the Benedictines, as has been maintained, and whether or not they were mainly conducted by teachers from Paris, they assuredly existed, and constituted an University in all but the name.

Connection of
Oxford with the
University of Paris

It is no longer doubtful that, in their earliest stage, the schools of Oxford owed much to those of Paris, then in a far more advanced state of development, though not formally incorporated into an 'University' until early in the thirteenth century. William of Champeaux had opened a school of logic at Paris so far back as 1109. His pupil, Abelard, followed him; and the fame of Abelard himself was far surpassed by that of Peter Lombard, whose text-book of 'Sentences' became the philosophical Bible of the Middle Ages. Students flocked in from all parts of Europe; lectures multiplied, not only in one faculty, as at Bologna or Salerno, but in every branch of mediæval study, especially in those comprised under 'Arts;' a system of exercises, degrees, academical discipline, and even college life, was gradually matured; and when Philip Augustus gave the new academical guild his royal approval, it was already in a condition of vigorous activity. In this sense, the growth of the University of Paris was spontaneous. Like that of Oxford, it was originally nothing but an association of teachers united by mutual interest; but, like all mediæval institutions, it grew up under Church authority. It had originally sprung from the cathedral school of Notre-Dame; the ecclesiastical chancellor of Paris claimed a paramount jurisdiction over it, which, however, was constantly resisted by the University, not without support from the Court of Rome; and the validity of its highest degrees was derived from the sanction of the Pope himself. Considering the links which bound England to France, through Normandy and her other French provinces, as well as the intellectual ascendancy of Paris over Western Europe, it is natural that Oxford should have borrowed many features of her internal regulations from this source, though it cannot be affirmed with certainty that she did so. The presumption is strongly confirmed by the undoubted fact that the 'English nation' was one of the four 'nations' into which the students of Paris were divided, the Normans forming another distinct nation by themselves. Leland tells us that young Englishmen who then aspired to a high education got their schooling, as we should call it, at Oxford, but their college training at Paris, and Anthony Wood gives a list of eminent Oxonians who had studied at Paris, including the names of Giraldus Cambrensis, Robert Pulleyne, Robert Grosteste, Roger Bacon, and Stephen Langton. If this be so, it was inevitable that, on their return, they should bring home with them ideas based on their experience of Paris, which might thus gradually become a model of academical organisation for

Oxford. In the year 1229, a fresh link of connection with the great French University was created by a large immigration of Parisian students. The immediate cause of this immigration was an outbreak of hostility between the scholars and citizens of Paris, like those which so constantly recurred between the same parties at Oxford. Henry III. had the foresight to seize this opportunity of reinforcing his own University, and among the many students who came from Paris to Oxford on his invitation were several of his own subjects who had gone abroad for their education.

Recognition of the scholars by the Papal Legate after the riot of 1209

At all events, at the beginning of the thirteenth century, we find at Oxford an academical body singularly like that long established at Paris, and exhibiting almost equal vitality. In one respect, indeed, its position was still more independent; for, whereas at Paris the University was overshadowed by a Royal Court with all the great dignitaries of the French Church and State, at Oxford the University authorities had no competitors but the corporation of the city. Moreover, while at Paris there was a resident chancellor of Notre-Dame, ever ready to assert his authority, there was no episcopal see of Oxford; the diocesan lived at a safe distance, and the archdeacon was the highest resident functionary of the Church. About the beginning of the thirteenth century, Edmund Rich, afterwards archbishop of Canterbury, and Robert Grosteste, afterwards bishop of Lincoln, became pioneers of Aristotelian study in Oxford, and were among the earliest graduates in divinity, a faculty then in its infancy. In the year 1214 we come upon more solid ground in a documentary record preserved in the archives of the University. This record, in the shape of a letter from the Papal Legate, refers to an important incident which had occurred five years before, in 1209, when three students had been seized and hanged by a mob of townspeople, with the mayor and burgesses at their head, in revenge for the death of a woman accidentally killed by another student. In consequence of this outrage, said to have been countenanced by King John, the city was laid under an interdict by the Pope, who issued a prohibition against lecturing in Oxford, and the great body of students migrated to Cambridge, Reading, or elsewhere. The letter of the Papal Legate, reciting the submission of the burgesses to his authority, and his disposition to deal mercifully with them, proceeds to impose upon them certain penalties. One of these is the remission of half the fixed rent payable for halls tenanted by scholars, for a period of ten

years. Another is the payment of fifty-two shillings yearly for the support of poor scholars, and the obligation to feast one hundred poor scholars every year on St. Nicholas's Day. They are also to swear that, in future, they will furnish the scholars with provisions at a just and reasonable price; and that if they shall arrest a clerk they shall deliver him up, upon due requisition from the bishop of Lincoln or the archdeacon of Oxford, or his official, or the chancellor, or 'him whom the bishop of Lincoln shall have deputed to this office.' This oath is to be repeated yearly. All masters who continued to lecture after the retirement of scholars under Papal mandate are to be suspended from lecturing for three years. All townsmen convicted of participation in the original crime are to come, without shoes, hats, or cloaks, to the graves of the murdered 'clerks,' and are to give their bodies proper burial in a place to be solemnly chosen. Upon any default in the fulfilment of these conditions, the former sentence of excommunication is again to be enforced by the bishop of Lincoln.

Office of chancellor

It is to be observed that in this memorable document there is no mention of an 'University.' The members of the academical fraternity are called simply 'clerks' or 'scholars studying at Oxford.' It may further be inferred from the expressions respecting the chancellor, that no chancellor of the University existed distinct from the chancellor of the diocese, or, at least, that, if he existed, he was a nominee of the bishop of Lincoln. On the other hand, the scholars are recognised throughout as under the special protection of the Papal See, as well as under special jurisdiction of the bishop of Lincoln, afterwards to become *ex officio* Visitor of the University. It seems to follow that, while the University, as a corporation, was not yet fully constituted, such a corporation already existed in an inchoate state, and the schools of Oxford enjoyed a privileged status at the supreme court of Western Christendom. When they first became, in the legal sense, an 'University' under a chancellor of their own, is still a disputed question, though a seal has been engraved, supposed to be of about the year 1200, which bears the inscription, '*Sigillum Cancellarii et Universitatis Oxoniensis.*' Much learning has been expended on the origin of the chancellorship, and it will probably never be determined with certainty whether the earliest chancellors derived their authority exclusively from the bishop of Lincoln as diocesan, or were in the nature of elective rectors of the schools (*Rectores Scholarum*), whose election was confirmed by the bishop of

Lincoln. What is certain is that the acting head of the University was always entitled *Cancellarius* rather than *Rector Scholarum*, that from the beginning of Henry III.'s reign he is frequently mentioned under this official title, especially in the important charters of 1244 and 1255, and that by the middle of the thirteenth century he was treated as an independent representative of the University, while the official deputy of the bishop at the University was not the chancellor but the archdeacon of Oxford. At this period, then, we may regard the University as fully constituted, and the official list of chancellors begins in the year 1220, when three persons are mentioned as having filled the office, the last of whom is Robert Grosteste, afterwards the celebrated reforming bishop of Lincoln. From this epoch we may safely date the election of the chancellor by Convocation, though it long continued to be subject to confirmation by the diocesan. A century later (1322) the election was made biennial.

University chests,
and sources of
revenue in the
thirteenth century.
Rise of Halls

In the year 1219 the abbot and Convent of Eynsham took upon themselves the obligations laid upon the burgesses in 1214, so far as regarded the double provision for poor scholars. This agreement was carried out, yet the burgesses are still treated as liable in an ordinance issued, in 1240, by Robert Grosteste, then bishop of Lincoln, which provides for the regular application of the fund to its original purpose. This ordinance marks an important epoch in the growth of the University. The 'Frideswyde Chest,' and other chests formed on a like principle by successive benefactions for the relief of poor scholars, appear to have been the earliest form of corporate property held by the University. They continued to multiply up to the end of the fifteenth century, when they had reached the number of twenty-four at least, and are computed to have contained an aggregate sum of 2,000 marks, all of which might be in circulation on loan at the same time.^[2] It is very difficult to ascertain what other sources of revenue the University may have possessed in the first stage of its existence. In the next stage, its income seems to have been largely derived from academical fines and fees on graces, as well as from duties paid by masters keeping grammar-schools and principals of halls, into which the primitive boarding-schools were first transforming themselves. It is clear that, at this period, the great mass of students, not being inmates of religious houses, were lodged and boarded in these unendowed halls, mostly hired from the citizens by clerks, who in some

cases were not even graduates, but were regularly licensed by the chancellor or his commissary on September 9, and were subject to fixed rules of discipline laid down from time to time by the governing body of the University. How many of them may have been open in the middle of the thirteenth century is a question which cannot be answered. About seventy are specified by name in a list compiled nearly two centuries later, but we have no means of knowing how many ancient halls may have then become extinct, or how many new halls may have been founded. The evidence now in our possession does not enable us to identify more than about eighty as having ever existed, and it is certain that all these did not exist at any one time. Even if we suppose that several hundred students were housed in monastic buildings during the age preceding the foundation of colleges, and make a large allowance for those in private lodging-houses, we cannot estimate the whole number of University scholars at more than 2,000, or at the most 3,000. The loose statement of Richard of Armagh, so lightly repeated by Anthony Wood and others, that some 30,000 scholars were collected at Oxford in this age, not only rests upon no sure historical ground, but is utterly inconsistent with all that we know of the area covered by the city, and of the position occupied by the academical population.

Early University
charters

It is well known that Henry III. frequently visited Oxford for the purpose of holding councils or otherwise, and his relations with the University were constant. Amongst the letters and charters issued by him in regard to University affairs three are specially notable. One of these letters, dated 1238, was addressed to the mayor and burghers, directing them to inquire into the circumstances of a riot at Oseney Abbey between the servants of Otho, the Papal Legate, and a body of disorderly students. This riot led to a struggle, lasting a whole year, between the Legate and the University, supported by the English bishops, and especially by Robert Grosteste. The Legate was ultimately appeased by the public submission of the University representatives in London to his authority, whereupon he withdrew the interdict which he had laid upon the Oxford clerks, some of whom had retired to Northampton, and others, it is said, to Salisbury. Meanwhile the conflicts between the students and townspeople were incessant. In 1244, after a violent attack of gownsmen on the Jewry, the chancellor of the University was given by a royal writ exclusive cognisance of all pleas arising out of contracts relating to personalty, and in 1248 the 'mayor's

oath' of fidelity to the privileges of the University was imposed by letters patent. By a similar charter, granted in 1255 to the city of Oxford, these privileges are incidentally confirmed, for it is there provided that if a 'clerk' shall injure a townsman he shall be imprisoned until the chancellor shall claim him, while, if a townsman shall injure a clerk, he shall be imprisoned until he make satisfaction according to the judgment of the chancellor. Two years later (in 1257) the liberties of the University were defended against the bishop of Lincoln himself before the king at St. Albans, on the ground that Oxford was, after Paris, '*schola secunda ecclesiae*.'

FOOTNOTES:

[1] It is perhaps needless to observe that 'universitas' signifies a 'corporation' or guild, and implies no universality in the range of subjects taught, or *Universitas Facultatum*. 'Studium Generale' probably signifies a place of education open to all comers.

[2] See the Introduction to Anstey's *Munimenta Academica*, pp. xxxv. et sqq.

CHAPTER II.

THE EARLY COLLEGES.

Rise of Colleges

By far the most important event in the academical history of the thirteenth century was the foundation of University, Balliol, and Merton Colleges. The idea of secular colleges, it is true, was not wholly new. Harold's foundation at Waltham, afterwards converted into an abbey, was originally non-monastic, and designed to be a home for secular priests, but it was not an educational institution. There were colleges for the maintenance of poor scholars at Bologna; rather, however, in the nature of the Oxford halls. If the founders of the earliest Oxford college were indebted for their inspiration to any foreign source, they must have derived it from the great French University in Paris, of which the collegiate system already formed a distinctive feature. Not to speak of still more ancient colleges at Paris, either attached to monasteries or serving the purpose of mere lodging-houses, the Sorbonne, founded about 1250, furnishes a striking precedent for its Oxford successors, as an academical cloister specially planned for the education of the secular clergy. Nevertheless, there is no proof that its constitution was actually imitated or studied by the founder of any Oxford college, and there is one important difference between the Paris and Oxford colleges, that whereas the former were appropriated to special faculties, the latter welcomed students in all faculties. It is, therefore, by no means improbable that in the development of the college system, as in the original incorporation of schools into an academical body, like causes produced like results by independent processes at the French and English Universities.

Foundation of University and Balliol

The claim of University College to priority among Oxford colleges cannot be disputed, if the foundation of a college is to be dated from the earliest of the endowments afterwards appropriated to its support. It was in 1249 that William of Durham left by will a sum of 310 marks to the University of Oxford for the maintenance of ten or more Masters, being

natives of the county of Durham, in lodgings to be provided at Oxford out of this fund. Two houses in School Street, Oxford, and one in High Street, were purchased by the University before 1263, and were probably occupied by students. There was, however, no royal charter of incorporation, no provision for corporate self-government, or for the succession of fellows, no organised society, no distribution of powers or definition of duties. In a word, the institution founded by William of Durham was not a college, but an exhibition-fund to be administered by the University. It was not until 1292 that this scattered body of exhibitioners was consolidated into 'the Great Hall of the University,' as it was then called, under statutes which are a very meagre copy of those issued nearly thirty years earlier by Walter de Merton, and which, unlike his, were imposed, not by the founder, but by the University itself. Meanwhile, at some time between 1263 and 1268, John Balliol, of Barnard Castle, father of John Balliol, king of Scotland, provided similar exhibitions for poor scholars at Oxford. His intention was completed by his wife, Dervorguilla, who collected the recipients of his bounty into a single building on the present site of the college, increased the endowments so that it might support a body of sixteen exhibitioners with a yearly stipend of twenty-seven marks apiece, and in 1282 issued statutes regulating the new foundation, but fully conceding the principle of self-government.

Foundation of
Merton College

In the meantime Merton College had been founded on a far larger scale, and had received statutes which, viewed across the interval of six centuries, astonish us by their comprehensive wisdom and foresight. As an institution for the promotion of academical education under collegiate discipline but secular guidance, it was the expression of a conception entirely new in England, which deserves special consideration, inasmuch as it became the model of all other collegiate foundations, and determined the future constitution of both the English Universities. In this sense, Merton College is entitled to something more than precedence, for its founder was the real founder of the English college-system.

Merton College,
Statutes of, 1274

The oldest foundation charter of Merton College, issued in 1264, was itself the development of still earlier schemes for the support of poor scholars, *in scholis degentes*. It established an endowed 'House of the scholars of Merton' at Malden, in Surrey, under a warden or bailiffs, with two or three 'ministers

of the altar.' Out of the estates assigned to this collegiate house were to be maintained a body of twenty students in a hall or lodging at Oxford, or elsewhere, if a more flourishing *studium generale* should elsewhere be instituted. In 1274, Walter de Merton, having greatly expanded his first design, put forth his final statutes, transferring the warden, bailiffs, and ministers of the altar, from Malden to Oxford, and designating Oxford as the exclusive and permanent home of the scholars. These statutes, which continued in force until the year 1856, are a marvellous repertory of minute and elaborate provisions governing every detail of college life. The number and allowances of the scholars; their studies, diet, costume, and discipline; the qualifications, election, and functions of the warden; the distribution of powers among various college officers; the management of the college estates, and the conduct of college business, are here regulated with truly remarkable sagacity. The policy which dictated and underlies them is easy to discern. Fully appreciating the intellectual movement of his age, and unwilling to see the paramount control of it in the hands of the religious orders—the zealous apostles of Papal supremacy—Walter de Merton resolved to establish within the precincts of the University a great seminary of secular clergy, which should educate a succession of men capable of doing good service in Church and State. He was not content with a copy or even a mere adaptation of the monastic idea; on the contrary, it may be surmised that he was influenced, consciously or unconsciously, by the spirit of those non-monastic institutions, now almost forgotten, in which the parochial clergy of an earlier age had sometimes lived together under a common rule. The employment of his scholars was to be study—not the *claustralis religio* of the older religious orders, nor the more practical and popular self-devotion of the Dominicans and Franciscans. He forbade them ever to take vows; he enjoined them to maintain their corporate independence against all foreign encroachments; he ordained that all should apply themselves to studying the liberal arts and philosophy before entering upon a course of theology; and he provided special chaplains to relieve them of ritual and ceremonial duties. He contemplated and even encouraged their going forth into the great world, only reminding those who might win an ample fortune (*uberius fortuna*) to show their gratitude by advancing the interests of the college. No ascetic obligations were laid upon them, but residence and continuous study were strictly prescribed, and if any scholars retired from the college with the intention of giving up learning, or even

ceased to study diligently, their salaries were no longer to be paid. If the scale of these salaries and statutable allowances was humble, it was chiefly because the founder intended the number of his scholars to be constantly increased, as the revenues of the house might be enlarged. He even recognised the duty of meeting the needs of future ages, and empowered his scholars not only to make new statutes, but even to migrate elsewhere from Oxford in case of necessity.

Social position,
manners, and
academical life of
early students

If we seek to measure the effect produced by the rise of colleges on the character of the University, we must endeavour to realise the aspect of University life and manners before colleges were planted in Oxford. The students, as we have seen, were lodged in religious houses, licensed halls, or private chambers. The former were mostly destined to swell the ranks of the regular clergy, and, it may be presumed, were subjected to some wholesome rules of discipline, independent of any authority exercised by the University. As they also received the whole or the greater part of their instruction within the walls of their convents, they probably were rarely seen in the streets, cultivated a certain degree of refinement, and took comparatively little part in the riots which constantly disturbed the peace of Oxford in the Middle Ages. With the other two classes it was far otherwise. Even the inmates of halls lived in a style and under conditions which, in our own age, would be regarded as barbarism. Like other scholars, they were chiefly drawn from a social grade below that of esquires or wealthy merchants. Many of them were the less vigorous members of yeomen's or tradesmen's families; not a few sprang from the very lowest ranks, and actually begged their way to Oxford. The majority had probably come as mere schoolboys, at the age of eleven or twelve, to one of the numerous grammar-schools which prepared their pupils for the higher studies taught in the 'Schools of Oxford' properly so called. It was for these younger scholars, we may suppose, that regular 'fetchers' and 'bringers' were licensed by the University, as we learn from a document of 1459, though some were attended by private servants. The older scholars, however, doubtless travelled in parties, for the sake of protection and economy, with their scanty baggage slung over the backs of pack-horses. Having safely arrived in Oxford, they would disperse to their several halls; and it does not appear that, at this period, a freshman underwent any process of matriculation or took any oath before acquiring the privileges of

the University. He would, of course, share his bedroom, if not his bed, with others, and be content with the roughest fare, but he must also have dispensed with nearly all the manifold aids to study now enjoyed by the humblest students. Books existed only in the form of costly manuscripts treasured up in the chilly reading-rooms of monasteries; privacy was as impossible by day as by night; and the only chance of acquiring knowledge was by hanging upon the lips of a teacher lecturing to a mixed class of all ages and infinitely various attainments, in an ill-lighted room, unprovided with desks or fireplace, which in these days would be condemned as utterly unfit for an elementary school-room. The principal of his hall, it is true, was supposed to be his tutor, but we have positive evidence, in a statute of 1432, that principals themselves were sometimes illiterate persons, and of doubtful character; nor was it until that year that it was necessary for them to be graduates. What kind of language he would hear, and what kind of habits he would learn, from his chamber-mates and class-mates in the century preceding the age of Chaucer, we can be at no loss to imagine. And yet the inmate of a hall, being under some kind of domestic superintendence, was a model of academical propriety compared with the unattached students, or 'chamber-dekyns,' whose enormities fill so large a space in the mediæval annals of the University.

'Chamber-dekyns'

It is possible that a certain jealousy on the part of principals and others personally interested in the prosperity of halls may have exaggerated the vices of these extra-aularian students. At the same time it is self-evident that raw youths congregated together, under no authority, in the houses of townspeople, or 'laymen,' would be far more likely to be riotous and disorderly than members of halls, or, still more, of colleges. Accordingly, the 'chamber-dekyns' were always credited with the chief share in the street brawls and other excesses which so often disgraced the University in the Middle Ages. The leading statute on the subject, it is true, was passed in the year 1432, when colleges and halls had already established a decisive ascendancy, and when the 'chamber-dekyns' may have sunk into greater contempt than in earlier times. But that statute, abolishing the system of lodging in private houses, treats its abuses as of long standing, and probably describes a state of things which had existed for two centuries. It is here recited that the peace of the University is constantly disturbed by persons who, having the appearance of scholars, dwell in no hall and are subject to

no principal, but lurk about the town in taverns and brothels, committing murders and thefts; wherefore it is ordained that all scholars must reside in some college or hall, under pain of imprisonment, and that no townsman shall harbour scholars without special leave from the chancellor.

Street brawls and disorders

The reality of the evils against which this statute was aimed is attested by the frequent recurrence of other statutes against crimes of violence committed by scholars, as well as by college rules against frequenting the streets except under proper control. We may take as an example an University statute passed in 1432 against ‘the unbridled prevalence of execrable disturbances’ in Oxford, which specifically imposes fines, on a graduated scale, for threats of personal violence, carrying weapons, pushing with the shoulder or striking with the fist, striking with a stone or club, striking with a knife, dagger, sword, axe, or other warlike weapon, carrying bows and arrows, gathering armed men, and resisting the execution of justice, especially by night. The main cause of these brawls is clearly indicated by the further injunction that no scholar or Master shall take part with another because he is of the same country, or against him because he is of a different country. The statutable fines range from one shilling to no less than forty—a highly deterrent penalty in the reign of Henry VI. It is to be observed that while the parade of arms within the chancellor’s jurisdiction is prohibited, the possession of them is rather taken for granted, since they were usually carried for purposes of defence on long journeys. Bows and arrows, as essentially offensive weapons, are naturally placed under a stricter ban, and the heaviest punishment is properly reserved for riotous assemblages, which had so often led to bloodshed in the streets of mediæval Oxford.

Superiority of colleges in discipline and tuition

In such a state of society colleges offered not only a tranquil retreat to adult scholars, but also a safe and well-regulated home to younger students attending courses of lectures in the schools. The early founders, it is true, did not design them to be mainly educational seminaries for the general youth of the country, and probably expected their inmates to obtain much of their instruction outside the walls of the college. But the statutes of Merton prove conclusively that ‘Scholars’^[3] on admission were supposed to be of about the same age as modern freshmen, and to need rudimentary teaching, while express provision was made for the

reception of mere schoolboys. Doubtless, for at least two centuries after the institution of colleges, their members were greatly outnumbered by those of halls, and the system which in the fifteenth century triumphed over the rivalry of private hostels may be more properly called aularian than collegiate. Nevertheless, the superiority of colleges as boarding-houses for students inevitably made itself felt from the very first. Humble as their buildings and domestic arrangements may originally have been, they were imposing and luxurious by contrast with those of lodging-houses or halls. Their endowments enabled them to maintain a standard of decency and comfort in itself conducive to study; their statutes ensured regularity of discipline; their corporate privileges and rights of self-government imparted a dignity and security to all connected with them; the example and authority of their elder fellows, mostly engaged in scholastic or scientific research, if not in vigorous lecturing, cannot have been wholly lost upon the juniors. In Merton, and probably in other colleges, disputations were carried on as in the University schools; attendance at Divine service was a statutable obligation; students were not allowed to go about the streets unless accompanied by a Master of Arts; in the dormitories the seniors were invested with a kind of monitorial authority over the rest; and misconduct was punishable with expulsion. By degrees, some of the halls came into the possession and under the control of colleges, which might naturally elect the most promising of their inmates to scholarships. No wonder that, however weak numerically, the seven colleges founded before the end of the fourteenth century produced an immense proportion of the men who adorned that age by their learning and virtues.^[4] Thus, out of eighteen vice-chancellors who can be identified as having filled that office in the fourteenth century, five at least were members of Merton College, two of Oriel, and one of Queen's. Of sixty-four proctors known to have been elected during the same century, twenty-two at least were members of Merton, eight of Oriel, four of Balliol, and one of University, Exeter, Queen's, and New College respectively, while it is probable that others, of whom nothing definite is known, really belonged to one of the seven ancient colleges. Considering how largely the non-collegiate population of the University outnumbered these small collegiate bodies, it is a very significant fact that so many vice-chancellors and proctors should have been chosen from them in days when election to both these offices was entirely free. Such a fact goes far to prove that the 'college monopoly,' of

which so much has been heard in later times, owed its origin, in a great degree, to natural selection in a genuine struggle for existence between endowed and unendowed societies.

FOOTNOTES:

[3] In the Merton Statutes the words 'Scholar' and 'Fellow' are convertible, the Scholar being a Junior Fellow upon his first admission.

[4] Though Canterbury College was founded in this century, it does not seem to have ranked with other colleges in the University, and no vice-chancellor or proctor is recorded to have been elected from it.

CHAPTER III.

PROGRESS OF THE UNIVERSITY IN THE FOURTEENTH CENTURY.

Europe in the
fourteenth century

The fourteenth century deserves to be regarded as the most progressive and eventful in the history of the Middle Ages. All the kingdoms of Europe were engaged in wars, for the most part destitute of permanent results, yet the work of civilisation went forward with unbroken steadiness and rapidity. The Spanish monarchies of Castile and Arragon continued their long struggle for supremacy with each other, and for national existence with the Mohammedan power at Granada. Germany was distracted by civil wars and double imperial elections; Italy was torn asunder by the factions of the Guelphs and Ghibellines. The usurpation and avarice of the Roman Court produced an all but general revolt against Papal authority; the seat of the Holy See was transferred for sixty years to Avignon, and the return of the Pope to Rome was followed by 'the Great Schism,' which lasted fifty years longer; Russia was subject to the Khan of Kipchak until its southern provinces were overrun by the hordes of Timur; Poland and Hungary were exhausting their strength in expeditions against their neighbours or against Venice, while the Ottoman Turks were advancing into the heart of Eastern Europe. England was entering upon its purely dynastic crusades for the possession of the Scotch and French crowns, which, fruitful as they were in military glory, diverted the energies of the nation, wasted its resources, and retarded its internal development for several generations. Nevertheless, literature, art, and education flourished marvellously in the midst of the storms which racked European society. Ancient learning was revived in Italy chiefly by the influence of Petrarch and Boccaccio; Dante became the father of modern Italian poetry; Cimabue and his pupils founded the Italian school of painting; scholastic philosophy culminated and gave place to a more independent spirit of inquiry; scientific research first began to emancipate itself from magical arts; Roman law extended its dominion

everywhere except in England, where, however, Chaucer and Wyclif gave the first powerful impulse to native English thought; free thinking in politics and religion penetrated deeply into the popular mind, and increasing refinement of manners kept pace with the growth of trade and industry. Universities sprang up one after another—in France, in Spain, in Italy, in Poland, in Hungary, in Austria, and in Germany; nor is it unduly rash to surmise that, if the invention of printing could have been anticipated by a century, the Renaissance and the Reformation itself might have preceded the capture of Constantinople and the discovery of America.

Social condition of
the University

At the commencement of this century Oxford presented strange contrasts between the social and the intellectual aspects of its academical life. The great riot of 1297 was scarcely over, and had left a heritage of ill-will which bore fruit in the frightful conflict of 1354; the encounters between the northern and southern nations were of frequent recurrence, and there was no effective system of University discipline, while college discipline, still in its infancy, was confined within the precincts of Merton, University, and Balliol. The common herd of students, inmates of halls and inns and lodging-houses, were still crowded together in miserable sleeping-rooms and lecture-rooms, without domestic care or comfort, and strangers to all those frank and generous relations which naturally grow up between young Englishmen, especially of gentle birth, in the kindly intercourse of modern college life. They often rendered more or less menial services in return for their instruction, and were sometimes enabled to borrow from the University Chest; at other times they relapsed into mendicity, and asked for alms on the public highways. There were no libraries or museums, and the few books possessed by the University were stored in a vault under St. Mary's Church. The laws of health being unknown, and every sanitary precaution neglected, the city of Oxford was constantly scourged with pestilence from which members of the University were fain to fly into neighbouring country villages.

Intellectual vigour
of the University

Under such conditions, and in such a society, it was utterly impossible that education or learning could flourish generally according to our modern ideas, and yet it is certain that a restless and even feverish activity of speculation prevailed within an inner circle of philosophical spirits, to which there are

few parallels in the history of thought. If their treasury of knowledge was scanty in the extreme, yet the range of their studies was truly sublime, both in its aims and in its orbit. In the chilly squalor of uncarpeted and unwarmed chambers, by the light of narrow and unglazed casements, or the gleam of flickering oil lamps, poring over dusky manuscripts hardly to be deciphered by modern eyesight, undisturbed by the boisterous din of riot and revelry without, men of humble birth, and dependent on charity for bare subsistence, but with a noble self-confidence transcending that of Bacon or of Newton, thought out and copied out those subtle masterpieces of mediæval lore, purporting to unveil the hidden laws of Nature as well as the dark counsels of Providence and the secrets of human destiny, which—frivolous and baseless as they may appear under the scrutiny of a later criticism—must still be ranked among the grandest achievements of speculative reason. We must remember that archery and other outdoor sports were then mostly in the nature of martial exercises reserved for the warlike classes, while music and the fine arts were all but unknown, and the sedentary labour of the student was relieved neither by the athletic nor by the æsthetic pastimes of our own more favoured age. Thus driven inward upon itself, the fire of intellectual ambition burned with a tenfold intensity, and it was tempered by no such humility as the infinite range of modern science imposes on the boldest of its disciples. In many a nightly vigil, and in many a lonely ramble over the wild hill-sides beyond Cowley and Hincksey, or along the river-sides between Godstow and Iffley, these pioneers of philosophical research, to whom alchemy was chemistry, and astronomy but the key to astrology, constantly pursued their hopeless quest of Wisdom as it was dimly conceived by the patriarch Job, pressing Aristotle into the service of mediæval theology, which they regarded as the science of sciences, and inventing a mysterious phraseology which to us has lost its meaning, but which they mistook for solid knowledge, fondly imagining that it might lead them upward to some primary law governing the whole realm of matter and of mind. They failed, indeed, because success was hopeless, but their very failure paved the way for the ‘new knowledge’ of the next century, and cleared the ground for the methods and discoveries which have made other names immortal.

Foundation of
Exeter, Oriel,

During the reigns of Edward II. and Edward III. the collegiate element in the University was strengthened by the foundation of five new colleges, one of which has

since become extinct. The first of these was Exeter College, founded in 1314 by Walter de Stapledon, bishop of Exeter. Ten years later, in 1324, Adam de Brome, almoner of King Edward II., procured from that king a charter of incorporation for a college, to be called St. Mary's House, and to consist of a rector and scholars in divers sciences. In the following year, having purchased the site of the present college, now called Oriel, he transferred it to the king, who, by a fresh charter, erected there a collegiate society of ten scholars for the study of divinity. Queens College was founded upon a similar model, and under similar conditions, in the year 1340, by Robert de Egglesfield, chaplain to Queen Philippa. The rules of study and discipline for Oriel and Queen's were mostly borrowed from those of Merton, but some interesting peculiarities may be found in the Queen's statutes. The removal of the University from Oxford is distinctly contemplated, but, on the other hand, able men are to be welcomed as scholars from all parts of the world, though a preference is reserved for applicants from Cumberland and Westmoreland, the founder's native county, on account of its recent devastation in border-warfare. The securities for impartial election to fellowships are unusually minute, and there is a great variety of regulations strongly tinged with the mystical tendency of the founder's own mind. Canterbury College, founded by Archbishop Simon Islip in 1361, differed from these in its original constitution, since it embraced both secular and 'religious' students, and was mainly designed to promote the study of the civil and canon law. Two years later, however, this design was abandoned, and the college was appropriated to secular priests only, when John Wyclif, probably the Reformer, was appointed its first head; but he was removed by Archbishop Langham, and the college became a monastic nursery under the priory of Canterbury, until it was absorbed into Christ Church in the reign of Henry VIII.

The foundation of New College by William of Wykeham, bishop of Winchester, in 1379, has been held to mark a new departure in collegiate history. Like Walter de Merton, William of Wykeham had filled various high offices of State, including that of chancellor, and is well known as the designer of several great architectural works. His main object in founding the College of 'St. Mary of Winchester in Oxford,' since known as New College, is clearly stated in his charter. It was to repair 'the scarcity of scholars in the

nation, having been swept away by great pestilences and wars.’ Accordingly, in 1379, he obtained a license from Richard II. to found a college ‘for seventy scholars studying in the faculties,’ all of whom were to have passed through his other college for boys at Winchester itself. These scholars were to be ‘poor indigent clerks,’ sufficiently taught in grammar, and under twenty years of age. Ten were to study civil and ten canon law; the remaining fifty were to study the Arts, or philosophy and theology, though two of these might be specially permitted to devote themselves to astronomy, and two to medicine. But the claim of William of Wykeham to be considered the second founder of the college-system depends less on any notable peculiarity in his statutes than on the grandeur and regularity of the buildings which he erected on a site then vacant, and found by a jury to be infested by malefactors, murderers, and thieves, as well as the scene of other public nuisances. The noble quadrangle, of which the scholars took possession on the 14th of April, 1386, having already been lodged in Hert Hall and other tenements, doubtless served as the model for all the later colleges, and the supremacy of colleges over halls may fitly be dated from the end of the fourteenth century, when New College was the most imposing centre of collegiate life.

European influence
of Oxford in the
fourteenth century

The importance of Oxford in the eyes of Europe was increased during the fourteenth century by two causes, the decline of the University of Paris, and the vigorous protest of Oxford schoolmen against the spiritual despotism of the Papacy, discredited by its subjection to French influence at Avignon. The former of these causes was, in fact, nearly connected with the latter. The University of Paris had owed much to Papal encouragement and protection, but it had always struggled for corporate independence, and when, in 1316, it stooped to solicit the patronage of John XXII., by submitting to him a list of candidates for preferment, it forfeited its unique position in the estimation of European scholars, then a small but united brotherhood. On the other hand, it was an English Franciscan of Oxford—William of Occam—who not only challenged the supremacy of the Pope, but ‘proclaimed the severance of logic from theology.’ The assertion of this bold paradox, aggravated by the aggressive Nominalism of its author, nearly cost him his life, for he was imprisoned by the Pope’s order at Avignon, and only escaped death by taking refuge at Munich with the Emperor Louis of Bavaria. His doctrines, however, found wide acceptance

at Oxford, and paved the way for the far deeper revolution in ideas of which John Wyclif was the pioneer.

Rise of Wyclif

The biography of this remarkable man, if authentic materials for it existed, would cover almost the whole academical history of Oxford during the latter part of the fourteenth century. Unfortunately, many of the facts are still involved in uncertainty. Like Duns Scotus, he is believed to have been a Northerner, though his birthplace is doubtful; like him, too, he was at once a Realist in metaphysics and a champion of liberty in theology. Several colleges have claimed him as their own; Balliol has enrolled him among its Masters, Queen's among its commoners, and Merton among its fellows. His name only appears in the books of Merton in the year 1356, and though he soon afterwards took an active part in the controversies of the day at Balliol and elsewhere, it was not until after 1374 that he became known as the founder of a new school in theology, and, still more, as a dauntless assailant of the corruptions incident to Papal supremacy and priestly authority. In asserting the right of private judgment and exposing ecclesiastical abuses, he was a true successor of Occham, but he dissented from Occham's Nominalism; his sympathies were entirely with the secular clergy; and, whereas Occham was a Franciscan, Wyclif inveighed against all the monastic Orders, but especially against the friars. The movement which he led was essentially academical in its origin, and definitely marks a great academical reaction against the regular clergy, to whose influence learning and education had owed so much in the previous century.

Career of Wyclif

The career of Wyclif, indeed, belongs to the University quite as much as to the Church. It was as the last of the Oxford schoolmen, and mostly from Oxford itself, that he put forth his series of books and pamphlets on the relations of Church and State, on the subjection of the clergy to civil rule, civil taxation and civil tribunals, on pardons, indulgences, the worship of saints, transubstantiation, the supremacy of Holy Scripture, and other like topics, besides those abstruse scholastic themes which have lost their interest for the present age. During his earlier struggles, the open patronage of John of Gaunt, with the occasional protection of the Court, stood him in good stead, and enabled him to brave not only episcopal censures but Papal anathemas. His real strength, however, consisted in the influence which he commanded

in the University itself and, through it, in the English people. When Pope Gregory XI. despatched a Bull to the University of Oxford, calling for an inquiry into his erroneous doctrines, the University barely consented to receive it, and took no steps to comply with it, though it was supported by similar Bulls addressed to the King and the English Bishops. When he was cited for the second time to answer for his opinions in London, the citizens were his avowed partisans. When his tenets had become discredited among the aristocratic party by their supposed connection with the Peasant Revolt, and were officially denounced, in 1381, by the Chancellor of the University, sitting with twelve doctors as assessors, his cause was, nevertheless, stoutly maintained by his followers at Oxford. The next Chancellor, Robert Rygge, of Merton, was at heart among his adherents, and informed the Archbishop Courtenay, in answer to a mandate requiring him to search all the colleges and halls for Wycliffites, that it was as much as his life was worth. The injunctions of the Archbishop, like those of his predecessor, were practically defied at Oxford, until the Crown at last entered the lists against the Reformer. In 1382, a Parliament was held at Oxford. The Convocation which accompanied it condemned Wyclif's teaching on the Eucharist; the condemnation was published in the school of the Augustinian monks, where Wyclif himself was presiding as professor, and a peremptory order was issued for his expulsion with all his disciples. He died in 1384, but not before he had completed his English translation of the Bible. The spirit which he had kindled continued to animate the University for many years after his death. In Merton College alone several eminent fellows were known as Wycliffites in the next generation, and after the condemnation of Lollardism by the Council of London in 1411, it was thought necessary to pass a stringent University statute to check the propagation of Lollard doctrines. By this statute, the penalty of the greater excommunication was imposed upon all who should disseminate Lollardism, candidates for degrees were required to abjure it, and heads of colleges or halls were enjoined to exclude from their societies any person even suspected of it.

Feud between
Northern and
Southern 'nations'

While the University was agitated by these philosophical and theological storms, its external life seems to have been comparatively uneventful during the fourteenth century. We read, however, of a brutal faction fight between 'the Northern and Southern clerks' in 1319, and this ancient feud continued to disturb the peace of the University for several

generations. The Northern party was apparently the weaker in the University, perhaps because it had sympathised with Simon de Montfort. Accordingly we learn from Anthony Wood that, in 1334, Merton College, which had been suspected of favouring that party, sought to regain popularity in the University by declining to admit Northern scholars. Again, in 1349, a strong faction in the same college succeeded in procuring the election of Wylliott as Chancellor by force, driving out the Northern proctor, and committing acts of sanguinary violence. In 1327, we hear of a 'most bloody outrage' committed by the scholars and townsmen of Oxford, joined with the townsmen of Abingdon, on the monks of Abingdon Abbey; and in 1349-50 the ravages of the Black Death were such that Oxford was almost deserted by its students, and the Warden of Merton is said to have died of the plague. Two other memorable events occurred in the reign of Edward III., which deserve more special notice, since they fill a considerable space in the historical records of the University. The one of these was the secession to Stamford in 1333; the other was the great riot which broke out on St. Scholastica's Day, 1354. ^[5]

Early secessions to
Cambridge and
Northampton

The secession to Stamford was by no means the first migration of Oxford students to another provincial town since the foundation of the University. In 1209 and again in 1239 bodies of discontented Oxonians had betaken themselves to Cambridge, and in 1260 a more important secession took place, of which two different accounts have been given. According to one, the emigrants were Northern students who had sided with Simon de Montfort when he summoned his Parliament to Oxford in 1258, and framed those articles which became the signal for civil war. It is further stated that, having been joined at Northampton by refugees from Cambridge, and distinguished themselves in defending the town against the Royal forces, they narrowly escaped the King's vengeance. According to another account, supported by the authority of Anthony Wood, the King himself, fearing the effect of political excitement on the masters and scholars of the University, expressly sanctioned and encouraged the new settlement at Northampton, specially recommending the emigrants to the good offices of the mayor and bailiffs. At all events, their stay at Northampton was short, for they returned to Oxford in 1264 or 1265, apparently in obedience to a Royal order, but under a safe conduct from Simon de Montfort. It was doubtless this Northampton colony which the founder of Merton had in view when, in his

first statutes issued in 1264, he gave the rulers of his new society power to remove the students from Oxford to some other University town—*aut alibi, uli studium viget generale*.

Secession to
Stamford in 1333

The origin of the ‘University at Stamford’ is still more obscure. Anthony Wood tells us simply that several masters, bachelors, and scholars of Oxford ‘did under colour of some discord among them, and upon some pretences sought after, depart hence unto Stamford, in Lincolnshire, and there began, or rather renewed and continued, an academy.’ The seceders themselves, appealing to Edward III. in January 1334, for permission to continue their studies at Stamford, vaguely attributed their withdrawal from Oxford to disputes and disorders which had long prevailed in that University. We may conjecture that it was a secession of Northern students, but the only certain fact is that it was headed by one William de Barnaby. The University of Oxford, much alarmed by the ‘schism,’ as it was called, invoked the aid of the Queen and the Bishop of Lincoln. At last, the King intervened, but it was not till after three Royal monitions and the seizure of their goods, that the malcontents were ejected from Stamford, and the short-lived University broken up in the summer of 1335. A list of offenders was sent to Edward III., but it only contained thirty-eight names, including those of seventeen masters. The ‘Academy’ at Stamford, however, left traces in the local names of streets, which are not even yet wholly effaced, and the jealousy inspired by its rivalry was not extinguished for more than a century. An University statute of uncertain date, but clearly later than 1425, and evidently re-enacting an order already in force, requires every inceptor in any faculty to swear that he will not recognise any University besides Oxford and Cambridge, and that he will not lecture or read at Stamford. Meanwhile, a compact was made between Oxford and Cambridge for their mutual protection against competition, and the dual monopoly of the two ancient Universities was henceforth established.

Growth of the
proctorial authority

The peace of the University was further promoted in this turbulent age by the gradual development of the proctorial authority. The origin of the proctors’, like that of the Chancellor’s, office is enveloped in much obscurity. The first proctors named in the official list, which follows the *Fasti* of Anthony Wood, are Roger de Plumpton and Henry de Godfree, who are set down as

having officiated in 1267. Proctors are also mentioned by name under the dates 1281, 1286, and 1288. During the first half of the fourteenth century the entries of proctors occur in fifteen years only, but in one case the same two proctors are expressly stated to have served for two years, and it is quite possible that, even if the election was annual, others may have served for longer periods. Whatever may have been their original functions, there can be no doubt that in 1322, if not much earlier, they became the chief executive officers of the University. It was a main part of their duty to keep the peace, as best they could, not only between scholars and townspeople, but also between the numerous factions among the scholars themselves, between the friars and secular clergy, between the 'artists' and the 'jurists,' the Nominalists and the Realists, the English students and those from Wales, Scotland, or Ireland, and, most of all, the Northern and Southern nations. The standing quarrel between these great academic parties overshadowed and absorbed into itself all minor rivalries, and influenced every important question for academic action, especially the election of the Chancellor. According to Anthony Wood, it was in order to secure fairness and good order in these elections that, in 1343, the University agreed that one proctor should always be a Northerner and the other a Southerner, for the purpose of acting as scrutineers of the votes. On the other hand, the analogy of the University of Paris might lead us to regard them as representatives, from the very first, of the 'nations.' At all events, their powers were infinitely wider and more various than those of mere returning-officers. They kept the money and accounts of the University, regulated the whole system of lectures and disputations, were responsible for academical discipline, and were empowered to impeach the Chancellor himself. Like him, they were elected by the whole body of regents and non-regents in Congregation, but their elections never required the confirmation of the Bishop of Lincoln as diocesan, whereas that of the Chancellor, as we have seen, was originally held invalid until it had been thus confirmed.

Concession by the
Pope of freedom in
the election of the
Chancellor

In the reign of Edward III., however, a great step was made towards academical independence by the disuse of this practice, and thenceforth the University chose its Chancellor as freely as its proctors. Some years before the way had been paved for this revolt against ecclesiastical jurisdiction by a solemn compact between the University and the Cardinal de Mota, then Archdeacon of Oxford by Papal provision, but

permanently non-resident. This Cardinal-Archdeacon had assumed to exercise authority over the University through certain agents who practised extortions for his benefit. Thence arose a controversy which lasted twenty years, the Cardinal having instituted proceedings against the University at the Papal Court, while the University appealed first to Edward II. and afterwards to Edward III., both of whom, following the settled policy of the Plantagenet kings, vigorously intervened on its behalf. At last, after tedious negotiations, a compromise, very favourable to University rights, was effected by the mediation of William Bateman, Bishop of Norwich. The Chancellor was declared to have archidiaconal jurisdiction over all doctors, masters, and scholars, religious and lay, and even over all rectors, vicars, and chaplains within the University, unless they should hold cures of souls in Oxford, in which case they should pay canonical obedience to the archdeacon. Moreover, in 1368, a Bull was procured from Pope Urban, solemnly ordaining that thenceforth the election of a Chancellor by the University itself should be sufficient, without the confirmation of the diocesan. The reason alleged is a very practical one—that great inconvenience and even danger to the peace of the University had resulted from the necessity of sending a deputation to follow the Bishop into distant parts, while in the meantime there was no resident officer to keep turbulent persons in order.

FOOTNOTES:

[5] See Chapter [IV](#).

CHAPTER IV.

CONFLICTS BETWEEN THE UNIVERSITY AND THE CITY.

Royal award of
1290

The famous riot of St. Scholastica's Day, 1354, may be regarded as the sequel of a similar fray in 1297. Both were simply violent eruptions of a deep-seated feud between the University and city of Oxford, which had been growing for several generations. In the year 1290, these bodies appeared by their deputies before the King and Parliament, when certain articles of peace were concluded, under Royal authority, which exhibit in a compendious form the main grievances of the citizens. Most of these grievances relate to alleged abuses of the Chancellor's criminal jurisdiction; others have reference to more or less oppressive privileges of the University, such as its claim to something like fixity of rent, if not of tenure, for houses in the occupation of scholars. On each point submitted to him the King's award is conspicuous for its good sense and moderation.

Riot of 1297 and
agreement of 1298

The complaints here formulated in the most authentic shape enable us to understand the bitter animosity which aggravated town-and-gown rows of the thirteenth and fourteenth centuries into sanguinary conflicts sometimes bordering upon civil war. Contests about municipal franchises, prices of provisions, and rents of halls or inns, were eagerly fanned into a flame by the impetuous passions of youth, unrestrained by the kindlier sentiments of humanity and respect for others which temper party-spirit in this happier age. But seven years had elapsed since this award of Edward I. had been made, when, as Anthony Wood tells us, 'there arose a grievous discord between the clerks and laics of Oxford, occasioned by the fighting of two servants of various countries that were upon some small occasion invited thereunto.' Several murderous affrays had already taken place since the incident thus noticed, before any general muster of townspeople or students took place. In the meantime the Chancellor exerted himself to restore order, but several aldermen and leading citizens headed the mob, who sacked various

scholars' houses and defeated a body of gownsmen on the favourite battleground of the Beaumont. After this it appears the Chancellor declined to comply with the mayor's request that he would confine the gownsmen to their inns. Accordingly, on the following day the bells of St. Mary's, as well as of St. Martin's, called the combatants to arms, and several thousands are said to have engaged in the desperate fray which ensued. At first the gownsmen carried all before them, being superior both in weapons and in defensive armour, and broke open many shops and dwellings of the burghers. But the death of their leader and the irruption of rustic labourers from the country to aid the townspeople ultimately turned the tide of battle against them. Once compelled to retreat, they were hunted down and brutally maltreated by the populace; several were killed; others were torn from the sanctuaries to which they had fled, and driven with whips and goads into the castle gaol. The ordinary retribution followed. The citizens implicated in the disturbance were excommunicated by the Bishop of Lincoln; some of the worst offenders were consigned to the Chancellor's prison; two bailiffs were removed from their office, and other persons were banished from Oxford. A 'final agreement' made between the University and city in 1298, and preserved in the University archives, records these sentences, together with a general amnesty for all other offences prior to the agreement, and a renewed promise on the part of the City to respect all the privileges of the University.

Great riot of 1354

How long this truce lasted we have no means of knowing, but no equally murderous encounter took place at Oxford until St. Scholastica's Day, Feb. 10, 1354.^[6] Like the riot of 1297, it arose out of a trumpery squabble, but was carried on for three days with all the savage fury of an Irish faction fight. Two students drinking at the Swyndlestock, or Mermaid, tavern, near Carfax, assaulted the landlord, and were forcibly ejected. Again the bell of St. Martin's was rung by order of the mayor, and that of St. Mary's by order of the Chancellor, at whom an arrow had been shot by one of the citizens. In the disturbances which immediately followed no one seems to have been mortally wounded; but on the following morning, notwithstanding the efforts of the Chancellor, ostensibly seconded by the mayor, a general battle was commenced by the citizens, armed with bows and arrows, who drove the scholars out of the Augustine schools, cleared the whole northern suburb of their enemies, and sent messengers to call in reinforcements from

the neighbouring villages. To bar the entrance of these auxiliaries, the scholars made themselves masters of the northern and eastern gates; but the villagers, making a circuit, poured in by the west gate, numbering, it is said, nearly 2,000, and swept the streets with fierce cries of 'Slay, slay!' 'Havock and havock!' The gowmsmen were fairly overborne, and not only that evening but a great part of the next day was spent by the victorious townspeople in glutting their savage vengeance, pillaging hall after hall, and killing or wounding any scholar who fell into their hands; indeed, if we are to believe Anthony Wood, they went so far as to scalp more than one chaplain whom they captured, in contempt of the priestly tonsure.

Interdict and
penance

Such an outrage roused the whole clerical order, and the Church took up the quarrel of the University as her own. After due inquiry an interdict was laid upon the city by the Bishop of Lincoln, and all the municipal authorities, if not all the lay inhabitants, were visited with 'the major excommunication.' They appear to have remained under ecclesiastical censure for some three years, since the relaxation of the interdict and the indenture of peace between the University and city bear date May 1357. We learn from these documents that at last the city made a complete and humble submission, confessing itself deserving of a like excommunication if it should ever again sin in like manner, and binding itself to accept whatever penance the Bishop should lay upon it. This penance consisted in the signature of a compact under which the mayor, bailiffs, and sixty leading citizens were obliged to attend mass every year in St. Mary's Church on St. Scholastica's Day, and to offer at the high altar one penny each, of which sum two-thirds was to be distributed at once by the proctors among poor scholars. The city also undertook to pay one hundred marks annually to the University by way of compensation on the same day, but was relieved from this obligation by a deed of even date, upon condition of the other compact being duly fulfilled.

New charter
granted by the King

In the meantime, however, the mayor and burgesses had formally resigned their ancient franchises into the King's hands, and the University received a new charter of privileges and immunities as a reward for the indignities to which it had been subjected on St. Scholastica's Day. Under this charter, the Chancellor of the University obtained the sole control over the 'assize' of bread, wine, ale, and beer; over the 'assay' of weights and measures, with jurisdiction in

all cases of ‘forestalling,’ ‘regrating,’ and selling unwholesome food; over the assessment of rates and taxes, the management of the streets, and like municipal affairs. He was also empowered to expel all disorderly students, and the provision for the forfeiture of their arms shows how generally arms were carried in those turbulent days. Moreover, though he was not as yet permitted to rescue and sit in judgment on scholars accused of treason, murder, or ‘mayhem,’ this privilege was afterwards conceded by letters patent of 1407; but it was provided that academical prisoners should be tried before a mixed jury of gownsmen and townspeople. It is not difficult to understand how galling such concessions must have been to the citizens of Oxford, and however gross the outrages for which they were the atonement, we can hardly wonder that a bitter grudge should have been cherished by the City against the University so long as they remained in force.

FOOTNOTES:

[6] In the meantime, in deference to complaints made by the Chancellor, the King, Edward II., in the year 1315, regulated the price of provisions in the Oxford market, as well as in the markets of other towns.

CHAPTER V.

THE MONKS AND FRIARS AT OXFORD.

Benedictines and
Augustinians

The history of the monastic settlements at Oxford, and of their connection with the University, still remains to be written, but enough is known to show how great a part they played in its earlier life. For some time before, and for two generations after the Norman Conquest, the Benedictine monks of St. Frideswide, having displaced the secular canons, seem to have been the only body of regular clergy in Oxford. In the monasteries of this Order had been sheltered most of the scanty learning and culture which survived the night of the Dark Ages. Having been well nigh crushed out and despoiled of their few literary treasures in two Danish invasions, they had revived and extended their influence in the eleventh century. In the reign of Henry I., Roger, Bishop of Salisbury, is said to have established a convent of Augustinian canons at St. Frideswide's, under the care of Guimond, chaplain to the King, and soon after 1129 they were reinforced by a society of the same Order inhabiting the new abbey founded in that year at Oseney. It does not clearly appear how far the Benedictines were dislodged from Oxford by the new-comers, but they probably retained houses there for their students until they obtained possession of Gloucester Hall.

Rise of mendicant
Orders

If the claustral schools of the Benedictines were the nursery of the University, a still more powerful impulse was imparted to it at a later period by the rise of the two great mendicant Orders, both of which received munificent aid from Henry III. In 1221 the Dominicans, or Black Friars, first appeared in Oxford, and located themselves in the heart of the Jewry, from which they migrated forty years afterwards into a new monastery by the water-gate in the parish of St. Ebbe's, near the modern Speedwell Street. Two or three years later a little band of Franciscans, or Grey Friars, after a temporary residence in Canterbury and London, found their way to Oxford, where they were hospitably entertained by the Dominicans, and obtained the loan of a house

or hall in the parish of St. Ebbe's. Notwithstanding their exemplary self-denial and boundless charity, they succeeded in accumulating funds sufficient to build a magnificent church on a site near Paradise Gardens, and opened schools of their own. After the lapse of another generation—in 1251 or 1252—a company of Augustinian Friars were sent into England by Lanfranc, of Milan, and a detachment of them settled on the southern part of the site now occupied by Wadham College, purchased for them by Sir John Handlow, of Boarstall. Here were instituted those famous disputations which, under the name of 'Austins,' became the chief school of academical grammar teaching in the Middle Ages, and survived in a degenerate form until the end of the last century. In 1254 the Carmelite, or White Friars, took up their abode close by the Castle, whence they were transferred to Beaumont Palace by Edward II. in 1313. In 1281 or 1291 Edmund, Earl of Cornwall, founded, or refounded, the Cistercian Abbey of Rewley, and established a brotherhood of Trinitarians without the East Gate. Meanwhile the Benedictines had adopted Gloucester Hall (now Worcester College) as a seminary for their younger members.

Claustral schools

Other smaller religious fraternities are known to have existed in Oxford, and neighbouring abbeys, such as those of Oseney, Eynsham, Littlemore, and Dorchester, kept houses in Oxford for the instruction of boys and young men under their special charge. The systematic teaching of theology was doubtless the main object of the lessons given in the old claustral schools, and the curriculum of secular education was as meagre in reality as it was imposing in profession. Yet even in these a true spirit of scholarship was kept alive, and the great teachers of the mendicant Orders were the leading exponents of the new Aristotelian philosophy, which inspired the subtlest intellects of the thirteenth century with the power of a revelation. These Orders possessed a great advantage over the University itself, before colleges were founded, in occupying handsome and spacious buildings, attractive to poor students, while the University schools or lecture rooms were apparently little better than sheds, and St. Mary's Church was the one edifice capable of being used for solemn academical functions.

Migration from Paris and influence of Robert Grosseteste

Two causes favoured the rapid establishment of the mendicant Orders, and especially of the Franciscans, in the schools of Oxford. In the year 1228 a memorable

conflict took place between the students and citizens in Paris, in which the students were grossly maltreated. Queen Blanche refused them redress, but Henry III. invited them to settle in England, and Oxford, as well as Cambridge, benefited largely by the migration which ensued.^[7] These Paris students were mostly the disciples of Dominican or Franciscan professors, some of whom seem to have accompanied them, and when the Dominicans again became paramount at Paris, the Franciscans retained a stronghold at Oxford. Here they owed much to the powerful aid and patronage of Robert Grosteste, the great scholastical and ecclesiastical reformer of the thirteenth century. The fame of this remarkable man for scholarship, as well as piety, rests upon the universal testimony of his own and the succeeding age, including that of Roger Bacon, himself perhaps the brightest luminary of mediæval Oxford. But it is only of late that his influence upon the University has been fully understood. It was indeed an extraordinary chance which elevated to the See of Lincoln, then possessing a paramount jurisdiction over the University of Oxford, a man who had been the foremost of Oxford teachers, the first theological lecturer of the Franciscans. It was as a working professor and *Rector scholarum* that he infused new life into University studies by the comprehensive vigour and originality of his teaching. When he commenced his stormy episcopate in 1235, his attention was inevitably directed to larger questions than disturbing the peace of Church and State, but his spirit animated his staunch friend and successor, Adam Marsh (or de Marisco), the great Franciscan college-tutor, as he may well be called. It is the glory of the Franciscans to have produced in the same age Adam Marsh and Roger Bacon, who is sometimes claimed as an early Fellow of Merton College, but who really belongs to a period immediately preceding the foundation of colleges. Though Roger Bacon attests the premature degeneracy of the mendicant Orders in his own lifetime, though his bold vindication of scientific truth is little in harmony with the abject submission to Papal authority enjoined upon the friars, and though he was actually persecuted by his own community for persevering in his scientific researches, yet he was essentially a Franciscan. It was in obedience to his patron, Clement IV., that he compiled his three great treatises, embodying a knowledge which no other scholar of his time possessed, advocating the claims of mathematics and language against the frivolous dialectics of the mediæval schools, and

censuring without reserve the organised ignorance which then usurped the place of science and philosophy.

Position of the
friars at Oxford,
and University
statutes against
them

It is extremely difficult to ascertain the nature of the control which the friars acquired over academical studies, or the place, if any, which they occupied in the academical system. Of their proselytising activity we have abundant evidence, and this was probably the motive of their constant efforts to secure the privilege of reading and lecturing in their own schools, instead of in those of the University; efforts which at Paris seem to have been more or less successful. At Oxford they are clearly recognised as religious bodies in a curious ordinance of 1300, which enjoins that in academical processions the Preaching Friars shall walk first, the White Friars next, and the Black Friars last. It is scarcely less significant that, although in 1314 the church of St. Mary was made the one authorised arena of academic ceremonies, to the exclusion of the religious houses, the four Orders were represented jointly with the University on the Papal Commission which delivered this decision. In another statute, of 1326, every bachelor of arts is required to dispute once and respond once each year before the Augustins (*apud Augustinenses*), from which it must be inferred that this Order had already acquired almost a monopoly of grammar-teaching.

But the lay and secular element in the University always rebelled against the encroachments of the friars, and was destined to prevail. It is a suggestive fact that Walter de Merton rigorously excluded every 'religious' person or member of a monastic Order from the benefits of his foundation. Soon afterwards the University took alarm. In 1358^[8] we have a trenchant statute against the abduction of boys under eighteen by the mendicant Orders, which shows how great a jealousy they had provoked among the secular clergy of the University, for whose special benefit Merton and other colleges were founded. This statute expressly recites that noblemen and commoners are afraid to send their sons to the University, lest they should be seduced by the mendicant friars into joining their Order before arriving at years of discretion; and that by these practices the peace of the University is often disturbed and its numbers diminished. It is therefore enacted that if any mendicant friar thus seduces or causes to be seduced any youth under eighteen years of age, or procures his removal from Oxford with intent that

he may be received elsewhere into a religious Order, no graduate of the cloister or society to which the offender belongs shall be allowed to deliver or attend lectures in Oxford during the year next ensuing. Another statute of the same date is apparently aimed at the attempt of friars to lecture on logic before undergoing the regular yearly course of disputations. This is immediately followed by the public recantation extorted from a friar who had affirmed, among other startling propositions, that tithes belonged more properly to mendicants than to rectors of churches, and that the University was a school of heresy. Another friar who had disparaged the School of Arts was compelled to apologize with equal humility. Still the power of the monastic Orders continued to be formidable, and at Cambridge they seem to have ultimately carried their point in obtaining exemption from academical exercises in Arts for their theological students; while at Oxford there are many instances of college fellows joining their ranks.

Intervention of the
Pope and the King

In 1365 the Pope entered the lists against the University on behalf of the friars, and directed the Archbishop of Canterbury and bishops to insist upon the Chancellor's procuring the repeal of the obnoxious statutes. In the meantime, however, the intervention of the King and Parliament was invoked by memorials from both the Universities and the four mendicant Orders. In consequence of this an ordinance was made, with the assent of Parliament, by which the statutes against the admission of scholars into these Orders were relaxed, but all bulls and processes to be procured by the friars against the Universities from the Court of Rome were prohibited and declared void. Still the feud continued. One main source of Wyclif's popularity in the University was his unsparing denunciation of the Mendicants, and their decline was among the most permanent results of the movement which he initiated. But other causes were at work to undermine their influence. The rise of the colleges was, in fact, the rise of the secular clergy, and in organising itself more completely, the University naturally outgrew its dependence on the missionary zeal for education which had been its life-blood in the thirteenth century.

FOOTNOTES:

[7] See Chapter I. p. [9](#).

[8] This is the date assigned to the statute by Mr. Anstey in his *Munimenta Academica*, on the authority of Anthony Wood, supported by historical probability.

CHAPTER VI.

THE UNIVERSITY IN THE FIFTEENTH CENTURY.

Decline in numbers
and studies

The golden age of mediæval Oxford had culminated in the fourteenth century, and the fifteenth century ushered in a period of intellectual stagnation, which lasted for at least sixty years. Many causes, both external and internal, combined to produce this result. The nation itself, exhausted by the vain effort to conquer France, and roused from its long dream of Imperial ambition, was hopeless and disheartened until it was plunged into the most sanguinary of English Civil Wars. The ecclesiastical independence of the English Church, which had defied the most powerful of mediæval Popes, and had been fortified by the recent Statutes of Provisors and Præmunire, was seriously threatened by the growth of Ultramontane influences, while its revenues were assailed by democratic agitation. The revolutionary petition of the Commons, addressed to Henry IV., for the wholesale appropriation of Church property to secular and charitable uses, boded no good to Universities, which ranked as ecclesiastical bodies, and were taxed with the clergy, though anti-monastic in their corporate spirit and in the organisation of their colleges. Moreover, this petition had been speedily followed by the actual confiscation of property belonging to alien priories. Soon afterwards, the French Wars and Wars of the Roses attracted into camps many a student who might otherwise have frequented the University lecture rooms; the law no longer drew all its recruits from University clerks; and even the incumbents of English livings were sometimes chosen from the ranks of the regular clergy without University training. It is possible that the rise and spread of the Wycliffite movement at Oxford may have prejudiced it in the eyes of the English hierarchy, as it certainly did in those of the Popes. At all events, there is abundant evidence both of the fact that candidates for Holy Orders resorted to Oxford in diminished numbers, and of the construction which the University authorities put on that fact. In 1417, and again in 1438, the Archbishop and Bishops in Convocation issued an appeal to patrons of benefices, calling upon them to give a preference to University

graduates. The memorial addressed to Convocation on behalf of the University in 1438 complains that her halls were deserted, and that not one thousand remained out of the many thousands reported to have attended the schools of Oxford in the last age—when, as we learn from a Royal charter (of 1355), ‘a multitude of nobles, gentry, strangers, and others continually flocked thither.’ It is stated that in 1450 only twenty out of two hundred schools which had once been filled continued to be used for purposes of education. A few years later we find a license granted to poor scholars, authorising them to beg for alms—a practice of which Sir Thomas More speaks as if it were not obsolete in his own time. It was to meet the necessities of these destitute students that Archbishop Chichele established a new University Chest; and it was for the relief of the *pauperes et indigentes*, no less than for the support of the secular clergy, whose decline at Oxford is amply attested by his charter, that he afterwards founded the great college of All Souls.

University
delegates at the
Councils of
Constance and
Basle

Notwithstanding this decline, and the undoubted decay of learning, we must not exaggerate either the actual degeneracy of the University or its loss of reputation in Europe. No doubt, the French Wars tended to weaken its ancient alliance with the great University of Paris, and the growth of a native English literature under the inspiration of Chaucer and Wyclif may well have contributed to its isolation, until it came under the spell of the Italian Renaissance. But it is an error to assert that Oxford was ‘nowhere to be found in the great Church Councils of the fifteenth century.’^[9] On the contrary, it was very ably represented, both at Constance in 1414 and at Basle in 1431. At the former of these Councils, Henry de Abendon, afterwards Warden of Merton, defended with signal effect the claim of England to precedence over Spain, and of Oxford to precedence over Salamanca. In order to defray the expense of sending ‘orators’ to Basle, the University, in its poverty, solicited a contribution, ‘were it ever so small,’ from the Convocation of the Clergy. It found a worthy delegate, however, in John Kemp, also of Merton, afterwards Archbishop of Canterbury, who, at the subsequent Council of Florence, was made a Cardinal by the Pope.

Foundation of
Lincoln and All

Nor must we forget the great collegiate institutions which owe their origin to this obscure period. The first

of these, Lincoln College, was founded in 1427, on a much humbler scale than New College, by Richard Flemmyng, Bishop of Lincoln, who, having been a zealous promoter, became a fanatical opponent of Wyclif's doctrines, and distinguished himself at the Council of Siena by attacks against the Hussites. His main object was to extirpate the Wycliffite heresy, and he specially provided that any Fellow tainted with these heresies was 'to be cast out, like a diseased sheep, from the fold of the college.' All Souls, founded in 1438 by Archbishop Chichele, was a far grander monument of academical piety and was almost unique in its constitution. The college was specially designed to be a chantry, but it was also to be a place of study, and was to some extent modelled on New College, where Chichele himself was educated. There were to be forty scholars, being clerks, bound to study without intermission, twenty-four of whom were to cultivate Arts and philosophy or theology, and sixteen the canon or civil law. Magdalen College was founded in 1457 by William of Waynflete, Bishop of Winchester, upon a plan borrowed from New College, but without the peculiar feature of organic connection with a public school, though its founder had been himself the head-master both of Eton and of Winchester. There are clear traces in the statutes of the coming Renaissance. Theology remains supreme, as at New College, but moral and natural philosophy take the place of civil and canon law. Grammar is preferred to logic, and even Latin verses are recognised. Moreover, the lecturers in divinity and the two philosophies are to instruct not only the college but the whole University.

While the collegiate system was thus expanding, and classical scholarship was beginning to germinate under its shelter, the resources of the University were enriched by two important accessions—the edifice of the Old Schools, and the Library presented by the 'good' Duke Humphry of Gloucester. In the early part of the fifteenth century, thirty-two 'schools' were ranged along School Street, between the west end of St. Mary's and the city wall, near the present theatre. These schools had superseded the simple chambers which the University had a prescriptive right to hire in the houses of private citizens. Many of them belonged to Oseney Abbey, and in the year 1439 some fourteen of these, being ruinous, were taken down and rebuilt by the Abbot, Thomas Hokenorton. The fabric erected by him is described as a long pile of stone

masonry, wholly destitute of architectural effect, consisting of two stories, and divided into ten schools, five above and five below, which, however, possessed no monopoly of University lectures or exercises, since these continued to be carried on in other public schools, if not in private lecture rooms, despite prohibitory statutes. One reason why School Street was selected as the privileged quarter for lecturing was doubtless that it immediately adjoined St. Mary's Church, which contained the old Congregation-house, in which the University held all its solemn meetings, and which, in the Middle Ages, had served at once as the court-house, the legislative chamber, the examination-room, the public treasury, the hall of assembly, and the place of worship, for the whole University. In this church theological lectures had now been given for a century, since the Dominicans and Franciscans had been compelled to abandon their practice of teaching divinity to University students within their own walls, and the University could afford to despise the rivalry of other religious Orders lodged in the suburbs, at a distance from School Street. In 1426 or 1427 a vacant plot was purchased by the University from Balliol College, and in 1480 the present Divinity School was finally opened for the greatest of the faculties, by the aid of liberal contributions from the Benedictine monks, Archbishop Chichele, several cathedral bodies, Duke Humphry, and the executors of Cardinal Beaufort, Archbishop Kemp, and Edmund Duke of Somerset of 1447. In the meantime, Duke Humphry, acceding to a suggestion from the University, had initiated the erection of a Public Library over the Divinity School. The building was retarded by the withdrawal of the masons, under Royal mandate, for works at Windsor and Eton, nor was it completed till 1480, by the aid of Thomas Kemp, Bishop of London, who contributed 1,000 marks, and has been regarded as a second founder. The original collection of books presented by Duke Humphry to the University in 1439 consisted of 129 volumes only, but it was supplemented by a second gift in 1443. Still, the whole University Library, comprising the previous legacies of Angerville and Cobham, is said to have contained no more than 500 volumes when it was dispersed at the Reformation. Duke Humphry is also said to have instituted a professorial Chair for Arts and Philosophy, which, however, never came into operation, perhaps because the means were not forthcoming to endow it adequately. For it is certain that at this period the resources of the University were miserably small, and chiefly wasted in the enormous expense of suits at the Court of Rome, whose appellate

jurisdiction it had always respected, and whose immediate intervention it often invoked.^[10]

Final organisation
of mediæval
lectures and
examinations

The mediæval system of academical studies and examinations may be considered to have reached its maturity in the middle of the fifteenth century. At this period the University enjoyed comparative repose, and its constitution was fully organised, though its vigour, as we have seen, was grievously impaired. Nine colleges had already been founded, and, by the statute passed in 1432 for the suppression of ‘chamber-dekyns,’ all members of the University were required to be inmates of some college or hall, except those who should be specially licensed by the Chancellor to live in lay houses. By another statute of the same year, the discipline of the University had been further secured by a peremptory rule that all principals of halls should be graduates, or qualified by learning and character to rule their respective households.^[11] The proctorial authority was now firmly established under the ordinance of 1343. Courses of public lectures were constantly delivered on all the subjects recognised by the University in the official schools, and private instruction was supplied to their own inmates by the various colleges and halls.

University
curriculum

The institution of an University curriculum, or a set course of books or subjects to be studied by candidates for degrees in the various faculties, may be dated from the statutes given to the University of Paris by the Cardinal Legate, Robert de Courçon, at the very beginning of the thirteenth century. The Oxford curriculum seems to have varied but little between the age of the schoolmen and that of the Renaissance. It is practically certain that admission to the University was guarded by no entrance examination. Grammar was treated as the essential foundation of all knowledge, and the University abounded in grammar schools, but the superstructure raised upon this foundation appears to have been mainly logical. Both grammar and logic, however, represented accomplishments which in that age were supposed to be useful—grammar as giving the power of reading and writing Latin; logic, supplemented by rhetoric, as the instrument of controversy and persuasion. Since proficiency in all studies was tested by disputation, logic was naturally elevated into a position of supremacy. A statute passed in 1408 required all candidates for what is now called a B.A. degree to become

‘sophistæ generales,’ and practise themselves in logical disputations for a year at least in the *‘Parvisum,’* or classrooms for beginners, before offering themselves for the preliminary ordeal of Responsions. This examination seems to have consisted in arguing and answering questions on a given thesis (*respondere ad quæstionem* or *de quæstione*), and the student who had passed it at the end of his first year was still bound under this statute to hear lectures on prescribed books in three branches of the Faculty of Arts—logic, mathematics, and grammar, which always ranked lowest in the scale of studies. The exercises which constituted *‘determination’*^[12] were conducted during Lent in the schools of Masters apparently selected by the candidates themselves, for the last clause in the statute actually protects them against impressment or solicitation by Masters desirous of forcing them into their own schools. The examination was mainly, if not exclusively, logical and grammatical, the duty of the examining master being to stop the candidate if he should wander into other subjects or use unsound arguments. Nothing is said in this statute of candidates once admitted to determine being rejected for incompetence, but there are rules to prevent their being admitted at all, unless duly qualified by character, ability, age, and even stature.

Statute of 1431,
regulating
‘inception’

The leading statute which regulated the more important act of *‘inception,’* or admission to the M.A. degree, was passed in 1431. It opens with a somewhat pedantic and solemn preamble, setting forth that everyone who aspires to be entitled a Master or Professor of Arts ought to have undergone a complete training in the seven sciences and the three philosophies. These seven sciences were no other than the old Trivials and Quadrivials which had become the standard subjects of education ever since the revival of learning under Charlemagne—grammar, rhetoric and logic; arithmetic, music, geometry and astronomy. The three so-called philosophies were natural, moral, and metaphysical. The statute proceeds to ordain that all who are presented for *‘inception’* shall have satisfied all the requirements for *‘determination,’* and shall also have regularly and earnestly attended lectures in the seven branches of knowledge here called the seven liberal Arts, as well as in the three philosophies, during eight years for at least thirty *‘reading’* days in each year,^[13] according to a certain graduated order prescribed in the statute itself. Thus, grammar was to occupy one

year, rhetoric three years, logic three years, arithmetic one year, music one year, geometry two years, astronomy two years, natural philosophy, moral philosophy, and metaphysical philosophy three years each. The orthodox text-books in which each subject is to be studied are specifically mentioned, and include Priscian, Boethius, and Euclid, but, above all, Aristotle, who is recognised as the supreme authority on rhetoric, logic, and all three philosophies.

Duties of regent
masters

Having fulfilled all these conditions, and procured all the necessary certificates of his moral and intellectual competence, the bachelor applying for a M.A. degree was presented before the Chancellor and Proctors in Congregation, when, after taking certain oaths, one of which bound him not to foment quarrels between Northerners and Southerners, he was officially licensed to deliver lectures. On this ceremony, which constituted him a Master of Arts, the statute of 1431 is silent, but we know from other sources that a M.A. degree was chiefly, if not exclusively, sought as a passport to 'inception.' This inception, which involved much expense^[14] and was attended by many formalities, consisted in taking possession of a school, and solemnly commencing a course of lectures as a teaching or 'regent' master. It is provided in the statute that at the end of every term (or year) the proctors shall ascertain the number of regent masters willing to lecture, and shall divide them according to seniority, into ten companies as nearly equal in number as possible. The junior company, with the superintendents of grammar schools, are to lecture in grammar, and the rest are apparently to be so ranged in an ascending scale that the highest subjects may be assigned to the seniors. It is expressly ordained, in order to exclude forbidden lore, that none shall lecture in any books except those allowed by statute. The mode of lecturing is also strictly prescribed. First, the text is to be read out, then its substance and meaning are to be explained; afterwards special passages are to be noted, and lastly, questions are to be raised and discussed, but only such as naturally arise out of the text, so that no prohibited sciences may be taught. Such provisions for public lecturing were necessary before either an University professoriate or a system of college tuition was developed, and all regent masters, unless exempted, were statutably bound to lecture for nearly two years after inception. During this period they were also specially bound to attend the University 'Congregation,' by which degrees were granted, and even when they

became non-regents they were liable to be summoned for this purpose by the University Bedel, who sounded a bell in order to make a quorum; whence that assembly was technically called the House of Regents and Non-Regents. In the earliest times, when it consisted of teachers only, it had been the sole legislature of the University. It seems, however, that when degrees were more and more sought as titles of honour or certificates of proficiency, and graduates frequently obtained exemptions from the duty of teaching, another more select body, called the ‘Black Congregation,’ assumed the right of discussing measures to be afterwards laid before the ‘Great Congregation,’ as it then came to be called, or ‘Convocation,’ as it was called in later times, when the preliminary assembly had at last usurped the name of ‘Congregation.’

Residence for
degrees in the
higher faculties

The faculty of Arts, however, was but one of several, though it embraced the great majority of graduates, and maintained an undisputed supremacy. The ‘science’ of grammar always filled a subordinate position, and its requirements were less onerous, but in all the superior faculties of civil or canon law, medicine, and theology, the ordinary rule was to have graduated first in Arts, and afterwards to have responded, disputed, and determined in the studies of the faculty before incepting and receiving the final degree of Master or Doctor, then practically synonymous. Even those who had graduated in Arts were required to study theology five years before their ‘opponency’ or degree-examination, while those who had not so graduated were compelled to go through a seven years’ course; and in either case two years more of probation were exacted before permission could be obtained to lecture on the ‘Sentences.’ Thus an Oxford career occupied far more of life in those days than in our own, and academical residence certainly extended over a greater part of each year. It was a natural consequence that University influences left a far deeper impress on the characters and minds of the students, and that such movements as the Renaissance and the Reformation passed through a long period of academical incubation before they acquired a hold over the mass of the nation.

FOOTNOTES:

[9] Huber's *English Universities*, vol. 1, ch. vi., sect. 80.

[10] An instance of this may be found in the care taken by Archbishop Chichele, in 1439, to procure a Bull from Pope Eugenius IV. for the foundation of All Souls' College.

[11] These statutes were little more than repetitions or confirmations of ordinances made by King Henry V. in 1421.

[12] The meaning of 'determination' is still the subject of dispute. Mr. Boase, in the preface to his *Register of the University of Oxford*, explains it thus: 'After taking his degree, the bachelor "determined," that is, instead of disputing himself, he presided over disputations, and gave out his determination or decision on the questions discussed.'

[13] This seems the most probable interpretation of a somewhat obscure passage in the statute, which speaks of *octo annorum terminos*, and afterwards of *tres terminos* or *duo terminos anni*, as if *terminus* signified a period, and not an academical Term. It would be almost impossible to attend all the lectures here required for thirty reading days in each Term.

[14] It is stated that, so far back as 1268, the inceptors in civil law were numerous enough to overflow the Oxford hostels, and to be quartered in Oseney Abbey. In 1431 the expense to be incurred in scholastic banquets on inception in arts was limited by statute.

CHAPTER VII.

THE RENAISSANCE, THE REFORMATION, AND THE TUDOR PERIOD.

Revival of
academical life at
the end of the
fifteenth century

The reign of Edward IV. may be regarded as a singularly blank period in University annals. The Wars of the Roses, in which feudalism perished by its own hand, but which left so few traces on the national life, hardly disturbed the academical repose; and the obscurity which hangs over the next chapter in the history of the nation rests equally upon that of the University. But a gradual recovery was in progress, and soon yielded visible fruits. The close of the fifteenth century found the University of Oxford far more complete in its outward structure, if somewhat less vigorous in its inward life, than it had been two centuries earlier. It was no longer a loose aggregate of students under the paramount jurisdiction of a bishop resident at Lincoln, but an organised institution, with a government of its own, under the special protection of the Crown, and capable of being used as a powerful engine for effecting or resisting changes in Church or State. While the old order was yielding place to new, and the fountains of scholastic thought were running dry, there had been a marked decay in academical energy, and the declining number of students attested the decreased activity of teaching. But the revival of classical learning, promoted by the dispersion of Greek scholars after the fall of Constantinople, was accompanied or followed by that marvellous series of events which divides modern from mediæval history—the invention of printing, aided by the improvement of paper-making; the discovery of America; the consolidation of the European monarchies; and the Reformation itself. The first effect of the enthusiasm kindled by these new influences was to invigorate the University; it was not until their secondary effects were felt that a reaction manifested itself.

Checked by the
Reformation

The great educational movement which sprang from the Reformation was essentially popular rather than academical, and by no means tended to increase the relative importance of the Universities. The cause of this is not difficult to discover. When the only books were manuscripts, the Universities and the very few other institutions which possessed large collections of manuscripts attracted the whole literary class from all parts of the country. When instruction in the sciences was only to be obtained from the lips of a living teacher, and when schools hardly existed elsewhere, except in connection with cathedrals or monasteries, the lecture rooms of Oxford were thronged with students of all ages, and represented almost the entire machinery of national education. When the Church ruled supreme over the wide realm of thought, and learning was the monopoly of 'clerics,' the great ecclesiastical stronghold of Oxford far surpassed the metropolis itself as an intellectual centre. When Latin was the one language of scholars, and English literature scarcely existed, the academical masters of Latinity, especially as they were carefully trained in disputation, maintained a peerless supremacy over their less favoured countrymen. In the larger and freer life which took its birth from the Reformation, the exclusive privileges of the Universities became inevitably depreciated, and their degeneracy in the early part of the sixteenth century presents a humiliating contrast with their ascendancy in the fourteenth. The dissolution of monasteries, the high-handed visitations of the Tudor Sovereigns, and the diversion of the national energies into new careers, operated concurrently to empty Oxford of students, nor was it until near the end of the century that its tone was gradually restored by the wise policy of Queen Elizabeth.

Pioneers of the new
learning at Oxford

During the reign of Henry VII. the University was strongly agitated by the struggle between the old scholastic philosophy and the new learning of the Renaissance. The credit of introducing classical studies, and especially that of Greek literature, has sometimes been claimed for the Reformation, but it is rather due to a liberal spirit then springing up in the Catholic world, and especially to Italian influences. It was from Italy that England caught the new impulse, and that Oxford imported numerous MSS. of classical authors, while printing was still almost a fine art. Perhaps the foundation of grammar schools at Winchester and Eton for the special instruction of boys in Latin may have contributed to pave the way for the classical revival at

the Universities. At all events, it was in progress before the Reformation, and was promoted by several enlightened bishops and abbots of the old religion, and may not improperly be regarded as a legacy of Catholic to Protestant England. Writing in 1497, Erasmus, who is sometimes described as the father of classical studies in England, speaks of a 'rich harvest of classical literature' as already flourishing at Oxford on every side, and declares that he could well nigh forget Italy in the society of Colet, Grocyn, Lynacre, and More. Indeed, he places England, in respect of culture, above France or Germany, and second to Italy alone. In fact, we soon afterwards find Richard Croke, an Englishman, teaching Greek at Leipsic, whence he migrated, a few years later, to succeed Erasmus himself as Professor at Cambridge.

Erasmus, More,
Colet, Grocyn, and
Linacre

During his first visit to Oxford, Erasmus lodged in a conventual house of Augustin Canons, known as St. Mary's College, opposite New Inn Hall. Of the names thus commemorated by him, that of Sir Thomas More belongs to the political history of England, but he also deserves to be remembered as the young student of Canterbury College, among the most ardent disciples and most zealous promoters of classical teaching at Oxford. Colet, who had known More in the house of Cardinal Morton, and who became famous as the founder of St. Paul's School, was educated at Magdalen College, but afterwards visited France and Italy, whence he returned in 1497, to lecture publicly but gratuitously on St. Paul's Epistles, and to become a leading pioneer of Latin scholarship in the University. Grocyn had been elected Fellow of New College as far back as 1467, and was Divinity Reader at Magdalen College about 1483. It was not until some years later that he went to Italy for purposes of study, and devoted himself to Greek and Latin. On his return, he resided in Exeter College, and delivered the first public lectures on Greek, which seem to have been attended by Erasmus himself, who speaks of him with unfailing respect. Lynacre was elected Fellow of All Souls in 1484, but, like Colet and Grocyn, owed his erudition chiefly to his residence in Italy, where he became Professor of Medicine at Padua. But his range of studies was so wide that it was doubted of him whether he was 'a better Latinist or Grecian, a better grammarian or physician.' In modern times he is chiefly known as among the founders, and as the first President, of the College of Physicians; while his principal claim to gratitude at Oxford consists in his

posthumous foundation of two Readerships in Physiology at Merton College, which have since been consolidated into a Professorship of Anatomy. The new studies, however, met with violent opposition, and several University dignitaries publicly lectured against Erasmus. Indeed, if we are to believe Anthony Wood, in spite of all the reformers' efforts, academical learning was still in a deplorable state in 1508, the last year of Henry VII.'s reign. 'The schools were much frequented with querks and sophistry. All things, whether taught or written, seemed to be trite or inane. No pleasant streams of humanity or mythology were gliding among us, and the Greek language, from whence the greater part of knowledge is derived, was at a very low ebb, or in a manner forgotten.'

Foundation of
Corpus Christi
College by Bishop
Fox

The first endowed lectureship of the Greek language at Oxford was instituted by Richard Fox, Bishop of Winchester, in 1516, as part of his new foundation of Corpus Christi College. His original intention had been to found a monastery, and in founding a college instead, with twenty fellows and twenty scholars, he clearly showed his desire to encourage the classics by providing also for Professors of Greek and Latin, as well as of theology, whose lectures should be open to all the University. By virtue of this endowment, Bishop Fox has been regarded as the founder of the professorial system, though he must perhaps share that honour, not only with William of Waynflete, but with Margaret, Countess of Richmond, mother of Henry VII., who had already founded the Margaret Professorship of Divinity in 1502. But Fox's liberal spirit and sympathy with the Renaissance was shown in provisions, hitherto unknown, for instruction in the classical authors, for the colloquial use of Greek as well as Latin, and for the election of lecturers from Greece and Southern Italy. It was upon these grounds that Erasmus predicted a great future for the college as a stronghold of the classical movement.

Greeks and Trojans

That movement had already provoked a strange outbreak of academical barbarism in the University of Oxford. The faction of 'Trojans,' as they called themselves, from their enmity to Greek letters, seems to have been partly animated by a popular aversion to change, and partly by a far-sighted appreciation of the anti-Catholic tendencies inherent in the Renaissance. It is said to have originated in hostility to Grocyn's Greek lectures at Exeter

College; but it reached its height in the early part of Henry VIII.'s reign, by which time, however, the classics had won powerful friends at Court, and the 'Greeks' were protected by a peremptory Royal order, issued in 1519. It is remarkable that no trace of these fierce controversies between Scholasticism and the New Learning, still less of the impending revolution in the national religion, is to be discerned in the statutes of Brasenose, the latest of the pre-Reformation colleges, issued in 1521, nine years after its foundation. Under these statutes the scholars were bound to study the old subjects of the scholastic curriculum, 'Sophistry, Logic, and Philosophy, and afterwards Divinity ... for the advancement of Holy Church, and for the support and exaltation of the Christian faith.' On the other hand, there are ample proofs that long before the Old Learning ceased to rule the University system of disputations and examinations, the Renaissance had already penetrated into the University and College Libraries.

Cardinal Wolsey
and the foundation
of Christ Church

The great minister of Henry VIII., Cardinal Wolsey, must always be remembered as the most discerning as well as the most generous patron of liberal culture, which he admired for its own sake, though he naturally regarded it as the handmaid of the Church. It was in 1518 that Wolsey came to Oxford, in company with Catharine of Aragon, while the King remained behind at Abingdon. The University, doubtless perceiving the danger of impending spoliation, 'made a solemn and ample decree, not only of giving up their statutes into the Cardinal's hands, to be reformed, corrected, renewed, and the like, but also their liberties, indulgences, privileges, nay the whole University (the colleges excepted), to be by him disposed and framed into good order.' Wolsey did not disappoint their confidence, and some five years later (in 1523) returned the charters, with a new and still more beneficial one procured from the King. At this period he is believed to have contemplated the foundation of more than one University professorship and the erection of University lecture-rooms, but if he ever entertained such an idea, it was abandoned. In the meantime, however, he was projecting the foundation of a college for secular clergy on a scale of grandeur hitherto unknown, for the purpose (as Huber well says) of 'cultivating the new literature in the service of the old Church.' In order to endow 'Cardinal College,' as it was to be called, twenty-two priories and convents were suppressed, under Papal and Royal authority, and their revenues, amounting to 2,000*l.*, were diverted to the maintenance of ten

professorships, as well as of sixty canonists and forty priests. The students were to be trained in a great school founded at Ipswich, as those of New College were trained at Winchester. The first stone of the building was laid in 1525; scholars had been engaged from Cambridge and the Continent to serve on the professorial staff; the abbey church of St. Frideswide's had been appropriated as the college chapel; and the splendid kitchen, still preserved, was already completed, when the fall of Wolsey in 1529 arrested the execution of this grand design.

Action of the
University on the
questions of the
Divorce and the
Royal Supremacy

The King, engrossed with the question of obtaining a divorce from Catharine of Aragon, was in no mood to indulge the sympathy which he really felt towards learned institutions, and was rather bent on obtaining a favourable award from Oxford and the other great Universities of Europe on the legality of his marriage. The compliance of the Oxford Convocation was not extorted without grievous pressure. The younger Masters of Arts, as Wood informs us, stood firm in refusing to sanction the divorce, and, notwithstanding a threatening letter from the King himself, the desired vote was only secured, after repeated failures, by the exclusion of the graduates in Arts from the Convocation. Soon after this memorable but somewhat disgraceful vote, in April 1530, the King again visited Oxford, and took back into his own hands the charters both of the University and of the city, which had again begun to challenge academical privileges. They were not restored until 1543, and during the interval the University was again invited to pronounce a solemn verdict—no longer upon a question of private right, but on the gravest issue of national policy ever submitted to its judgment. For by this time the preliminary events which ushered in the English Reformation were following each other in rapid succession. In July 1530, the replies of several Universities in favour of the divorce had been forwarded to the Pope by the hand of Cranmer, and in the following March they were laid before Parliament. In November 1530, Cardinal Wolsey, charged with treason, died at Leicester on his way to the Tower. At the beginning of 1531, the clergy, having bought off the penalties of *præmunire*, were induced, under strong pressure, to acknowledge Henry as 'Head of the Church and Clergy, so far as the law of Christ will allow.' In 1532, an Act was passed for restraining all appeals to Rome, Sir Thomas More resigned the Chancellorship, and Henry married Ann Boleyn. In 1533, Cranmer, having succeeded Warham

as Archbishop of Canterbury, not only pronounced the King's marriage with Catharine to be null and void, but that with Anne Boleyn to be good and lawful. In 1534, the clergy in Convocation were forbidden to make constitutions except by the royal assent, and the Act was passed forbidding the payment of *annates* to Rome. In the same year the formal separation of the English Church from Rome was consummated by the great Act 25 Hen. VIII. cap. 21, which left doctrine untouched, it is true, but abolished the authority of the Pope in England, while it also rendered the monasteries liable to visitation by commission under the Great Seal. In 1535, under the Act of Supremacy (26 Hen. VIII. cap. 1), the King assumed the title of 'Supreme Head of the Church of England'; Bishop Fisher and Sir Thomas More were executed for denying the Royal supremacy, and Thomas Cromwell was appointed Vicar-General of England.

Compliance of the
University
rewarded by Royal
favour

It was in 1534 that the University was invited to concur in the foregone conclusion in favour of separation from Rome, dictated by canonists and theologians in the King's interest. It did so with little hesitation, and it is probable that an honest zeal for the independence of the National Church mingled with less worthy motives in eliciting the required consent. Moreover, Protestant doctrines, propagated by some of the scholars imported from Cambridge and the Continent, had already taken root in Oxford soil, and several members of Cardinal College had already undergone persecution. In the following year a visitation of the University was instituted, for the double purpose of establishing ecclesiastical conformity and supplanting the old scholastic culture by a large infusion of classical learning. The study of the Canon Law was suppressed, and Leighton, one of the visitors, joyfully reported that 'Dunce' (Duns Scotus) was 'set in Bocardo,' or relegated to an academical limbo, while the leaves of scholastic manuscripts, torn up by wholesale, might be seen fluttering about New College quadrangle. On the other hand, the study of Aristotle was enjoined, together with that of the Holy Scriptures, and an important concession was made to reward the loyalty of the University, which had cheerfully surrendered its rights and property into the King's hands. It was now exempted from the payment of tenths, or first fruits, granted by statute to the Crown, on condition of such classical lectureships being founded there 'as the Kynge's majestie shall assigne or appoynte.' The support of these lectureships was charged upon the five colleges

supposed to be the richest, including Corpus, where classical lectureships already existed, and the students of the other seven colleges were directed to attend some of the courses daily. At the same time, following the example of his grandmother, the Countess Margaret of Richmond, the King founded and endowed with a yearly stipend of 40*l.* each five Regius Professorships of Divinity, Hebrew, Greek, Medicine, and Civil Law. The endowment was, of course, derived from the spoils of the Church, but Henry VIII. deserves credit for a sincere desire to promote learning. In 1532, three years after Wolsey's fall, he took up his great minister's design and refounded Cardinal College, though on a reduced scale, under the name of King Henry the Eighth's College. In 1545 he dissolved it, and finally reconstituted it under the name of Christ Church, and in the following year transferred his new episcopal see of Oxford from Oseney Abbey to St. Frideswide's, blending the collegiate with the cathedral establishment by placing it under the control of a dean and eight canons. We owe to Holinshed the memorable reply made by the King to some of his courtiers who fondly hoped that he would have dealt with University endowments, and especially with this infant college, as he had dealt with the monasteries. 'Whereas wee had a regard onlie to pull down sin by defacing the monasteries, you have a desire also to overthrow all goodness by subversion of colleges. I tell you, sirs, that I judge no land in England better bestowed than that which is given to our Universities. For by their maintenance our realme shall be well governed when we be dead and rotten. I love not learning so ill that I will impair the renewes of anie one House by a penie, whereby it may be upholden.'

The first effects of the Reformation injurious to the University

The reason why college revenues were spared while monastic revenues were confiscated is not difficult to divine, without supposing that Henry VIII. was pacified by the mediation of Catherine Parr. The occupants of monasteries were regarded as mercenaries of a foreign power which had become the enemy of the monarchy; the colleges were nurseries of the secular clergy, who had never been obnoxious to the State, who shared to a great extent the national spirit, and most of whom adopted the new ecclesiastical order. The wise foresight of the founders had excluded monks and friars as aliens from collegiate societies; the constitution of these was mainly secular, and their dissolution was not demanded by popular opinion. Nevertheless, the general sense of insecurity

and habit of servility which prevailed under the despotic rule of Henry could not but have a blighting effect on University life. Such acts as the execution of Sir Thomas More, one of the brightest stars of the English Renaissance, and the arbitrary restrictions imposed on Protestantism by the Six Articles, struck at the root of intellectual liberty, and the early stages of the Reformation went far to depress the academical enthusiasm kindled by the Catholic Renaissance.

Iconoclastic
visitation under
Edward VI.

The dissolution of the monasteries, instead of aggrandising the University, contributed to depopulate it, since many of the poorer students, formerly harboured in monastic houses or lodgings, or supported by monastic exhibitions, were now cast adrift. The Colleges and Chantries Act, though never strictly executed, shook public confidence in academical endowments, and at the beginning of Edward VI.'s reign the University was far less prosperous than it had been under Wolsey. The number of degrees continued to fall off, and the number of halls to dwindle, as religious controversy usurped the place of education, and the University was used as an instrument to advance the political or ecclesiastical aims of the Sovereign. Henry VIII. had obtained its sanction to his divorce and to his revolt against Rome; the Protector Somerset and Cranmer determined to reform it in the interests of the new Anglican Church. Several years before, Cranmer had appointed commissions to regulate internal discipline in two colleges of which he was Visitor, but the Injunctions which he issued upon their recommendation involved no change of religious faith or ordinances. Another royal commission or Visitation, with sweeping powers, was issued for this purpose in 1549. A like commission was appointed for the University of Cambridge, and the new statutes drawn up for both Universities were framed on like principles, 'in order that each eye of the nation might be set in motion by similar muscles.' The 'Edwardine' code, as it was afterwards called, was of course so framed as to eliminate everything which favoured Popery from the constitution of the University, but it was not otherwise revolutionary, and, though it soon fell into disuse, it remained nominally in force until it was abrogated by the 'Caroline' statutes under the chancellorship of Laud. But the commissioners were not equally forbearing in their treatment of individuals, for they proceeded to expel all academical dignitaries found guilty of upholding the old faith. In dealing with colleges, the spirit in which they acted was ruthlessly iconoclastic, and not only were

the old services abolished, but altars, images, statues, ‘the things called organs,’ and everything else which seemed to savour of ‘superstition,’ were defaced or swept away. The demolition of the magnificent reredos in the chapel of All Souls’ was assuredly no isolated specimen of their handiwork, though we have no equally striking record of Vandalism in other colleges. The amount of destruction wrought by their orders among the libraries and chapels of colleges cannot now be estimated, but it was certainly enormous, and ‘cartloads’ of classical and scientific manuscripts were consigned to the flames, together with many an illuminated masterpiece of scholastic literature.

Leniency towards
colleges

At the same time, while the study of canon law was virtually suppressed, that of civil law, ancient philosophy, Hebrew, mathematics, logic, rhetoric, and medicine was expressly encouraged by the Visitors. Eminent theologians were invited from the continent, and the lectures of Peter Martyr and others who accepted the invitation were crowded with eager students. It was even designed to reconstitute All Souls’ as a college for the special cultivation of civil law, while New College should be devoted exclusively to ‘artists.’ Many exhibitions for poor boys were suppressed, the Magdalen Grammar School was saved only by earnest remonstrances from the citizens, and some new dispositions were made of college revenues with little regard to founders’ intentions. But the spoliation does not seem to have been so indiscriminate as Anthony Wood represents it. The Protector Somerset, being pressed, like Henry VIII., to sanction the general disendowment of colleges, repelled the proposal with equal indignation; and indeed there is some reason to believe that colleges were now regarded with peculiar favour as seminaries of classical learning, and comparatively free from the scholastic and mediæval spirit which still animated the University system. Perhaps for this reason the Visitors forbore to exercise their power of consolidating several colleges into one, though they did not scruple to remove obnoxious Heads and fellows. Some of their injunctions exhibit much good sense, and even anticipate modern reforms, such as those which make fellowships terminable and tenable only on condition of six months’ residence, which insist on a matriculation-examination in grammar and Latin, and which require that lectures shall be followed by examinations. It is remarkable that at Magdalen and All Souls’ one fellowship was to be reserved for Irishmen. Others of their injunctions were purely disciplinary,

such as those which prohibit undue expenditure on banquets after disputations, the practice of gambling, and the use of cards in term-time. Such regulations point to an increase of luxury consequent on the development of colleges, originally designed for the poor but now frequented by a wealthier class. Polemical divinity, stimulated by Peter Martyr's discourses on the Eucharist, continued to flourish; but, with this exception, University studies were languishing, and while foreign divines were being imported into England, Oxford professors of civil law were emigrating to Louvain. The non-collegiate students became fewer and fewer; the most experienced teachers gradually disappeared; the impulse of the Renaissance died away; the new spirit of inquiry failed to supply the place of the old ecclesiastical order; the attractions of trade began to compete with those of learning, and the Universities no longer monopolised the most promising youths in the country who declined the profession of arms.

Reaction under
Mary. Martyrdom
of Ridley, Latimer,
and Cranmer

The accession of Mary, in 1553, ushered in a short-lived reaction. As the leading Romanist divines had quitted Oxford on the proclamation of Edward VI., so now the leading Protestants, headed by Peter Martyr, were fain to make their escape, though not till after Jewell had been employed to draw up a congratulatory epistle to the Queen, whose policy was not fully revealed at the outset of her reign. Heads and fellows of colleges were released from their obligation to renounce the authority of the Pope, the Mass superseded the Common Prayer-book, and Gardiner, bishop of Winchester, instituted a Visitation of the three colleges under his own personal jurisdiction. After the execution of Lady Jane Grey and the Queen's marriage with Philip II. the spirit of persecution rapidly developed itself, all statutes passed against the Papacy since the twentieth year of Henry VIII. were repealed, the statutes passed against heretics in the reigns of Henry IV. and Henry V. were revived, and Oxford became the scene of those Protestant martyrdoms which have left an indelible impression of horror and sympathy in the English mind. Several victims of Catholic intolerance had already perished at the stake, when Cranmer, Ridley, and Latimer were brought to Oxford for the purpose of undergoing the solemn farce of an academical trial, and thus implicating the University in the guilt of their intended condemnation. At a convocation held in St. Mary's Church a body of Oxford doctors was commissioned to dispute

against the Protestant bishops on the Eucharist, in concert with a body of Cambridge doctors similarly commissioned. The so-called ‘disputation’ took place in the Divinity School. A day was assigned to each prisoner, the academical judgment was of course given against them, the judicial sentence soon followed, and on October 15, 1555, Ridley and Latimer were led out to be burned in Canditch, opposite Balliol College, where a sermon was preached before the stake by Dr. Richard Smyth on the text, ‘Though I give my body to be burned, and have not charity, it profiteth me nothing.’ Cranmer’s execution was delayed for months, since it required the sanction of Rome, and his courage, as is well known, gave way under the fear of death. His recantation came too late to save his life, yet he was called upon to repeat it in St. Mary’s Church on his way to his doom. Instead of doing so, he publicly retracted it before the assembled University, with earnest professions of remorse. He was not allowed to conclude his address, but hurried off with brutal eagerness, to give at the stake that marvellous example of heroic constancy which has atoned for all his past errors in the eyes of Protestants, and crowned the martyrdoms of the English Reformation. From that moment the cause of the Catholic reaction was desperate in the University, no less than in the nation. Queen Mary conferred upon it many benefits and favours, and won the servile homage of its official representatives, but she never won the hearts of the students, and the news of her death was received with no less rejoicing in Oxford than in other parts of England.

Visitation and
reforms of Cardinal
Pole

In the meantime, however, a fresh Visitation of the University was set on foot, in 1556, by Cardinal Pole, who, having succeeded Gardiner as chancellor of Cambridge in the previous year, now succeeded Sir John Mason, the first lay chancellor of Oxford. He was the last in that line of cardinals, beginning with Beaufort, who, armed with the title of *Legatus à latere*, assumed to govern the English Church, as it had never been governed before, under the direct orders of the Pope. The Visitors deputed by him proceeded to hunt out certain obnoxious persons who had not withdrawn from Oxford, to burn all the English Bibles which they could find in the common market-place, and to purge the libraries of Protestant books. The Cardinal soon afterwards caused the University and college statutes to be revised, chiefly for the purpose of correcting recent innovations. For instance, while Edward VI.’s commissioners had

authorised the use of English in college halls, Cardinal Pole restored the old rule against speaking any language but Latin. It was also an avowed object of the revision to restore the supremacy of Aristotle and the study of scholastic philosophy. These changes, having scarcely been effected before they were reversed, fill less space in University annals than an incident of comparatively trivial importance, which must have outraged the Protestant sympathies of the Oxford townspeople. The wife of Peter Martyr had been interred in Christchurch Cathedral, near the relics of St. Frideswide. Pole now directed the dean, no unwilling agent, to exhume the body and cast it into unconsecrated ground. The Dean improved upon his instructions by having it buried under a dunghill, whence it was again disinterred, mingled with the relics of St. Frideswide, and finally committed to the grave in the year 1561. No wonder that Queen Mary's patronage proved a poor substitute for academical freedom, that learning continued to decline, that even sermons were rare and ill-attended, that lectures were almost suspended, that few 'proceeded' in any of the faculties, and that it was thought necessary to reduce the qualification of standing for the M.A. degree in order to reinforce the University with Masters.

Foundation of
Trinity and St.
John's Colleges

Two colleges, it is true, Trinity and St. John's, owe their origin to Mary's reign, and both were founded by Roman Catholics, but upon the ruins of monastic institutions, and before the Marian persecutions had borne fruit in the University. These colleges, as semi-Catholic foundations of the Reformation era, may fitly be regarded as forming landmarks between mediæval and modern Oxford.

CHAPTER VIII.

REIGN OF ELIZABETH AND CHANCELLORSHIP OF LEICESTER.

Visitation under
Elizabeth and
policy of
Archbishop Parker

With the accession of Elizabeth, in November 1558, the scenes were rapidly shifted, and the parts of the chief actors strangely reversed. For a while, in the quaint language of Anthony Wood, 'two religions being now as 'twere on foot, divers of the chiefest of the University retired and absented themselves till they saw how affairs would proceed.' They had not long to wait. Though she received graciously a deputation from the University, headed by Dr. Tresham, canon of Christchurch, and Dr. Raynolds, Warden of Merton, the Queen lost no time in announcing that she intended to visit it, and made a suspensory order in regard to all academical elections. In June she nominated a body of Visitors to 'make a mild and gentle, not rigorous, reformation.' One of these Visitors was Bishop Cox, of Ely, who had acted in a similar capacity under Edward VI., and the Visitation was conducted on much the same principles, except that it was less destructive. Still, compliance with the Act of Supremacy just passed was strictly enforced, and nine Heads of colleges, as well as the Dean and two canons of Christchurch, proving recusants, were ejected or forced to resign. Among these were Raynolds and Tresham, the former of whom died in prison. A considerable number of fellows are mentioned as having been expelled for refusing the oath, but the majority conformed. Some Protestant exiles returned from Zurich, Strasburg, and other foreign towns, where they had suffered great privations; but it is certain that Oxford lost many Catholic scholars whom she could ill spare, and suffered far more from the Elizabethan proscriptions than Cambridge, where the Reformation had been more firmly established. Peter Martyr and Jewell attested the intellectual and moral degeneracy of the University at the beginning of Elizabeth's reign, nor could it have been otherwise after such rapid vicissitudes in religious doctrine and ecclesiastical government, unsettling the minds of

students, and keeping academical rulers in a constant state of suspense or time-serving. It is certainly significant that in the very year after the Act of Uniformity was passed, establishing the revised Common Prayer-book, the Queen authorised the use of a Latin version thereof in college chapels in order to promote familiarity with Latin. But it is probable that this, like other concessions, was also due to a desire, which she fully shared with Archbishop Parker, to favour the growth of an Anglo-Catholic instead of a Puritan Church, and to encourage the Protestants without estranging the Romanists. Meanwhile Sampson, the dean of Christchurch, and Humphrey, the president of Magdalen, were zealous promoters of the Puritan movement, and as such distrusted by the queen, especially as they were known to be in correspondence with Geneva.

Chancellorship of
Leicester

In the year 1564 Robert Dudley, Earl of Leicester, became chancellor of the University, and continued in office nearly twenty-four years. With the exception of Sir John Mason, elected in 1552, and the Earl of Arundel, elected in 1558, he was the first layman who had held this high office, which, moreover, had always been filled by some resident member of the University up to the year 1484. Non-resident and courtier as he was, however, the office was no sinecure in his hands. During his long tenure of it, his influence made itself felt in every department of University life, and was mainly exercised in favour of the Puritans. For this reason, we cannot accept Anthony Wood's censure of him as that of an impartial historian, nor can it be denied that he took a genuine interest in the affairs of the University, and effected some useful reforms. One valuable concession obtained by the University under his chancellorship, and probably at his instance, was its incorporation in 1571 by an Act of Parliament, investing the 'chancellor, masters, and scholars' with the rights of perpetual succession, and confirming to it all the other privileges conferred upon it by previous monarchs. This parliamentary title relieved it from the necessity of seeking a new charter from each succeeding king, and is the organic statute by which its franchises are now secured. In the same year an Act was passed which, supplemented by further Acts passed five years later, has done more than any other to save the revenues of colleges from dissipation. The immense influx of gold from America, lowering the value of money, had proportionately raised the nominal value of land, and private landowners were reaping the advantage in sales and leases. The governing bodies of colleges, in turn, were exacting

increased fines on granting long leases at low rentals, to the injury of their successors. The Act of 13th Elizabeth checked this practice by enacting that college leases should be for twenty-one years, or three lives at most, with a reservation of the customary rent; but means were found to evade the Act, and it was necessary to make it more stringent. This was done by Acts of 18th Elizabeth, the more important of which, 'for the maintenance of colleges,' is sometimes attributed to the foresight of Sir Thomas Smith, and sometimes to that of Lord Burghley. It requires that one-third part at least of the rents to be reserved in college leases shall be payable in corn or in malt, at 6s. 8d. per quarter and 5s. per quarter respectively. As prices rose, this one-third ultimately far outweighed in value the remaining two-thirds, and became 'a second additional endowment' to colleges.

Changes in the
government of the
University

Another measure of more doubtful policy was passed by the University itself under the direct instigation of Leicester. We have seen that in the later Middle Ages an assembly consisting mainly of resident teachers, and called the 'Black Congregation,' held preliminary discussions on University business about to come before Convocation. In the year 1569, the Earl of Leicester procured orders to be framed by a delegacy and passed into statutes, whereby it was provided that in future this preliminary deliberation should be conducted by the Vice-chancellor, Doctors, Heads of Houses, and Proctors. This change marks a notable step in the growth of the college monopoly afterwards established, and could hardly have been carried while the monastic orders were still powerful in Oxford, and a large body of non-collegiate students were lodged in halls. Nor could the erection of such a legislative oligarchy, with a virtual power of suppressing obnoxious motions, be otherwise than unfavourable to freedom of teaching and government, however congenial to Tudor notions of academical discipline. Another change made by Leicester in the same year (1569), though dictated by a like spirit, cannot be regarded as an innovation, but rather as the restoration of an ancient usage. From the earliest times Chancellors of the University had been assisted by deputies, whom they appointed either periodically, or, more probably, as occasion might require. By the statutes of 1549, issued by Edward VI.'s Visitors, the right of electing these commissaries, or 'vice-chancellors,' as they came to be called, was vested in the House of Congregation. The practice of nomination was now resumed by Leicester, and has been maintained ever since. A somewhat

opposite tendency is to be observed in his abolition of the more orderly but more exclusive mode of electing proctors, which had grown up in lieu of the old tumultuous elections by an academical *plébiscite*, when the proctors represented the ‘nations.’ The nature of this restricted election, *per instantes*, as Anthony Wood calls it, is by no means clear; at all events, the unrestricted election was re-established by Leicester’s influence, and continued to produce the same disorders as ever, until it was finally reformed in 1629.

Leicester’s
administration of
the University

We have abundant proofs of Leicester’s active, and even meddlesome, interference with the details of University and college administration. Sometimes he recommends eminent foreigners for advancement, or accompanies them on visits to Oxford; sometimes he writes to urge the duty of encouraging more frequent University sermons; sometimes he corrects the abuses of disorderly and vituperative preaching by ordering that no one shall occupy the University pulpit without undergoing a probation in his own college; sometimes he rebukes the license of youth in respect of costume; sometimes he superintends the revision of University statutes by a delegacy mainly composed of Heads of colleges; nor must we overlook his gift to the University of a new printing-press. But the most permanent monument of Leicester’s chancellorship was the new test of subscription to the Thirty-nine Articles and the Royal Supremacy, to be required from every student above sixteen years of age on his matriculation. This rule was doubtless intended only to exclude the Romanising party from the University; but its ulterior consequences, unforeseen by its author, were mainly felt by the descendants of the Puritans. Thenceforth the University of Oxford, once open to all Christendom, was narrowed into an exclusively Church of England institution, and became the favourite arena of Anglican controversy, developing more and more that special character, at once worldly and clerical, which it shares with Cambridge alone among the Universities of Europe.

The letter, dated 1581, in which Leicester urges Convocation to adopt this disastrous measure, contains other recommendations directed to the same end. One of these is a proposal that, in order to prevent the sons ‘of knowne or suspected Papists’ being sent to Oxford to be trained by men of the same religion, every tutor should be licensed by a select board, to

consist of the vice-chancellor and six doctors or bachelors of divinity. A third proposal, of which the cause is not yet obsolete, was designed to check the conversion of professorships into sinecures, by providing for the appointment of substitutes where professors should fail to discharge their duties. All these regulations, with some others of a salutary kind, were sanctioned by decrees of Convocation, but it is clear from a vigorous remonstrance of the Chancellor, addressed to the University in the following year, that most of them remained a dead letter. This remonstrance deserves to be read, as illustrating the difference between Leicester in his capacity of courtier and in his capacity of University Chancellor. The political and private character of Leicester belong to history, and the verdict passed upon him is not likely to be reversed; but it is difficult, after studying this letter, to regard him as animated only by sinister and frivolous motives in his dealings with the University. On the other hand, there is clear evidence of wholesale favouritism and jobbery, as it would now be called, in his dispensation of his own patronage, and in his repeated and underhand attempts to control the patronage of colleges. Upon the whole, his administration of the University was less dishonest and more statesmanlike than might have been expected of so profligate a politician. It cannot be compared, however, with the wise administration of Cambridge by the great Burleigh, and the superiority of the sister-University, both in vital energy and in national esteem, during the Elizabethan age, was probably due in no small degree to the superior character of its Chancellor.

Depression of
intellectual life in
the University

Other causes, however, had contributed to depress the intellectual life of Oxford, and among these we must not omit to notice the withdrawal of many gifted scholars to seek liberty of conscience at the new Catholic seminary of Douay, founded in 1568. Leicester's agents were constantly on the watch against the reappearance of these 'seminary priests' at Oxford with intent to Romanise the University, and this perhaps was no imaginary danger; but neither learning nor education flourished under Oxford Puritanism. Writing in 1589, the year following Leicester's death, Whitgift fully confirms his estimate of the laxity prevailing at Oxford. In this very year an Act was passed to check the sale or corrupt resignation of fellowships—evils which owed their origin to the previous Act regulating college leases, and indirectly encouraging a system of money allowances to fellows, unknown in the previous century. The rise of grammar schools, one of the earliest and

best fruits of the Reformation, seems rather to have diminished than to have increased the demand for the higher University culture. Formerly, when Oxford itself was a vast group of grammar schools, many a boy who came there to learn grammar remained there to learn philosophy or law. Now, boys of the same class often got their schooling near home, and then betook themselves to one of the numerous vocations which trade and commerce were opening to English youth in that great age of enterprise and national expansion. Even the literature of Elizabeth's reign is courtly and popular rather than academical, and Oxford contributed little to it. Bacon was a student at Trinity College, Cambridge; Raleigh at Oriel College; Spenser and other Elizabethan poets had received an University education; but such men derived their inspiration from no academical source; their literary powers were matured in a very different school, and the one of their compeers whose fame eclipses all the rest, knew Oxford only as a traveller, on his journeys to Stratford-on-Avon. 'Home-keeping youths,' Shakspeare tells us, 'have ever homely wits,' and the saying is characteristic of an age in which foreign travel often supplied the place of University education.

Encouragement of study by Elizabeth, and foundation of the Bodleian Library

It was not until the later part of her reign that Queen Elizabeth actively patronised Oxford culture, and desired of the Chancellors of both the Universities that promising scholars might be recommended to her for promotion in Church and State. The stimulating effect of such patronage upon University studies very soon made itself felt at Oxford, and men like Sir Henry Savile were the direct product of it. A still more important recipient of Elizabeth's favour was Sir Thos. Bodley, student of Magdalen and fellow of Merton, who, having been a member of the Queen's household, was afterwards employed by her on missions to Germany, France, and Belgium. Among the many benefactors of the University his name still ranks first and highest. In boyhood he seems to have imbibed the literary spirit of the Renaissance under foreign instructors at Geneva, whither his family had fled to avoid the Marian persecution; at Merton he was one of the earliest readers in Greek, and his long residence abroad in middle life had quickened his scholarlike tastes. At last, at the age of fifty-three, he deliberately took leave of State employments, 'set up his staff at the library door' in Oxford, and devoted himself for the remaining fifteen years of his life to reconstructing and enriching the library of Duke Humphrey. In 1602, this building, renovated

and enlarged, was opened with a solemn procession from St. Mary's Church, and dedicated to the use of the University. The whole design was not completed until after his death; but the plan of it was fully matured, with the aid of Sir Henry Savile, by the founder, who drew the statutes with his own hand and collected some 2,000 volumes before the opening day. This noble gift excited the emulation of other donors, and probably did more than any Court patronage to promote learning in the University.

Increasing
refinement of
academical life

During the last seventeen years of the great Queen's reign the history of Oxford was unruffled by stirring events. That Leicester's constant remonstrances against idleness, sinecurism, and extravagance had not been capricious or unfounded, is proved by the fact of their being repeated and enforced again and again by his three successors. It was, indeed, the misfortune of the University that it was roused from the lethargy which oppressed it after the Catholic reaction, only to become the battle-ground of the Romanising and Puritan factions in the Anglican Church. While its highest dignitaries were mostly animated by intense party spirit rather than by zeal for education, its students fully shared in the genial laxity of manners, fostered by increasing luxury, which marked the Elizabethan age. Their numbers were increased, but the new recruits were drawn from a wealthier class; there were more young gentlemen among them, but fewer hardworking scholars; more of worldly accomplishments, but less of severe and earnest study. Many of them were destined for lay professions or even for trade, and many tutors were now laymen, yet it may be doubted whether there was as much real freedom of thought in the Protestant Oxford of Elizabeth as in the Catholic Oxford of the first three Edwards. The academical system was narrower in principle than in mediæval times, and the University had become a mere aggregate of colleges and privileged halls. On the other hand, these collegiate bodies were far more orderly and refined societies, and learned foreigners, of whom many found a welcome there, were impressed with the comfort and dignity of social life at Oxford, as compared with that of continental Universities. One of these, Albericus Gentilis, became Regius Professor of Civil Law, and for a while revived the waning interest of that subject, which the combined jealousy of the clergy and common lawyers had long discouraged as a branch of academical study.

Queen Elizabeth's
two visits to Oxford

Queen Elizabeth twice visited Oxford in state, once during her 'progress' in 1566, and again in 1592. On the first occasion she was accompanied by Leicester as Chancellor, and by Cecil as Secretary of State. She was hailed with effusive loyalty, and entertained for six days with an incessant round of festivities, orations, disputations, and Latin plays, which she bore with truly royal patience, winning universal homage by 'her sweet, affable, and noble carriage,' but frowning gently on divines of the Puritanical and Romanising parties, while she reserved her most winning smiles for the young students who amused her with their boyish repartees, sometimes expressed in Latin. It was not until twenty-six years later that she revisited the University, a prematurely old woman, but still accompanied by Cecil, now Lord Burleigh, stayed for the same period, and went through a repetition of the same ceremonials. This reception lacked the freshness of the former one, yet enabled the Queen to show that she had not forgotten either her Latinity or her academical sympathies. According to Anthony Wood, it was one of her objects 'to behold the change and amendment of learning and manners that had been in her long absence made.' It does not appear how far she was satisfied in this respect, but her Latin speech to the Heads of Houses certainly abounds in excellent advice and professions of warm interest in the welfare of the University. As before, she rallied the 'precisians,' as they were then called, on their over-zeal for Protestantism, counselling all to study moderation and rest content with obeying the law, instead of seeking to be in advance of it.

Pestilences and
disturbances in the
sixteenth century

It is remarkable how often the town of Oxford was scourged with pestilence during the Tudor period, and this cause had perhaps as much effect in repelling students as the unsettled state of ecclesiastical affairs. To check one fertile source of infection, an order was addressed by the Privy Council to the vice-chancellor and Heads of colleges, in 1593, forbidding the performance of plays or interludes in Oxford or within five miles thereof, since the physicians had connected the plague of that year with the immense influx of players and vagrants from London into Oxford about the Act-time. The order further directed the University authorities to concert measures with the mayor for the prevention of overcrowding; and these precautions were apparently successful, for the plague did not reappear in

Oxford until 1603, when it was brought thither from London shortly after the accession of James I.

Scarcely less fatal to academical repose and earnest study were the violent conflicts and riots, inherited from the Middle Ages, which constantly recurred throughout the sixteenth century. Some of these arose out of the old traditional feud between the northern and southern nations, but that feud had well-nigh died out under Leicester's chancellorship, and does not seem to have influenced the keenly contested election of proctors in 1594, though we hear of a fray provoked by 'the troublesome Welsh' in 1587. The contest for the chancellorship which took place on Leicester's death was, in the main, one between Puritans and Episcopalians, and the election of Hatton against Essex was a victory for the Church of England as established by the moderate policy of Elizabeth. Henceforth Oxford became the stronghold of Anglicanism, and the internal contests which divided the University were essentially contests between rival Church parties. Meanwhile, there was little abatement of the pettier, but still more inveterate, jealousy between the city and the University. Year after year this incurable enmity broke forth afresh in some new form, and the law courts, as well as the Chancellor, were frequently engaged in vain attempts to keep the peace between bodies equally concerned in the prosperity of Oxford. A temporary abatement of these disturbances was obtained, in 1581, by the fresh imposition of an oath to be taken by the city sheriff, on his election, binding him to uphold the privileges of the University; but the feud was not to be thus healed. If we duly measure the distraction of energy which must have resulted from such perpetual disorders, and, far more, from the fierce religious animosities which long convulsed Oxford and plunged other countries into civil war—not forgetting the constant interruption of academical residence by plague—we shall be more disposed to marvel at the intrinsic vitality of the University than at the many shortcomings imputed to it, when the death of the great Queen ushered in a new and eventful period in its history.

CHAPTER IX.

THE UNIVERSITY UNDER JAMES I.

The University
patronised by James
I.

The influence acquired by the University of Oxford, as a power in the State, under the Tudor dynasty, was fully maintained by it under the Stuarts. If it had played a humbler part in the earlier stages of the Reformation than in the intellectual movement of the Renaissance, and if for a while the Protestant episcopate had been mainly recruited from Cambridge, it was nevertheless destined to bear the brunt of those storms which, already gathering in the last years of Elizabeth, burst over Church and State in the first half of the seventeenth century. Before the accession of James I., while Church-government had been firmly settled on an Episcopalian basis, there was room for much latitude of opinion within the National Church, and the religious sentiment of the English people was strongly Puritan. This dualism was faithfully reflected in the University, where the Act of Uniformity was strictly enforced, and there was a growing preponderance of academical authority on the side of the High Church party, yet several Regius Professors of Divinity in succession were of the Puritan school, and a deep undercurrent of Puritanism manifested itself again and again among the more earnest college tutors and students. The vigorous protest of the University against the famous Millenary petition was dictated not so much by distrust of its Puritan authorship and tone, as by hostility to its proposals for reducing the value of impropriations in the hands of colleges. Little as he understood the English nation, James I. was not slow to appreciate the advantage of gaining a hold upon the Universities, hastened to show a personal interest in them, and expressed a wish to be consulted about all academical affairs of importance. In the very year of his accession, he granted letters patent to both Universities, commanding each of them to choose two grave and learned men, professing the civil law, to serve as burgesses in the House of Commons. Though he was prevented by the plague from visiting Oxford in that year, he came to Woodstock in the autumn and received the University authorities. Two years later, in 1605, he

entered Oxford on horseback, surrounded by an imposing cavalcade of nobles and courtiers, to be received, like Elizabeth, with costly banquets and pompous disputations, to which, on this occasion, was added a grand musical service in the cathedral. The pedantic self-complacency of James enabled him to enjoy in the highest degree all the frivolous solemnities of this academic ceremonial, of which a full account has been preserved in the 'Rex Platonicus' of the Public Orator, Sir Isaac Wake. It is remarkable that Anthony Wood dates the progress of luxury, with drinking in taverns and other disorders, from the festivities lavished on this visit. The king gave a further proof of his confidence in Oxford, by entering his son Prince Henry, a youth of great promise, who died prematurely in 1612, as a student at Magdalen College.

James I.'s attitude
towards the
University and the
Church

Whatever may be thought of James I.'s character, it is certain that he was animated by a generous partiality for the Universities, not only as bulwarks of his throne but as seats of learning. It is equally certain that he entered upon his reign with serious and practical intentions of Church reform. Accordingly, in 1603, he addressed letters to the Chancellors of Oxford and Cambridge, pointing out the evils and abuses resulting from the wholesale diversion of Church revenues, by means of impropriation, to private aggrandisement. He declared himself ready to sacrifice all the patronage which had thus devolved upon the Crown, and called upon the colleges to imitate his example by re-endowing their benefices with tithes for the support of efficient ministers. He was dissuaded from carrying out his purpose by the remonstrances of Archbishop Whitgift and others, but in 1606, after the discovery of the Gunpowder Plot, the Universities received a valuable gift in the right of presenting to all benefices in the hands of Roman Catholic patrons, the southern counties being assigned to Oxford, the northern to Cambridge. They were also formally exempted from liability to subsidies on three separate occasions. In such proofs of partiality for the Universities James was but following out the policy of Elizabeth, who had clearly grasped the expediency of controlling and conciliating the great seminaries in which the national clergy were educated. At first his native Calvinism inclined him to favour the Puritans, whose influence in the University had been greatly strengthened by the example and teaching of the admirable Laurence Humphrey, President of Magdalen, and Regius Professor of Divinity, who

died in 1589. But he gradually discovered the natural affinity between Arminian theories of Church authority and his own theories of kingcraft, as well as the preponderance of the former in the clerical order, and decisively cast in his lot with the High Church party. In the grand struggle between the ecclesiastical courts and the common law judges, the Universities with the great body of the clergy supported the King and the archbishop in sustaining the authority of the former. They were again associated with the King when he conferred a lasting benefit on the English Church and nation by initiating the Authorised Version of the Bible. In this great work the two Universities were represented almost equally, and among the Oxford scholars engaged in it we find seven Heads of colleges and four other divines, who afterwards became bishops. There is some reason, however, to believe that he cherished a preference for the sister University, and it is a somewhat remarkable fact that George Carleton, afterward bishop of Chichester, was the only Oxford man among the five academical divines selected by him to represent England at the Synod of Dort.

Rise and influence
of Laud

In the year 1603, we first hear of ‘Mr. William Laud, B.D. of St. John’s College,’ as proctor; in 1606 he again comes under notice, as preaching in St. Mary’s Church, and ‘letting fall divers passages savouring of popery,’ which brought him under the censure of the vice-chancellor. Thenceforth he became a formidable power, and ultimately the ruling spirit in the University, the discipline of which he persistently laboured to reform. The eighteen years which elapsed between his proctorship and his retirement from the presidency of St. John’s, in 1621, were crowded with events memorable in the history of the English Church. The failure of the Hampton Court Conference, in 1604, drove the Puritan party, at last, into active opposition. The canons enacted in the Convocation of the same year compelled the clergy to subscribe the Three Articles which the Parliament of 1571 had expressly refused to impose upon them; and the immediate consequence was the deprivation of three hundred clergymen. In 1606, the severity of the laws against Popish recusants was increased, and the arbitrary jurisdiction of the High Commission was constantly extended until it was openly challenged by the common law judges. The responsibility of supporting the king in this aggression on the Constitution rests, in part, on Abbot, formerly Master of University College, whom the Calvinistic party at Oxford had regarded as their protector against Laud and his associates, but who, after

succeeding Bancroft as archbishop in 1610, strained the powers of the High Commission almost as far as Bancroft himself. There was no such inconsistency in Laud, who, from the first, deliberately set himself to undo the work of Leicester as Chancellor, and Humphrey as professor of divinity at Oxford. An appeal was lodged against him by the opposite party when he was elected President of St. John's in 1611, but the election was confirmed. It was he who procured the publication, in 1616, of a stringent order from the king, by the advice of the clergy in convention, for the subscription of the Three Articles in the Thirty-sixth Canon by every candidate for a degree, for strict attendance on University sermons, and for the enforcement of other safeguards against heterodoxy. This was not the first time that the Convocation of the clergy had presumed to meddle with the government of the University, for another canon, passed in 1604, had required surplices to be worn in college chapels. But, of course, such decrees could only be enforced by the action of the Crown, the validity of whose jurisdiction over the Universities was, in itself, somewhat doubtful. In this case, the authority of the Chancellor, the Earl of Pembroke, was employed to obtain compliance with the order which, though resented by many, was obeyed. In 1622, the University Convocation gave a further proof of obsequious loyalty, not only by publicly burning the works of Paræus, in deference to a mandate of the Privy Council, but also by passing a declaratory resolution absolutely condemning resistance to a reigning sovereign, offensive or defensive, upon any pretext whatever. This solemn affirmation of the doctrine of passive obedience was the more significant and ignoble, because it came but a few months after the Commons had recorded a solemn protest against the violation of their liberties, and the king had torn it out of their Journal with his own hand. The progress of Arminianism in the Church and University kept pace with that of personal government in the State. It was in 1622 that Coke, Pym, Selden, and others were imprisoned for disputing the royal prerogative, and from this year Anthony Wood dates 'such an alteration in the University, that the name of Calvin (which had carried all before it) began to lessen by degrees.' In the great crisis of the next reign it was found that Oxford Puritanism was by no means extinct, but the reactionary creed of Laud had almost exclusive possession of the University pulpit, and soon become dominant. This new faith, half political, half theological, and affirming at once the divine right of kings and the divine right of bishops, found partial expression in James's own maxim—'No

bishop, no king.’ Absolutism allied itself naturally with the doctrinal system of Arminianism; the creed of Laud, embraced long ago by the fatuous King and the Court, had already been adopted deliberately by Prince Charles; it was now to become the official creed of Oxford for nearly two generations.

Completion of the
‘Schools,’ and
foundation of
Wadham and
Pembroke Colleges

During the whole reign of James I. the external condition of the University was prosperous, and it received important accessions, both in buildings and endowments. On March 30, 1619, the day following the burial of Sir Thomas Bodley in Merton College Chapel, the first stone of the New Schools, as they were then called, was laid by his coadjutor, Sir John Bennett. Two colleges, Wadham and Pembroke, owe their origin to the same period. The former was founded in 1610 by Dorothea, widow of Nicholas Wadham, under a royal licence; the latter was founded in 1624 by James I. himself, but endowed at the cost and charges of Thomas Tesdale and Richard Wightwick. No less than six professorships were instituted during the same period. The first two of these—the professorships of geometry and astronomy—bear the name of their founder, Sir Henry Savile, warden of Merton College, who endowed them in 1619. In the quaint language of Anthony Wood: ‘Beholding the Mathematick Studies to be neglected by the generality of men, ’twas now his desire to recover them, least they should utterly sink into oblivion.’ These benefactions, and the growing wealth of colleges, helped to strengthen the University in the esteem of the upper classes, upon which it now depended for its supply of students. According to a census taken in 1611, the number of residents was 2,420, and it continued to increase until the outbreak of the Civil War.

CHAPTER X.

THE UNIVERSITY UNDER CHARLES I. AND LAUD.

Parliament at
Oxford

The death of James I. and the succession of Charles I. produced no break in the continuity either of national or of academical history. With less shrewdness than his father, but more of dignity in his character and bearing, Charles possessed equal obstinacy, and equally regarded it as his mission to curtail the liberties of his people, in the interests of the Crown, by the aid of the new State Church. The profligate and unscrupulous Buckingham retained all his ascendancy, and was Charles's trusted confidant in politics. Abbot was still Archbishop of Canterbury, and crowned the young King in Westminster Abbey, while Laud officiated as Dean of Westminster. But Laud was Charles's real adviser in Church affairs, and his evil counsels soon brought about the disgrace of his rival, Abbot, when the archbishop, reverting to his earlier principles, boldly opposed the arbitrary and oppressive policy of the Court. Though he was no longer president of St. John's College, his influence over the academical body was never relaxed, and was constantly exercised on behalf of Arminianism in the Church, and absolutism in the State. It was some time, however, before the University was directly affected by the storms which clouded the political horizon from the very beginning of Charles's reign. His first Parliament, it is true, was adjourned to Oxford in the Long Vacation of 1625, on account of the plague then raging in London, and all the colleges and halls were cleared, by order of the Privy Council, for the reception of the members. The Privy Council itself met at Christchurch, the House of Commons sat in the divinity school, and the Lords 'in the north part of the picture gallery,' but the Parliament, having refused to grant supplies, was dissolved within a fortnight. The plague, however, had followed it to Oxford, and the commencement of Michaelmas term had to be postponed until November 9. In 1628 the election of proctors was attended with more than ordinary tumult; the Chancellor intervened, and ultimately the King took the matter into his own hands, referring the decision of it to a committee, including Laud, who

practically dictated their nominees to the University Convocation. In February 1629, the House of Commons, which had obtained the King's assent to the Petition of Right, took upon itself, by a letter from the Speaker, to call for a return of all persons known to have contravened the Articles of Religion. The proctors so far recognised the validity of the order as to institute an inquiry, but Parliament was prorogued not long afterwards, and the question seems to have dropped. The incident, however, is not without its importance, as indicating the disposition of Parliament, now roused into active opposition, to share with the Crown the control of the University. On August 27 in the same year, Charles I., during his stay at Woodstock, paid his first state visit to Oxford, and was entertained with his queen in Merton College, where she was destined to be lodged so long during the Civil War, of which the premonitory signs were already visible to far-sighted observers.

Chancellorship of
Laud

In April 1630, the Earl of Pembroke died, and Laud, now bishop of London, was elected Chancellor of the University by a very narrow majority over Philip, Earl of Montgomery, Pembroke's younger brother. His chancellorship lasted eleven years, and was terminated by his resignation in 1641. However narrow may have been his Church policy, he was a true and loyal son of the University, by which he deserves to be remembered as an earnest reformer and liberal benefactor. It was at his instance that in 1629, the year before he became Chancellor, a final end was put to the riotous election of proctors which had so often disgraced the University for centuries. This was effected by the simple device of constructing a cycle, extending over twenty-three years, within which period a certain number of turns was assigned to each college, according to its size and dignity. The inventor of this cycle was Peter Turner, of Merton, a great mathematician in his day, and it fulfilled its object by entrusting the nomination of proctors to individual colleges, each of which could exercise a deliberate choice, instead of leaving it to be fought out by the academical democracy. This salutary change was accepted by the University Convocation on the recommendation of the king and the Earl of Pembroke, but its real originator was Laud. His efforts to reform the discipline and morals of the University were equally well meant, though conceived in an almost Puritanical spirit which might have won the approval of the 'Precisians,' who hated him so bitterly, and not without good cause. These efforts extended to the colleges of which he was Visitor,

and were carried to the length of minutely regulating every detail of University life. Attendance at sermons and services, the conduct of disputations in theology and arts, the relations between Masters of Arts and Bachelors or students, the forms and fashions of academical costume, the proper length of scholars' hair, the hours of meals, the custody of college gates, the presentation to college benefices, the management of college property, the use of Latin in conversation as well as formal business, the enforcement of purity in elections to fellowships—such are some of the academical concerns which received from Laud as careful attention as the highest interests of the Church and the monarchy. In one respect, indeed, the policy of Laud strongly resembled that of Leicester, for both maintained their influence by favouritism, and kept up a regular correspondence with confidential agents at Oxford, through whom they were informed of everything that passed there. But while Leicester's inquisitorial vigilance was directed not only against disturbers of the peace but against persons suspected of Romanism, that of Laud was directed against Puritans and Calvinists.

Compilation of
Laudian Statutes

The greatest and most permanent result of Laud's chancellorship was the compilation of the famous code, known as the 'Laudian' or 'Caroline' Statutes, which continued to govern the University for more than two centuries. From time immemorial, the University had claimed and exercised the power of making, repealing, and revising its own statutes. Under the chancellorship of Archbishop Warham, in 1513, this power had been delegated to a committee of seven, and again, in 1518, it was delegated to Cardinal Wolsey, in spite of the Chancellor's protest; but in both cases, it was the University Congregation which conferred the commission, under which, however, very little seems to have been done. The commissioners of Edward VI. were appointed under the Great Seal, and drew up the 'Edwardine Statutes,' by virtue of an authority independent of the University. Cardinal Pole, on the contrary, issued his Ordinances, in his capacity of Chancellor, provisionally only, until a delegacy of Convocation should decide upon the necessary alterations. Similar delegacies were appointed by the authority of Convocation, as it was then called, on several occasions during the reign of Elizabeth; and though in the reigns of her two successors many ordinances were sent down by the Crown, they were not accepted as operative until they had been embodied in statutes, or adopted

in express terms by Convocation. Even in 1628, when the proctors had endeavoured to obstruct the proposed statutes regulating proctorial elections, and the king threatened with his condign displeasure those who should persist in opposing them, Convocation went through the form of enacting them by its own decree. The same course was taken in 1629, under Lord Pembroke's chancellorship, but at Laud's instigation, when the delegacy was nominated to codify the statutes, which then lay, as Laud said, 'in a miserable confused heap.' The work occupied four years, and, when it was completed, the University placed the new code in the hands of Laud, with full power to make additions or alterations. He corrected the draught, and in July 1634 directed a copy to be deposited in each college or hall for a year, during which amendments might be suggested. At last, in June 1636, Laud finally promulgated, and the King solemnly confirmed, the 'Corpus Statutorum,' as they were officially designated, and the University Convocation formally accepted them, with the most fulsome professions of gratitude to its Chancellor, and of confidence in the eternity of their own legislation. This confidence was not, and could not be, justified by events; but an impression long prevailed that the Laudian statutes, though capable of extension, were as incapable of alteration as the laws of the Medes and Persians. It is, indeed, very remarkable that, with a few trifling additions, these statutes proved capable of being worked practically until they were superseded, in many essential particulars, by the University Reform Act of 1854.

Main provisions of
the Laudian
Statutes

These statutes were for the most part, a digest of those already in force, but embodied also new regulations of great importance, such as those for the government of the University by the 'Hebdomadal Board,' for the election of proctors according to the cycle recently established, for the nomination of 'collectors' (to preside over 'determinations'), and for the conduct of public examinations. The principle of placing the main control of academical affairs in the hands of heads of colleges and halls had already been established by Leicester, but it was now reduced to a fundamental law, and the vice-chancellor, with the Heads of Houses and proctors, was formally entrusted with the whole administration of the University. This statute effectually stereotyped the administrative monopoly of the colleges, and destroyed all trace of the old democratic constitution which had been controlled only by the authority of the mediæval Church. The same

oligarchical tendency may be discerned in the statute which converted the popular and public election of proctors by the common suffrages of all the Masters into a private election by the Doctors and Masters of a certain standing in each college, however beneficial its effect may have been in checking the abuses of tumultuous canvassing. While the dignity of the procuratorial office was thus sensibly reduced, that of the vice-chancellor's office was proportionably enhanced. The Laudian Code legalised the practice resumed by Leicester, directing that the vice-chancellor should be nominated annually from the heads of colleges by the Chancellor, with the assent of Convocation. As vicegerent of the Chancellor, and chairman of the Hebdomadal Board, he gradually acquired a position of greater authority and independence than had formerly belonged to him. Under Laud's chancellorship, indeed, he was expected to make a weekly report to his chief on the state of the University; but later Chancellors were neither so conscientious nor so meddlesome, and, in default of urgent necessity for their intervention, were at last content to be regarded as ornamental personages, rather than as the actual rulers of the University. One of the vice-chancellor's chief duties at this period was to guard the orthodoxy of the University pulpit, and there are numerous instances of preachers being summoned before him for controverting Arminian doctrines, and forced to sign humble recantations of their errors. Where they proved refractory, the royal prerogative was promptly invoked to coerce them.

Studies and
examinations under
the Laudian
Statutes

The course of study, and standard of examination, prescribed by the Laudian statutes were so much beyond the requirements of later times that we may well doubt whether either can have been strictly enforced. The B.A. degree, which then concluded the first stage of an academical career, might be taken at the end of the fourth year, and the student was bound to have attended lectures in grammar, rhetoric, the Ethics, Politics, and Economics of Aristotle, logic, moral philosophy, geometry, and Greek. In order to attain the M.A. degree, three more years were to be spent in studying geometry, astronomy, metaphysics, natural philosophy, Greek, and Hebrew. Making every allowance for the longer residence of those days, as well as for the lower conception of proficiency in these subjects, we cannot but admire the comprehensive range of this curriculum, and admit that if it was actually accomplished by a majority of students, the race of passmen in the seventeenth century must have been

cast in an heroic mould. Disputations, which had long fallen into discredit, were now superseded by a system of public examinations, the germs of which are to be found in an obsolete statute of 1588, if not in the earlier statutes of Edward VI. The examinations for the B.A. and M.A. degrees, respectively, were to be in the subjects in which the candidates were statutably bound to have previously heard lectures, and special regard was to be paid to fluency in Latin, but they can scarcely have been effective according to modern ideas. They were to be conducted, in rotation, by all the regent masters, under the orders of the senior proctor; the method of interrogation seems to have been exclusively oral; and the authority of Aristotle was to be paramount within the whole sphere of his voluminous writings. As the ordinary period of residence waxed shorter, and the University relaxed its authority over its own teachers, the examination system of Laud, though it nominally survived for more than a century and a half, became almost as illusory as the old scholastic disputations.

Services of Laud to
the University

The effusive gratitude manifested by the University towards Laud, on the publication of his ‘Caroline’ statutes, was partly, no doubt, the expression of party spirit, but it was also justified by his great services. He presented to the Library a splendid collection of Oriental manuscripts, besides procuring valuable gifts of literary treasures from others; he founded and endowed the professorship of Arabic; he persuaded the King to annex canonries of Christchurch to the professorship of Hebrew and the office of Public Orator—which last grant was never confirmed by Parliament; he obtained for the University the right of printing Bibles, hitherto the monopoly of the King’s printers; and he secured for it a new charter extending all its ancient liberties and privileges. Two important acquisitions made by the University under the chancellorship of Laud are not known to have been specially due to his initiative. The earlier of these was the foundation of the Botanic Gardens in 1632, though its completion was delayed by the Civil War. The Convocation House, adjoining the Divinity School, was begun in 1634 and finished in 1638, with an extension of the Bodleian Library above it, and the *apodyterium* at its north end, where the Chancellor’s Court is still held. It was first used in October 1638. By this time, if we may trust Anthony Wood, the University had recovered its popularity, and numbered at least 4,000 scholars. No wonder that loyal sons of Oxford looked back with fond regret to Laud’s chancellorship during the evil days of the Civil War and the

Commonwealth. Nor should it be forgotten that if his intolerance of schism made him a persecutor of the Puritans, he also set himself to exclude Romish priests from the University; or that he reconverted Chillingworth to Anglicanism, and rewarded with a canonry the learning of John Hales, whose views of Church government conflicted greatly with his own.

Last five years of
Laud's
chancellorship

Though Laud continued to preside over the University until 1641, the glory of his chancellorship was crowned by a solemn visit of the King and Queen to Oxford at the end of August 1636. This visit lasted three days, and was attended by all the usual ceremonials, including the performance of comedies at Christchurch, and St. John's, Laud's own college. The Elector Palatine and his brother, the famous Prince Rupert, received honorary M.A. degrees on this occasion. After this it may well be imagined that Laud had little or no leisure for academical cares until his resignation of the chancellorship by a pathetic letter dated from the Tower on June 26, 1641. Within this interval of five years, the great controversy about the payment of ship-money had come to a head; judgment had been given against John Hampden; Prynne, Burton, and Eastwick had been condemned to the pillory for their writings; Charles's fourth Parliament had met after eleven years of personal government and been promptly dissolved; the Scotch army, after halting on the border in 1639, had invaded Yorkshire in 1640; the High Commission Court had been closed for ever; the Long Parliament had commenced its sittings, and impeached both Strafford and Laud; the Triennial Act had been passed; the bishops had been excluded from the House of Lords; the King had agreed that Parliament should not be adjourned or dissolved without its own consent; Strafford had been executed; and the 'Root and Branch Bill' for the abolition of Episcopacy had been read in the Commons. Nevertheless, Laud had found time for close and constant attention to University and college business. It was in 1638 that he instituted a regular examination for the B.A. and M.A. degrees. In 1639, he sent another donation of books, gave stringent directions for the repression of disorders in the Convocation House, and made special efforts to put down drinking parties in colleges and halls, which had come into vogue, since 'the scholars (not excepting the seniors) had been hunted out of alehouses and taverns by the vice-chancellor and proctors constant walking'—a result of his own disciplinary vigour. In November 1640, he sent his last present of books, pleading a want of leisure, for the first time,

in excuse for the brevity of his letter. He was now in the hands of his enemies, and it was freely alleged in the House of Commons that, through his influence, the University was infected with Popery. Accordingly, on December 14, a statement was drawn up and signed by all the Heads of Houses, except Rogers, Principal of New Inn Hall, declaring 'that they knew not any one member of this University guilty of, or addicted to, Popery.' Parliament, however, ordered the books and registers of the University to be sent up to London, with a view of extracting materials from the Acts of Convocation to serve as evidence against Laud. Among the offences imputed to him at his trial, several related specially to his administration of the University. He was accused of causing old crucifixes to be repaired and new ones to be set up; of turning Communion tables 'altarwise,' railing them in, and enjoining that obeisance should be made to them; of encouraging the use of copes; of instituting Latin prayers in Lent; of introducing superstitious processions; above all, of erecting 'a very scandalous statue of the Virgin Mary, with Christ in her arms,' over the new porch of St. Mary's Church. Some of these alleged acts were denied by the archbishop; others were admitted and defended as consistent with the received doctrine of the Church. Perhaps none of them would be regarded by an impartial critic of Laud's trial as heinous enough to sustain a charge of high treason, or, indeed, as having any bearing whatever on such a charge.

Eminent members
of the University in
the generation
preceding the Civil
Wars

Whatever may have been the shortcomings of Oxford in the generation which preceded the Civil War, it certainly produced a number of men whose learning and piety might have adorned a happier and more peaceful age. Among the Heads of colleges who held office under Laud's short chancellorship were John Prideaux, Sir Nathaniel Brent, Gilbert Sheldon, Brian Duppa, Samuel Fell, and Juxon, and while the headships of colleges were filled by such men as these, others not less eminent represented the University in other capacities. In his rectory at Penshurst, and afterwards in his rooms at Christchurch, Hammond was maturing a theological knowledge which has placed him among standard English divines; Bainbridge was prosecuting at Merton important researches in astronomical science; Earle, afterwards tutor to Prince Charles, and bishop of Salisbury, was serving in the office of senior proctor; Selden was acting as burgess for the University; and Brian Twyne

was amassing those antiquarian stores which supplied the most valuable materials for the marvellous industry of Anthony Wood.

University life in
the generation
preceding the Civil
Wars

The characteristic features of University life in the period immediately preceding the Civil War contrasted equally with those which had distinguished it in the Middle Ages and those which distinguish it in the present day. The academical community had become far less democratic and more outwardly decorous since the suppression of 'chamber-dekyns,' and the concentration of all the students into colleges and halls. The Heads of colleges, invested with special privileges and absolute control over University legislation, were now permanently resident, and had greater power of keeping good order than had ever belonged to the proctors, vainly striving to enforce discipline among thousands of beggarly non-collegiate students. On the other hand, there was less unity in college society; for, while Bachelor fellows were still an inferior grade, and bound to 'cap' Master fellows in the quadrangles, a new class of 'commoners' had sprung up, mostly consisting of richer men, and holding aloof from members of the foundation. 'Town and gown rows' were not unknown, and the ancient jealousy between the city and the University was intensified by the growth of religious and political differences; but the peace was far better kept, and the streets of Oxford were no longer the scene of sanguinary affrays. Whether the morality of the students was essentially improved is open to more doubt. Judging by the constant repetition of censures on their conduct from chancellors and Visitors, we might infer that Oxford was quite demoralised. After all, however, most of these censures are not so much directed against grave offences as against extravagance in dress and breaches of academical decorum, and it is impossible not to suspect that over-regulation had something to do with the perverse neglect of rules among undergraduates. It is the variety of legitimate outlets for youthful spirits and energy which in modern times has been found the best antidote for youthful vices, and if we realise the conditions of undergraduate society in the earlier part of the seventeenth century, we shall rather be disposed to wonder at the standard of virtue being so high as it seems to have been. One of these conditions was the overcrowding of colleges due to the disappearance of hostels. Where two or three students habitually shared the same room, and a poor scholar rarely enjoyed the comfort of a bed to himself, unless it were a truckle-bed in his

patron's chamber, the self-respect and graceful courtesy which is now traditional among well-bred young Englishmen at the University could scarcely be cultivated at all. The tutorial system already existed in colleges, and the personal relations thus established between tutors and pupils were sometimes productive of very beneficial results; but outside these relations there was little sympathy and kindly intercourse between members of different colleges or different classes in the same college. Manly sports were not unknown, but they were chiefly of the rougher sort, and discouraged by the authorities. We hear little of boating, or even of riding, and cricket had not yet been invented, but football was vigorously played, and led to so many warlike encounters between the combatants that it was regarded with little favour by vice-chancellors. Archery was still practised, as well as quoits, and ninepins or skittles, but these last games were coupled with bull-baiting, bear-baiting, cock-fights, common plays, and public shows, in official warnings to undergraduates against unlawful pastimes. Even James I., who prided himself on his 'Book of Sports' as much as on his invectives against tobacco, issued royal letters condemning them, apparently because, though not intrinsically evil, they brought great crowds of people together, who might break out into disorder. In short, it may safely be said that an Oxford student in the reigns of James I. and Charles I. had less recognised liberty than a public-school boy in the reign of Victoria, the natural result of which was that he was all the more disposed to rebel against discipline. Meanwhile his studies, though mainly classical in their subjects, and mainly conducted within the walls of his college, were largely scholastic in their methods. The University was still, above all, a training-school for the clerical profession rather than for the general world.

CHAPTER XI.

THE UNIVERSITY DURING THE CIVIL WARS, AND THE SIEGE OF OXFORD.

The University
sides with the King
and the Church

The part to be taken by the University of Oxford in the great national struggle now impending was never for a moment doubtful. Throughout its history it had loyally acknowledged not merely the supremacy of the Crown, in its capacity of paramount Visitor, but the jurisdiction of the High Commission and other exertions of the prerogative lately challenged by the Commons, while it stood committed by its own solemn vote to the doctrine of passive obedience. It was still more closely identified with the Church. Its property had always been treated in ancient times as ecclesiastical, being constantly taxed by votes of the Convocation of Canterbury, and constantly exempted, by royal letters, from taxes payable on the lands and tenements of laymen. Its representatives had attended the great Councils of the Western Church; its Chancellor had always been a great ecclesiastic until the Reformation; nearly all the Visitors of its colleges were still great ecclesiastics; and the recent imposition of test-oaths, including those prescribed by a purely ecclesiastical canon, on all its students, coupled with the clerical restrictions on most college fellowships, had effectually rendered it an integral part of the Anglican Church. No doubt, it contained a strong Puritan element which sympathised with the Parliament, but the overwhelming majority were heartily on the side of the Church and the King, and proved themselves capable of great sacrifices for the cause which they espoused. The first overt act of the University in support of these principles was taken on April 24, 1641, in the form of a 'Petition made to the high and honourable Court of Parliament in behalf of Episcopacy and Cathedralls.' This petition was accompanied by another to the same effect, bearing the signatures of almost all the resident graduates, and derives additional significance from its date. But a few months before, the canons lately passed by the Convocation of Canterbury had been declared illegal by

the Commons, and the Bill to exclude bishops from the House of Lords had just been introduced. Nevertheless, the University did not hesitate to press upon Parliament, now in no placable mood, the duty of maintaining not only ‘the ancient and Apostolicall Order’ of bishops, but also ‘those pious Foundations of Cathedrall Churches, with their Lands and Revenewes.’ Some of the reasons alleged in support of the petition are grave and weighty; others, if less solid, are still more interesting as indications of the light in which Church preferments were then regarded by University graduates. For instance, cathedral endowments are extolled ‘as the principal outward motive of all Students, especially in Divinitie, and the fittest reward of some deep and eminent Scholars; as affording a competent portion in an ingenuous way to many younger Brothers of good Parentage who devote themselves to the Ministry of the Gospell; as the onely meanes of subsistence to a multitude of Officers and other Ministers, who with their families depend upon them; as the maine Authors or Upholders of divers Schooles, Hospitalls, Highwaies, Bridges, and other publique and pious works; as the cheife support of many thousand families of the Laity, who enjoy faire estates from them in a free way; and as funds by which many of the learned Professors in our University are maintained.’ It was hardly to be expected that such arguments should prevail with Pym and Hampden, Prynne and Holles; nor can we be surprised to learn that ‘the answer to it was very inconsiderable.’ It was, however, presented to the King on the following day, and his reply, preserved by Anthony Wood, is memorable as showing how resolutely he linked the fortunes of his Crown with those of the Church. He declared openly that he knew the clergy were suffering because of their fidelity to him, protested that he would rather feed on bread and water than ‘mingle any part of God’s patrimonie with his owne revenewes;’ insisted that ‘Learning and Studies must needs perish if the honors and rewards of Learning were destroyed;’ and predicted that ‘Monarchy would not stand long if the Hierarchy perish.’

The Commons
issue an order for
the University

Within a month after the presentation of this petition Strafford had been executed, and the ‘Root and Branch Bill’ for the complete abolition of Episcopacy had been read in the Commons. Two months later (July 1641) the Courts of Star Chamber and High Commission, with the arbitrary jurisdiction of the King’s Council, had ceased to exist. On November 22 the ‘Grand Remonstrance’ was passed, containing an elaborate indictment

against the Crown for all the unconstitutional acts committed since the beginning of the reign, and an appeal to the people of England. Then followed in quick succession the King's attempt to arrest the five members in the House of Commons, his final departure from London, his refusal to place the custody of fortified places and the command of the militia in the hands of the Parliament, the levy of forces on both sides, the rejection by the King of an ultimatum sent by the Parliament, and the erection of the royal standard at Nottingham, on August 22, 1642. Of these momentous events the University was, of course, a mere spectator; but the House of Commons found leisure, in the midst of its preparations for war, to guard its own interests at Oxford. On June 28, 1641, it issued an order purporting to abolish the obligation of subscription to the Three Articles of the Thirty-sixth Canon, as well as that of doing reverence to the Communion-table, which seems to have been enjoined in some of the colleges. This order was actually read in Convocation, and was followed in February 1642 by the receipt of a 'Protestation,' which the Speaker, in the name of the House, called upon the vice-chancellor and Heads of colleges to take and impose upon all members, and even servants, of the University, being of the age of eighteen years and upwards. This Protestation, conceived in a moderate tone, bound the subscriber to uphold Protestantism and the union between the three kingdoms of England, Scotland, and Ireland. As it contained a profession of allegiance to the Crown, as well as of respect for the power and privileges of Parliament, it was generally signed, though many loyal Protestants objected to it as dictated by a party on the verge of rebellion.

Contribution for the King's service, and first occupation of Oxford by Parliamentary troops

In the summer of 1642, war, though not actually declared, was felt to be inevitable, and both the king and the Parliament were already raising supplies for the autumn campaign. On July 7, Charles I., then at York, addressed a requisition to Prideaux, as vice-chancellor, inviting the colleges to contribute money for his service by way of loan at eight per cent. interest, alleging that similar aid had already been received by his enemies. Convocation immediately voted away all the reserve funds in Savile's, Bodley's, and the University chest, but it does not appear that any contributions of plate were made by the colleges on this occasion. On July 12, Parliament issued an order declaring this requisition illegal, and directing watch and guard to be set on all highways about Oxford; but it appears from a letter of the king, dated from

Beverley on July 18, that a large subsidy had then reached him. At the same time, he addressed letters to the Commissioners of Array for the county, the high sheriff, and the mayor of Oxford, specially requesting them to protect the University in case of attack. In the middle of August several hundred graduates and students enrolled themselves, in accordance with a royal proclamation, and were regularly drilled in the 'New Park.' On August 28, a troop of Royalist horse, under Sir John Byron, entered the city, and the volunteers were virtually placed under his orders, with the apparent consent of the citizens, who, however, did not raise a similar corps for the defence of their own walls. On September 1, a delegacy of thirty members, including the vice-chancellor and proctors, and popularly called 'The Council of War,' was appointed for the purpose of arming the scholars and provisioning the Royal troops. But the resolution of the University was shaken when it was discovered, on September 9, that the citizens were in communication with the Parliament, and that a Parliamentary force was about to move on Oxford from Aylesbury. Indeed, the University went so far as to despatch emissaries to parley with the Parliamentary commanders at Aylesbury, who answered them roughly, seized Dr. Pinke, of New College, the deputy vice-chancellor, and sent him as a prisoner to London. On the following day Sir John Byron, with his few troopers, left Oxford to join the king, accompanied by about a hundred scholars, one of whom, Peter Turner, fell into the hands of the enemy in a skirmish near Stow-in-the-Wold, and was lodged in Northampton gaol. On September 12, a body of Parliamentary troops entered the city from Aylesbury, under Colonel Goodwin, who, with other officers, was quartered at Merton College, while their horses were turned out in Christchurch meadow. They were soon followed by Lord Say, the new Parliamentary lord-lieutenant of Oxfordshire. He proceeded to demolish the fortifications already begun, and instituted a search for plate and arms. In fact, however, no college plate was then carried off, except that of Christchurch and University College, which had been hidden away. The other colleges, we are told, were spared, 'upon condition it should be forthcoming at the Parliament's appointment, and not in the least employed against them'—a condition almost impossible of fulfilment in the event, which actually occurred, of Oxford becoming the King's head-quarters. Upon the whole, Lord Say and his men behaved with great forbearance during this short occupation, which ended on September 27 or 28. The gownsmen were disarmed, but no injury was done to

buildings or property, beyond some damage to the porch of St. Mary's Church and the combustion of 'divers Popish books and pictures.'

Oxford becomes the royal head-quarters

A month later (October 29) Charles I. marched into Oxford by the North Gate, after the battle of Edgehill, at the head of his army, and attended by Prince Rupert, Prince Maurice, and his two sons. Even the mayor and leading citizens welcomed him, while the University received him with open arms, expressed its devotion in Latin orations, and showered degrees on the noblemen and courtiers in his train. The king himself, with the most important personages of his staff, except Rupert and Maurice, was lodged in Christchurch; the officers were distributed among other colleges; the soldiers were billeted about the city. Thenceforward, Oxford became not only the base of operations for the Royal army, but the chief seat of the royal government. Twenty-seven pieces of ordnance were driven into the grove of Magdalen College and ranged there; the citizens were at first disarmed, but a regiment of city volunteers was afterwards formed, and reviewed together with a far more trustworthy regiment of University volunteers. A plan of fortification was prepared by Rallingson, a B.A. of Queen's College, and defensive works were constructed all round Oxford under the directions of engineers. All inmates of colleges, being of military age, were impressed into labouring personally upon these works for at least one entire day per week, bringing their own tools with them; in default of which they were required to pay twelve pence to the royal treasury. A powder-mill was established at Oseney, and a mint at New Inn Hall, whence the students had fled, under suspicion of Roundhead leanings. Thither were removed all the coining machinery and workmen from the factory which had been established some time before at Shrewsbury, and the New Inn Hall mint was conducted under the direction of Thomas Bushell, formerly the manager of the royal mines in Wales. New College tower and cloisters were converted into an arsenal for arms, procured by repeated searches, the grammar-school for the choristers having been removed to a chamber at the east end of the Hall. The Schools were employed as granaries for the garrison; lectures and exercises were almost wholly suspended; and in the three years from 1643 to 1646 the annual number of B.A. degrees conferred did not exceed fifty. Before long, most of the less warlike and loyal fellows and students retired into the country; those who remained took up arms and kept guard on the walls; the colleges more and more assumed the aspect of

barracks; and Oxford, no longer a seat of learning, was divided between the gaities of a court and the turmoil of a camp.

Aspect of the
University during
the queen's
residence

This transformation was completed in July 1643, when Henrietta Maria joined the King at Oxford. Charles I. rode out to meet the Queen, whose passionate and sinister counsels were about to cost him his throne and his life. She was received with great ceremony at Christchurch, and conducted by the King himself to Merton College by a back way, made expressly through gardens belonging to Christchurch and Corpus Christi College into Merton Grove. There she was saluted with the usual Latin oration, and took possession of the apartment still known as 'the Queen's room,' which she occupied, with the adjoining drawing-room, until the following April. Seldom in history, and never in the annals of the University, have characters so diverse been grouped together into so brilliant and picturesque a society as that which thronged the good city of Oxford during the Queen's residence in the autumn and winter of 1643—the last happy interlude of her ill-starred life. Notwithstanding the paralysis of academical studies, grave dons and gay young students were still to be seen in the streets, but too often in no academical garb and affecting the airs of cavaliers, as they mingled with the ladies of the court in Christchurch walks and Trinity College gardens, or with roystering troopers in the guard-houses at Rewley, where they entertained their ruder comrades with flashes of academic wit. Most of the citizens, too, were glad to remain, secretly cherishing, perhaps, the hope of a future retribution, but not unwilling to levy high rents for the lodging of those nobles and military officers for whom there was no room in the colleges. With these were blended in strange variety other elements imported from the metropolis or the country—lawyers who had come down to attend the courts held by the Lord Keeper and one of his judicial brethren; the faithful remnant of the Lords and Commons, who sat in one of the Schools and the Convocation-house respectively, while the University Acts were performed once more in St. Mary's Church; loyal gentlemen driven out of their manor-houses by the enemy; clergymen expelled from their parsonages; foreigners seeking audiences of the perplexed and vacillating King; needy poets, musicians, and players in the service of the Court, who acted interludes or Shakespearian pieces in the college halls. Services were still performed in the chapels; sermons were preached from the pulpit of St. Mary's; degrees

were conferred wholesale, as rewards for loyal service, until they were so depreciated that at last the King promised to recommend no more candidates for them; the outward appearances of academical routine were maintained with decorum; the King dined and supped in public, moving freely among his devoted adherents with the royal grace and easy dignity which long seemed to have perished with the Stuarts; the Queen held those receptions at Merton College of which a tradition has survived to our own prosaic days; newspapers were published for the first time in Oxford, and all the resources of courtly literature were employed to enliven a spectacle over which the awful catastrophe of that historical tragedy, unforeseen by the actors themselves, has shed a lurid glamour, never equalled by the romance of fiction.

The last two years
of the civil war

During this memorable period, the records of the University and colleges are extremely scanty. The register of Christchurch, then little more than a royal palace, presents almost a blank; that of Merton contains few entries bearing on the great events of which Oxford was the scene or the centre. Early in January 1643, royal letters were issued to all colleges and halls, desiring the loan of their plate, to be melted down and coined for the King's service, 'we promising you to see the same justly repaid unto you after the rate of 5/ the ounce for white, and 5/6 for guilt plate, as soon as God shall enable us.' All the colleges, except New Inn Hall, are stated to have complied, and the aggregate weight of plate thus contributed amounted to some 1,500 lbs., besides about 700 lbs. sent in by six country gentlemen. Nevertheless, in the following June, another levy of 2,000*l.* was made upon the University and City respectively, to which the City, in an unwonted fit of loyalty, added another 500*l.* At last, in October 1643, the Heads of Houses agreed that 40*l.* should be raised weekly during the next twenty weeks, by a levy on colleges and halls, in lieu of all further contributions towards new fortifications. In the same month articles were drawn up by some of the leading residents against the Earl of Pembroke, Chancellor of Oxford, whom they accused of betraying the privileges and neglecting the interests of the University, but whose real crime was complicity with the Parliament, and whom the King caused to be superseded by the Marquis of Hertford. During the summer of this year the fortunes of war had, on the whole, been in the King's favour; but he had been compelled to abandon his design of occupying London, and, after the indecisive battle of Newbury, in which

Falkland was killed, had retreated to Oxford for the winter. Thither he summoned his so-called Parliament in June 1644, and there, yielding to evil advice from his wife, he rejected overtures which might have brought about a peaceful settlement without further bloodshed. On May 29, 1644, a Parliamentary force under the Earl of Essex and Sir William Waller crossed the river at Sandford Ferry, and passed through Cowley over Bullingdon Green, on their way from Abingdon to Islip, but nothing beyond a skirmish took place as they defiled along the heights within sight of the city. The object of this movement, as soon appeared, was to enclose the King with his forces in Oxford; but Charles now showed unexpected resource, and by a masterly night-march eluded the enemy, and pursued Essex westward, while Prince Rupert defeated Waller at Copredy Bridge, where many Oxford scholars were engaged. On June 9 a proclamation of the Privy Council appeared, commanding all persons to lay in provisions for three months, in anticipation of a siege, which, however, did not take place in that year. On July 2 the King's northern army sustained a crushing defeat at Marston Moor, and the King himself, though successful against Essex, was almost cut off on his return to Oxford. On Sunday, October 6, the city of Oxford, which had been scourged by a plague in the previous year, the natural result of overcrowding, was ravaged by a great fire, attributed to the machinations of the Parliamentary troops at Abingdon. The winter passed quietly at Oxford, and, after the execution of Archbishop Laud in January 1645, negotiations between the King and Parliament were again opened at Uxbridge, but in vain. Soon afterwards the Parliamentary army was remodelled, and placed under the command of Fairfax, who advanced to besiege Oxford, while Charles, who had retired to Chester, hesitated between relieving it and giving battle to Cromwell. On May 22, Oxford was partially invested by Fairfax, and besieged for a fortnight. Fairfax established his own head-quarters at Headington, Wolvercote was held by Major Browne, Cromwell was posted at Wytham, and the roads between that village and South Hincksey were secured by the besiegers. On June 2, the governor made a successful night sally towards Headington, and three days later the siege was hastily abandoned, when Fairfax moved northward to join Cromwell, and on June 14 the Royalist cause was finally shipwrecked at the battle of Naseby. The theatre of war was now shifted from the neighbourhood of Oxford, and the last engagement in the open field took place near Chester in the following September. Oxford still held

out for the King, who again fell back upon it for the winter, accompanied by Princes Rupert and Maurice, and gathered around him a great part of the English nobility and gentry still faithful to his fortunes. On December 28 we find him ordering special forms of prayer to be used in college chapels on Wednesdays and Fridays, ‘during these bad times.’

Siege of Oxford,
and proposals of
Fairfax
guaranteeing
University
privileges

In the spring of 1646, the Parliamentary army devoted itself to besieging the strong places still occupied by the King’s troops, and on May 1 Fairfax again appeared before Oxford, which the King had left in disguise a few days earlier, with only two attendants. The besieging force was distributed round the north side of the city in the same way as before, and on May 11 it was formally summoned to surrender. In the letter of summons, addressed to Sir Thomas Glemham, the governor, Fairfax used language honourable to himself and to Oxford. ‘I very much desire the preservation of that place, so famous for learning, from ruin, which inevitably is like to fall upon it unless you concur.’ More than one conference was held, and some of the privy councillors in Oxford strove to protract the negotiations until the King himself could be consulted. In the end, Fairfax made conciliatory proposals which the Royalist leaders decided to entertain, ‘submitting,’ as they said, ‘to the fate of the kingdom rather than any way distrusting their own strength.’ By the final treaty, concluded on June 20, it was stipulated that both the University and the City should enjoy all their ancient privileges and immunities from taxation. It was further stipulated that colleges should ‘enjoy their ancient form of government, subordinate to the immediate authority and power of Parliament ... and that all churches, chapels, &c., shall be preserved from defacing and spoil.’ It was, however, significantly added that if any removals of Heads or other members of the University should be made by Parliament, the persons so removed should retain their emoluments for six months after the surrender; and there was an ominous proviso, ‘that this shall not extend to any reformation there intended by the Parliament, nor give them any liberty to intermeddle in the government.’

Surrender of
Oxford, and
subsequent

Four days afterwards (June 24), the curtain fell on this memorable episode in the history of the University. The garrison of Oxford marched out 3,000 strong, with colours flying and drums beating, in drenching rain, by

Magdalen Bridge, through St. Clement's, over Shotover Hill, between files of Roundhead infantry, lining the whole route, but offering them no injury or affront. About 900 of them laid down their arms on arriving at Thame; 1,100 enlisted for service abroad. Hundreds of civilians preceded or straggled after them; hundreds more, chiefly nobles and gentlemen, accompanied Prince Rupert and Prince Maurice two days later, besides a large body which proceeded northward and westward, through St. Giles's, with a convoy. Nevertheless, some two thousand remained behind, to whom passes were afterwards given by Fairfax. These consisted mainly of 'gentlemen and their servants, scholars, citizens, and inhabitants, not properly of the garrison in pay,' who had been specially permitted by the articles of surrender to choose their own time for departure. The military stores had contained no less than six months' provision, and seventy barrels of powder were found in the magazine. Indeed, the writer of an official report, addressed to Speaker Lenthall, congratulates the Parliament on the bloodless capture of the great Royalist stronghold, especially as the surrounding fields were soon afterwards flooded, and siege operations would have been greatly impeded. Order now reigned again at Oxford, but the University and colleges were almost emptied of students, and utterly impoverished; notwithstanding which, some of them contributed out of their penury to relieve the poor of the city, and All Souls' passed a self-denying ordinance 'that there shall be only one meal a day between this and next Christmas, and so longer, if we shall see occasion.' Anthony Wood's brief description of the state of the University after the siege had often been quoted, but deserves a place in every history of the University, since it is the testimony of an eye-witness: 'The colleges were much out of repair by the negligence of soldiers, courtiers, and others who lay in them; a few chambers which were the meanest (in some colleges none at all) being reserved for the use of the scholars. Their treasure and plate was all gone, the books of some libraries embezzled, and the number of scholars few, and mostly indigent. The halls (wherein, as in some colleges, ale and beer were sold by the penny in their respective butteries) were very ruinous. Further, also, having few or none in them except their respective Principals and families, the chambers in them were, to prevent ruin and injuries of weather, rented out to laicks. In a word, there was scarce the face of an University left, all things being out of order and disturbed.'

This description is confirmed by college records, still extant, one of which attests the desolation of Merton, so long occupied by the Queen's retainers.

CHAPTER XII.

THE PARLIAMENTARY VISITATION AND THE COMMONWEALTH.

Measures
preparatory to the
Visitation

The Parliament, then dominated by Presbyterians, lost no time in preparing the University for the coming 'reformation,' by sending down seven Presbyterian divines with power to preach in any Oxford church. These preachers were all University men, and included Reynolds, Cheynell, Henry Wilkinson, and Corbet—four scholars of some repute, and less obnoxious than such army chaplains as Hugh Peters, who had already obtruded themselves into the Oxford pulpits. Wood ridicules the effort to convert the academical mind through Presbyterian discourses; but there is evidence that it was not without its effect, though it provoked opposition from the rising sect of the Independents, already established in Oxford, and good Churchmen were edified by a fierce disputation between Cheynell and one Erbury, an Independent army chaplain, formerly of Brasenose College, the favourite of the fanatical soldiery. At the same time a Parliamentary order was issued inhibiting elections to University or college offices, and the making or renewal of leases 'until the pleasure of Parliament be made known therein.' Such interventions were of course warmly resented by academical Royalists, especially as the King was still nominally in possession of his throne, and could only be justified on the assumption that sovereign authority now resided in the Parliament alone. On this assumption, however, they were in accordance with the policy of the four last Tudors, who had treated the University as a national institution, to be moulded into conformity with each successive modification of the National Church. Philip, Earl of Pembroke, who had been deposed in 1643 to make room for the Marquis of Hertford, now resumed his office, but does not appear to have exercised any moderating control over the counsels either of the Parliament or of the University. Meanwhile, the conflict between rival preachers and the suspension of academical independence naturally

produced a state of anarchy in academical society, whose leading spirits were silently organising themselves against the coming Visitation.

Appointment of the
Visitors and the
Standing
Committee of
Parliament

The delay of the Parliament in commencing this Visitation may well have been due to more urgent claims on their energy. On January 30, 1647, the King had been given up at Newcastle to the Parliamentary commissioners, and other events of the greatest moment followed each other in quick succession. Presbyterianism was ostensibly established by the Westminster Assembly, but generally accepted by a small part only of the kingdom, and undermined by the hostility of the Independents. The so-called 'Four Ordinances' passed by Parliament, and designed to weaken the power of the army, had been met by a protest from a great meeting of officers held at Saffron Walden. This brought about an acute conflict between these rival powers, and 'the Lords and Commons assembled in Parliament' were meditating their unsuccessful attempt to disband the army at the very time when they passed an ordinance, on May 1, 1647, 'for the Visitation and Reformation of the University of Oxford and the several Colleges and Halls therein.' The object of the Visitation was expressly defined to be 'the due correction of offences, abuses, and disorders, especially of late times committed there.' The Visitors were twenty-four in number, fourteen laymen and ten clergymen, with Sir Nathaniel Brent, Warden of Merton College, as the chairman; but the laymen gradually ceased to attend, and the work mainly fell into the hands of the clerical Visitors. Among the lay Visitors were several lawyers, including Brent himself and Prynne; among the clerical visitors were three fellows of Merton, and the Principal of Magdalen Hall, which, like Merton, was strongly tinged with Presbyterian opinions. The Visitors were instructed to inquire by oath concerning those who neglected to take the 'Solemn League and Covenant' or the 'Negative Oath,' those who opposed the execution of the orders of Parliament concerning the discipline and the Directory, those who contravened 'any point of doctrine the ignorance whereof doth exclude from the Sacrament of the Lord's Supper,' and those who had borne arms against the Parliament. By the same ordinance a Standing Committee of Lords and Commons was appointed to receive reports and hear appeals from the Visitors; but it soon outstepped these functions, and sometimes took upon itself the right of legislating directly for the University.

Early proceedings
of the Visitors, and
suppression of
resistance from the
University

The proceedings of the Visitors were opened by a citation issued upon May 15, 1647, summoning the University to appear before them on June 4, but an absurd informality led to an adjournment, which the events that followed the seizure of the King at Holmby House prolonged for three months. During the interval, a delegacy appointed by the University to conduct its defence had drawn up a very forcible statement of 'Reasons' for not submitting to the new tests about to be imposed. The moderation and ability of this statement did much to consolidate the opposition to the Visitation, furnished a repertory of materials for the answers afterwards made by individual colleges, and earned the special thanks of the Parliament held at Oxford in 1665. The internal struggles between the Presbyterians and the Independents favoured the University, but the Committee of Lords and Commons intervened and armed the Visitors with fresh powers, including that of compelling the production of documents, imprisoning the contumacious, and pronouncing definitive sentences of expulsion. This arbitrary commission, endorsed by the Chancellor of the University, was conferred upon the Visitors in the name of the king, himself a prisoner in the hands of the Parliament. On September 29, 1647, their operations actually commenced with prayers and preaching 'for three hours together,' after which all the Heads of Houses were cited to appear, Dean Fell of Christchurch being specially cited as vice-chancellor, and a number of resident fellows were appointed to act as assistants to the Visitors, 'and to enquire into the behaviour of all Governours, Professors, Officers, and Members.' A large majority of the University and college authorities offered a resolute though passive resistance, and when the vice-chancellor, as the avowed leader of the malcontents, was seized and imprisoned, the Visitors found their legal action more paralysed than ever for want of any constitutional authority through which their orders could be carried out. The London Committee, however, again came to their rescue, and on November 11, 1647, six Heads of colleges, with three canons of Christchurch, and the two proctors, were forced to appear before this Committee. Selden, Whitelocke, and others stood their friends, but the adverse majority prevailed, and sentence of deprivation was pronounced upon most of them. Still the Visitors' orders were disregarded, and 'not a man stirred from his place or removed.' At last, on February 18, 1648, Reynolds was appointed vice-chancellor by the Earl

of Pembroke, and the proctors superseded in favour of men who could be trusted—Crosse of Lincoln and Button of Merton; while the Chancellor himself was deputed, on March 8, to instal the new functionaries in office, and to bring the University into subjection. On March 30 a further order of deprivation was published, embracing the removal of Sheldon from the wardenship of All Souls', and Hammond from his canonry of Christchurch. About the same time the Visitors were empowered to use the military force at their disposal, and on April 11 the Chancellor himself arrived to enforce obedience. He found the University in a state of almost open mutiny against the Parliament and the Visitors. In spite of fresh orders and the appearance of a body of troops sent down by Fairfax, the Heads of Houses sentenced to expulsion refused to quit their colleges, Mrs. Fell retained possession of the deanery in her husband's absence, and when the members of Convocation were solemnly cited to meet the Visitors a mere handful responded. Great pains had been taken to mar the dignity of the Chancellor's reception, and loyal pamphleteers lavished their bitterest jests on the absence of academical ceremony, the presence of soldiers, and the substitution of an English for a Latin address of welcome. But all serious resistance was now vain. During a stay of three days Pembroke was lodged at Merton, where the Visitors usually held their sittings in the Warden's house, and had already abstracted the University register from the rooms of French, the registrar, who happened to be a fellow of the college. Reynolds was installed as vice-chancellor; ten Heads of colleges were actually ejected, most of the professors and canons of Christchurch shared the same fate; two vacant headships were immediately filled up, and worthy successors were appointed to most of the offices vacated by expulsion; new Masters of Arts were created, some imported from Cambridge, and the Visitors proceeded to purge each college with a view to its re-organisation.

Visitation of colleges.
Submissions and expulsions

The details of these collegiate Visitations are beyond the scope of general University history, but they were all conducted on the same principle. Every member of the college, from the Head to the humblest servant, was asked whether he would submit. No evasions were allowed, and the 'non-submitters' were at once turned out. At a later period (November 1648) the London Committee insisted on the Visitors tendering also the Negative Oath, involving an abjuration of all connection with the King, his council, or his officers, and the refusal of this new test led to some

further expulsions. After the lapse of a year, the London Committee went one step further, and required subscription to 'the Engagement,' pledging the signatories to a government without a King or House of Lords. Reynolds, Pocock, and Mills, who had taken all the former tests, resigned their offices rather than submit to this, but it does not seem to have been strictly or universally applied. No exact list of the cases in which the Visitors exercised their jurisdiction can now be made out, but the evidence preserved in the 'Visitors' Register,' which has come down to us, leads to the conclusion that the numbers of the submissions and expulsions were nearly equal, amounting in each case to 400 or 500, and spread over several years. So obstinate was the resistance of some colleges that it was at last thought necessary to proclaim that any expelled members remaining in Oxford should incur the penalty of death. But the functions of the Visitors were by no means purely inquisitorial and judicial. They also superintended, and often personally directed, the whole internal management of colleges, regulating leases, dictating admissions to scholarships and fellowships, making arrangements for examinations, deciding on the rate of allowances, suggesting if not prescribing the alteration of statutes, and overriding corporate rights of self-government with a despotic air which Laud might have envied.

Reception of
Fairfax and
Cromwell

While they were thus engaged, Fairfax and Cromwell visited Oxford together in state on May 17, 1649. They were lodged and entertained at All Souls', in the absence of the new Warden, now on duty in Parliament, by Zanchy, the sub-warden, and one of the proctors, who happened to be a colonel in the Parliamentary army. Both the generals received a D.C.L. degree, and Cromwell, addressing the University authorities on behalf of himself and Fairfax, professed his respect for the interests of learning, and assured them of his desire to promote these interests for the sake of the commonwealth. They dined at Magdalen, played bowls on the college green, had supper in the Bodleian Library, and attended University sermons at St. Mary's. There is no reason to doubt the sincerity of the assurances given by Cromwell, who became Chancellor on the death of Pembroke, in January 1650. In this capacity, he not only presented the University with a collection of manuscripts, but resisted the reduction of academical endowments proposed by the Barebones Parliament, and supported by

Milton; while Fairfax, himself a man of scholarlike tastes, had already proved his regard for the University when the city was in his power.

Second Board of
Visitors

The first stage of the Visitation terminated in April 1652, when the London Committee was dissolved, and the Visitors ceased to act. Their work had been constantly interrupted by differences with the London Committee, whom they recognised as their official superiors, but who had of course little acquaintance with University affairs. These bodies were equally resolved to Presbyterianise the University, to make its education more emphatically religious, to strengthen moral discipline, and to enforce such rules as those against excess in dress, and even that which enjoined the colloquial use of Latin. They differed chiefly in their mode of action, the Visitors desiring to adopt a more conciliatory attitude, and to show more respect for academical independence than the London Committee was prepared to sanction. Several changes had taken place among the former, and the retirement of Reynolds had weakened the moderate party on a board which, however, remained distinctively Presbyterian. During the fourteen months between April 1652 and June 1653 the history of the University, like the Visitors' Register, presents almost a blank. On September 9, 1652, Owen, who had succeeded Reynolds as Dean of Christchurch, was nominated vice-chancellor by Cromwell. On October 16 he was placed at the head of a commission to execute all the Chancellor's official powers. With him were associated Goddard, the Warden of Merton; Wilkins, the Warden of Wadham; Goodwin, the President of Magdalen; and Peter French, prebendary of Christchurch; and the government of the University seems to have been practically transferred from the Visitors into their hands. Of these men, Goddard had been head physician to Cromwell's army in Ireland, and afterwards in Scotland; Owen and Goodwin had been his chaplains, and thoroughly enjoyed his confidence; Wilkins was one of the most eminent scientific authorities of his time; French was Cromwell's brother-in-law and had been on the Board of Visitors. All of these, except Wilkins, were appointed, with five others, to serve on a new and temporary Board of Visitors, for the creation of which the University itself had petitioned, in order to carry on the new academical settlement, with the expression of a hope that they might be fewer in number than before, and all resident. The proceedings of this Board, in which the Independents were more strongly represented, deserve but little notice. The process of weeding out the

University and colleges having been completed, and strict rules laid down, little remained except to interpret these rules, to organise the new system, and to guard against the revival of abuses. The Visitors, however, agreed to meet every Monday and Tuesday, and succeeded in doing much useful work. In September 1654, the Board was reconstituted by Cromwell, who had been solemnly congratulated by the University on his assumption of the Protectorate in the previous December.

Third Board of
Visitors, and
conclusion of the
Visitation

As Owen had been the ruling spirit on the second Board of Visitors, so this last was mainly dominated by the influence of Goodwin, and contained several additional members, some Presbyterians. It lasted no less than four years, but the records of its proceedings are but scanty, and chiefly relate to corrections of abuses, such as corrupt resignations of fellowships and irregular elections. In short, the Parliamentary Visitors, having placed the government of the University and colleges in hands which they regarded as trustworthy, were mainly occupied in discharging the functions which properly belonged to the Chancellor and the ordinary Visitors of the several colleges. In an appeal from Jesus College, they deliberately set aside the jurisdiction of the Earl of Pembroke as hereditary Visitor of that society. On the other hand, after Cromwell's resignation of the chancellorship on July 3, 1657, they went so far as to lay before him their decision on an important case at All Souls', and received from him an assurance 'of all due encouragement and countenance from his Highnesse and the Councell.' Even while they were claiming a paramount authority, the University was insensibly recovering its independence. As vice-chancellor and Dean of Christchurch, Owen was still a great power in the University, and supported a body of Delegates who proposed a sort of provisional constitution for the University under which independent representatives of Convocation would have been associated with the Visitors. In another instance, Owen sought to override a vote of Convocation against reforms which he proposed by the direct action of the Visitors and even of the Protector's Council, but was foiled in the first attempt, and dissuaded from making the second. In fact, the University had begun to legislate again for itself, and was becoming somewhat impatient of being nursed and schooled by a meddlesome select committee of its own members. As Convocation alleged, 'Visitors residing upon the place do rather nourish and ferment than appease differences,' and there was a

natural resentment against Heads of colleges acting as judges on their own causes. Having done its real work, the Visitation was perishing of inanition. After Richard Cromwell had been elected Chancellor in July 1657, he appointed Dr. Conant, Rector of Exeter, vice-chancellor, and from this moment Conant, whose importance had long been growing, became the real governor of the University. With a firmness and zeal for reform fully equal to Owen's, he combined a more conciliatory and statesmanlike character, and while he resisted, as the champion of academical privileges, Cromwell's scheme for a new University at Durham, he stoutly upheld the autonomy of colleges against the project for superseding all episcopal Visitors. Nevertheless, for six months after his nomination to the vice-chancellorship the Parliamentary Visitors continued to meet, and to make occasional orders, the last of which is dated April 8, 1658, when their register breaks off abruptly. It is not known how their commission was terminated, or whether it was terminated at all. By this time, however, it was beginning to be manifest that, after all, the old order in Church and State was regretted by a majority of the people, and that England was almost tired of Puritan despotism. Parliament itself had virtually established an amended monarchy with a new House of Lords, and the army alone had prevented Cromwell from assuming the title of King. No one was better aware than he of the reaction in popular sentiment, calling for a revival of the institutions so hastily demolished, and his prescient mind foreboded, if it did not actually foresee, the coming restoration of the Stuarts. In this last year of his life there was no force in the central government to push on further interference with Oxford. Moreover the University was now in good order, and possessed the confidence of the nation.

State of the
University on the
recovery of its
independence

It is clear, indeed, from scattered notices of passing events, that its inner life had been less disturbed by the presence of the Visitors than we might infer from the space which they naturally fill in University history, and that since the close of the Civil War Oxford studies and habits had been gradually resuming their ordinary course. It is some proof of this that even during the Puritan interregnum no order was issued to put down the disorderly and indecorous buffoonery of the *Terræ Filii*, those self-constituted and privileged satirists whose sallies upon University dignitaries continued to scandalise graver censors of academical morals for several generations. When John Evelyn visited Oxford in 1654, and

witnessed the celebration of the Act in St. Mary's Church, he found 'the ancient ceremonies and institutions as yet not wholly abolished,' enjoyed the usual round of festivities, and admired the mechanical inventions contrived by Dr. Wilkins with the aid of young Christopher Wren. In the following year a coffee-house was opened opposite All Souls' College, and largely frequented by Royalists and others 'who esteemed themselves either *virtuosi* or wits,' and in many a private house the services of the Church were regularly performed by clergymen in surplices, to congregations of gownsmen, with the full knowledge, if not the actual connivance, of Cromwell and the Visitors. The academical population was already larger than it had been in the reign of James I., and the University contained quite as many scholars and divines of established reputation. Throughout all the disorders and confusion incident to revolutionary times, it had never ceased to be respected as a home of religion and learning, and Clarendon himself bears unconscious witness to the character of the Visitation in the well-known passage which concludes his strictures upon it. For, after denouncing it as a reign of barbarism, he proceeds to say that, in spite of all, the University 'yielded a harvest of extraordinary good and sound knowledge in all parts of learning, and many who were wickedly introduced applied themselves to the study of good learning and the practice of virtue, and had inclination to that duty and obedience they had never been taught, so that when it pleased God to bring King Charles the Second back to his throne, he found that University abounding in excellent learning, and devoted to duty and obedience little inferior to what it was before its desolation.'

CHAPTER XIII.

THE PERIOD BETWEEN THE RESTORATION AND THE REVOLUTION.

The Restoration and
new Visitation of
the University

On Monday, February 13, 1660, news was brought to Oxford that a 'free Parliament,' or Convention, was about to be assembled, and was hailed with great rejoicings as a sure presage of the coming Restoration.

On May 29 Charles II. entered London, and in June a new set of Visitors appeared at Oxford to undo the work of their predecessors under the Commonwealth. This Visitation was issued at the instance, if not by the direct authority, of the Marquis of Hertford, who succeeded Richard Cromwell on his resignation in May on the King's return, and who himself, dying in the following October, was succeeded by Clarendon. Wood draws a graphic picture of the various emotions portrayed in the countenances of the defeated and victorious parties at Oxford, the one plucking their hats over their eyes and foreseeing speedy retribution, the others with cheerful looks, and reinstating 'all tokens of monarchy that were lately defaced or obscured in the University.' Happily, the personal constitution of the commission was by no means exclusive, since at least eight of its members had submitted to the last Visitation, and held offices during the 'usurpation,' as it was now to be called. Their instructions, too, were mainly directed to a restitution of expelled Royalists, of whom the number had greatly dwindled in the interval, many having died or 'changed their religion,' while others, being married, were no longer eligible for college fellowships. It is said that not above one-sixth remained to be restored, but among these were several persons of considerable note. Sheldon had already regained the wardenship of All Souls'; Walker recovered the mastership of University; Oliver again became President of Magdalen; Yate, Principal of Brasenose; Newlin, President of Corpus; Potter, President of Trinity; Baylis, President of St. John's; Mansell, Principal of Jesus; and Wightwick, Master of Pembroke. Reynolds was appointed in quick succession Dean of Christchurch and

Warden of Merton, whence he was promoted to the see of Norwich in the following year. A large proportion of the fellows elected during the previous Visitation were allowed to keep their places, for which there were no rival claimants; others, though statutably elected, were turned out, but in some cases they were consoled with chaplaincies or other subordinate posts. Two or three months sufficed to complete these personal changes, but a royal letter re-established all the statutes and regulations in force before the 'usurpation,' including the oaths introduced under James I., and this letter, coupled with the Act of Uniformity passed in 1662, must have rendered the positions of many Puritans at Oxford practically untenable. By a clause in that Act, it was for the first time required that every person elected to a college fellowship should make a declaration of conformity to the liturgy of the Church of England in the presence of the vice-chancellor. Such a provision had a sensible effect in making Oxford once more a seminary of the clergy and country gentry, but there was no violent break in the continuity of its corporate life. For some little time after the Restoration, the University was in an unsettled state, and the students, released from the bondage of Puritan discipline, betrayed some pardonable excitement; but good order revived under a succession of prudent vice-chancellors, and Oxford, so long the battle-ground of rival parties in the State, enjoyed comparative repose under Charles II.

Extension of
University
buildings.
Sheldonian Theatre

Several improvements in the external features of the city and University may be dated from this reign. Not the least was the erection of the famous Sheldonian Theatre for the performance of the annual Acts, now known as 'Commemorations,' and other academical solemnities. This building was founded by Gilbert Sheldon, who, having resumed the wardenship of All Souls' in 1660, and become Archbishop of Canterbury in 1663, was elected Chancellor in succession to Clarendon in 1667. In common with many Anglicans of the Laudian school, Sheldon had long objected to the profanation of St. Mary's Church involved in the use of it as a kind of academical town-hall for scholastic exercises and secular displays. Perhaps the contempt of the Puritans for sacred edifices had quickened the zeal of Royalists for their dedication to strictly religious purposes; at all events, the archbishop offered 1,000*l.* towards the construction of a suitable theatre, and, meeting with little support from others, ultimately took upon himself the whole cost, amounting to 25,000*l.*

The mode in which the site was procured illustrates the change which was already passing over mediæval Oxford, now in process of conversion from a fortified into an open town. Though a great part of the walls was preserved, and the city gates survived for another century, the ditch was being filled up and new streets constructed along the course of it. Several houses adjoining the old ramparts were purchased on the north side of the Divinity School; Christopher Wren was engaged as the architect, and Streeter as the painter of the pictures which adorn the ceiling; and the building, having been commenced in 1664, was completed in 1669—the year in which the Divinity School was restored according to Wren’s designs. John Evelyn received a degree at the first academical festival held in it, and was as much impressed by the grandeur of the spectacle and the learning of the discourses as he was shocked by the vulgar ribaldry of the *Terræ Filius*. It is worthy of notice that in the address delivered on this occasion by Dr. South, as Public Orator, were ‘some malicious and indecent reflections on the Royal Society, as underminers of the University.’ That society, in fact, passed through much of its infancy, if it did not take its birth, at Oxford. Among its earliest and most influential members were Dr. Wilkins, the Warden of Wadham, Dr. Goddard, the Warden of Merton, and Dr. Wallis, a Cambridge man, who afterwards became Savilian professor of geometry in Oxford. These and others were in the habit of meeting for scientific discussions at Goddard’s lodgings, or Gresham College, in London, before the end of the Civil War, but about 1649 all three of them were settled in Oxford, where they found congenial associates in such men as William Petty, Robert Boyle, and Wren, and resumed their meetings in Petty’s or Wilkins’ lodgings, while the rest continued to meet in London.

Growth of æsthetic tastes and social refinement

Other facts attest the variety of intellectual life and interests at Oxford during the same period. Evelyn speaks of an organ as placed in the upper gallery of the theatre, and of ‘excellent music, both vocal and instrumental,’ as part of the programme at the opening of the Sheldonian Theatre. The earliest order for the apportionment of seats assigns that very gallery ‘for the performance of music,’ while it allots places to ladies, strangers, and ‘Cambridge scholars.’ Thenceforth music played a considerable part among academical recreations, and a taste for the *belles-lettres* and the fine arts was rapidly developed. In 1677, the Arundel marbles were presented to the University by the Earl of Arundel, mainly

owing to the assiduous exertions of John Evelyn; on May 24, 1683, the Ashmolean Museum was opened, and in the next month Convocation accepted Elias Ashmole's gift of all his 'rarities,' consisting of valuable collections in natural history and antiquities. A certain air of literary dilettantism was characteristic of the same age at the University as well as in the metropolis. Under a statute passed in 1662, bachelors of Arts were required, before inception, to recite from memory two Latin declamations of their own composition, and from this period may be dated the gradual triumph of *Literæ Humaniores* over scholastic disputations in the examination-system of Oxford. Versification in Latin now became a favourite pastime of Oxford scholars, and many poems of doubtful Latinity on the politics or philosophy of the day were composed there during the latter half of the seventeenth century. In the meanwhile, modern notions of comfort were beginning to modify the old austerity of college life. The earliest of Oxford common-rooms was instituted at Merton College in 1661, and sixteen years later Anthony Wood mentions 'common chambers' together with alehouses (of which there were said to be above 370), and the newly established 'coffea-houses,' as contributing to the decay of 'solid and serious learning.' College gardens, too, received far more attention than before, and we may still trace on Loggan's maps and plans the geometrical designs upon which these little plots were ingeniously laid out by the Caroline landscape-gardeners, though Magdalen 'water walks' retained their native wildness.

First visit of
Charles II.

Charles II. twice visited Oxford, where his presence and example could scarcely have been conducive to virtue or decorum among the students. His reign is marked by frequent interference with the freedom of college elections, in the form of attempts to use fellowships as rewards for his favourites or the relations of old cavaliers, though in more than one instance he gracefully retracted his mandate. When he arrived at Oxford from Salisbury, in September 1665, the plague was at its height in London. There he remained until the following February, lodging, as usual, at Christchurch, while the Queen was accommodated at Merton, residing in the very rooms in which her mother-in-law, Henrietta Maria, held her Court during the Civil War. Miss Stuart, afterwards Duchess of Richmond, occupied a fellow's rooms in the same college, and another set was assigned to Barbara Villiers, Lady Castlemaine, and afterwards Duchess of Cleveland. In these rooms, on

December 28, 1665, was born her son, George Villiers, afterwards Earl of Northumberland and Duke of Grafton. It is stated in the college register that bachelor fellows and scholars were turned out of their chambers to make room for the Court, and that as there were more ladies than students in the chapel, 'ordinary prayers' were used in the service.

Second visit of
Charles II.
Parliament
assembled and
dissolved at Oxford

Sixteen years had elapsed before Charles II. again visited Oxford, in the spring of 1681, to open the last Parliament ever held in the city, supposing that Whig members would there be subjected to loyalist influences, and more amenable to his own dictation. The supposed discovery of the 'Popish Plot' in 1678 had provoked a fresh outburst of Protestant enthusiasm and bigotry. An Act had been passed disabling all Papists, except the Duke of York, from sitting in either House of Parliament, and was quickly followed by a Bill to exclude the Duke of York from the succession. To arrest the progress of this Bill, two Parliaments had been dissolved by the King, and that summoned to meet at Oxford lasted but a week. The King journeyed thither surrounded by his guards of horse and foot, while the Exclusionist leaders were escorted by hosts of friends and armed retainers. On this occasion, the schools of geometry, astronomy, and Greek were fitted up for the House of Lords, the Convocation House being adapted to receive the Commons. The Commons again brought in the Exclusion Bill. The King met it with a strange proposal that, after his own death, the government should be carried on in James's name by the Prince of Orange as Regent. The Commons persisted with the Bill, whereupon the Parliament was suddenly dissolved by the King, who had quietly put the crown and robes of state into a sedan chair, got into it himself, and surprised both Houses by his sudden appearance to close the session. During this short crisis, anti-Papist sentiments found expression among the gownsmen, but we may safely assume that a majority of graduates were secretly in favour of the King against the Exclusionists. Anthony Wood, remarking on the decline of students in 1682, attributes it to three causes. The first is the constant expectation of another Parliament to be held at Oxford, and the fear of being turned out to make room for members. The second is that 'all those that we call Whigs' (a name just invented) 'and side with the Parliament, will not send their sons for fear of their being Tories.' The last is that the University, like the Episcopal bench, labours under the suspicion of a leaning towards Popery.

Doctrine of passive resistance adopted by the University. Expulsion of Locke

In the following year, the University was afforded a good opportunity for demonstrating its sympathy with the Duke of York by the disclosure of the so-called 'Rye House Plot.' Accordingly, on July 21, 1683, Convocation passed a decree again condemning the doctrine that resistance to a king is lawful, which doctrine it formulated in six propositions expressly stated to have been culled from the works of Milton, Baxter, and Goodwin. By the same decree, however, the University recorded an equally solemn anathema against other heresies mostly founded on the despotic principles of Hobbes' 'Leviathan,' thereby anticipating the verdict of the country in 1688. Within three months of his death, Charles II., acting on these principles, was betrayed into a strange piece of intolerance, more worthy of his successor, in which he was abetted by the Chapter of Christchurch, and of which the illustrious John Locke was the victim. On November 5, 1684, a letter was addressed by Sunderland to Dr. John Fell, Dean of Christchurch and Bishop of Oxford, directing him to 'have Locke removed from being a student.' Fell replied that Locke had been carefully watched for years, but had never been heard to utter a disloyal word against the government, notwithstanding which he basely offered to procure his removal on receipt of an order from the King, and actually did so.

Conduct of the University on the outbreak of Monmouth's rebellion. James II.'s treatment of Magdalen College

In the first year of James II.'s reign, the University of Oxford was once more stirred by martial ardour, when the Duke of Monmouth landed in Dorsetshire. Volunteers from the colleges mustered in great force to oppose him; a troop of horse and a regiment of foot were enrolled under the Earl of Abingdon, and the victory of Sedgemoor was celebrated with academical bonfires, in which, for once, the City took part. A week later, upon a false alarm, the volunteers were again called out, but soon disbanded. With that strange ignorance of his countrymen which ultimately proved his ruin, James interpreted these signs of loyalty as pledges of abject devotion to his person, and proceeded to strain the well-tried fidelity of the University by gross outrages on its privileges. The grand secret of his fatuous statecraft was the use of the dispensing power, as its end was the supremacy of the Crown and the restoration of the ancient faith. Having obtained an opinion from the judges favourable to this dispensing power, he had bestowed commissions in the army and Church preferments on several professed Romanists. Fell

was succeeded as Dean by Massey, an avowed Papist, nominated by James, and soon afterwards both the Universities were attacked by the new Court of High Commission. Cambridge boldly refused to obey a royal mandate for the admission of a Benedictine to a degree without taking the usual oath. A severer ordeal was prepared for Oxford. With such instruments as Obadiah Walker, the Master of University, the King seriously meditated the conversion of the University, and dispensations were granted for establishing Romanistic services in colleges. By the Declaration of Indulgence, issued in 1687, James assumed to make Roman Catholics admissible to corporations; and the colleges appeared to offer a favourable trial ground for the experiment. All Souls' had just escaped a royal mandate for the election of a Roman Catholic to its wardenship by electing an extreme Tory of doubtful character, who had friends at Court. The presidentship of Magdalen College was now vacant, and Farmer, a Papist of notoriously bad character, was recommended for it by royal letters. The fellows refused to comply, justifying their refusal on the ground that James's nominee was not only unfit for the office but was also disqualified by their statutes. Accordingly, after vainly petitioning the King to withdraw his command, they elected Hough, one of their own body, to whom no exception could be taken. The election was confirmed by the Visitor, but annulled by the new Court of High Commission, under the presidency of Jefferies, who treated a deputation from the college with brutal insolence. The King then issued another order, commanding the college to elect Parker, bishop of Oxford, an obsequious tool of his own policy. He even came to Oxford in person, on September 4, 1687, in order to enforce obedience, and did not scruple to intimidate the fellows with rude threats of his royal displeasure in case they should prove contumacious. The conduct of Magdalen on this occasion was eminently constitutional, and had no slight influence in determining the attitude of the nation. The fellows maintained their rights firmly but respectfully, and unanimously declined submission to any arbitrary authority. Thereupon a commission was appointed with full powers to dispossess all recusants by military force, and the new President and twenty-five fellows were actually ejected and declared incapable of Church preferment. Parker died within a twelvemonth, but James substituted one Gifford, a Papist of the Sorbonne, and was proceeding to repeople the college with Roman Catholics when the acquittal of the Seven Bishops and the invitation to William of Orange

suddenly opened his eyes to his real position. During the month of October 1688 he made desperate efforts to save himself from ruin, restoring many officers deprived of their commissions, dissolving the Ecclesiastical Commission, and removing Sunderland and Petre from his council. In this death-bed fit of repentance he addressed letters to the bishop of Winchester, as Visitor of Magdalen, reinstating the ejected fellows, who, however, had scarcely returned before James had abdicated, and William and Mary had been proclaimed.

CHAPTER XIV.

UNIVERSITY POLITICS BETWEEN THE REVOLUTION AND THE ACCESSION OF GEORGE III.

Attitude of the
University towards
the Revolution.
Visit of William III.

The Revolution of 1688-9 seems to have been quietly accepted at Oxford as an irrevocable fact rather than welcomed as the consecration of civil and religious liberty. For a while, indeed, the outrageous invasion of academical privileges by James II. produced its natural effect, and deputies from the University were despatched to salute William III. at Crewkerne, after his landing in Torbay. William actually came as far as Abingdon, but, there receiving news of James's flight, sent to excuse himself, and hurried on towards London. Burnet tells us that, at the same time, and at his request, the 'Association,' or pledge to support him in restoring order and liberty, was signed by almost all the Heads of colleges and the chief men of the University. But he adds that some of the signatories, 'being disappointed in the preferments they aspired to, became afterwards King William's most implacable enemies.' At all events, reactionary tendencies gradually manifested themselves, and it is said that Locke, who had little cause for gratitude to Oxford, urged the King to reform the Universities once more, alleging that otherwise the work of the Revolution 'would all soon go back.' William had been recognised as a deliverer, but Oxford loyalists had not abandoned their allegiance to the Stuart dynasty, however inconsistent with their submission to William as king *de facto* by the will of a Parliamentary majority. It was not until the autumn of 1695, after the death of Mary, and the complete transfer of power to the Whigs, that he found time to visit the University, for a few hours only, on his way from Woodstock to Windsor. He was received by the Chancellor, the second Duke of Ormond, and one of a family which, as representing the high Tory aristocracy, held this office, as if by hereditary right, for a period of ninety years. All the usual ceremonies were observed; a select body of Doctors and Masters 'rode out in their gowns to meet the

King' a mile on the Woodstock road, and a grand procession conducted him down the High Street to the east gate of the schools, through which he passed directly to the theatre, where a sumptuous banquet was prepared for him. Evelyn states that, being coldly received, he declined the banquet and barely stayed an hour; according to another report, in itself improbable, the fear of poison deterred him from tasting the refreshments provided. However this may be, he certainly never courted or acquired popularity at the University, which henceforth became a hotbed of Jacobite disaffection for at least two generations.

Origin of Oxford
Jacobitism. Visit of
Queen Anne

The exact source of this sentiment is somewhat difficult to ascertain, but it was probably a survival of the Puritan Visitation, and was doubtless connected with hearty respect for the Non-jurors, to whose ranks, however, Oxford contributed fewer resident members than Cambridge. But Oxford Churchmen assuredly cherished a genuine hatred of the latitudinarian opinions attributed to William III., and afterwards patronised by Whig statesmen. Whatever may have been its source, and whether it was in the nature of a settled conviction or of an inveterate fashion, Jacobite partisanship was shared alike by 'dons' and by undergraduates, it was the one important element in the external history of the University under the first two Georges, and, like Scotch Jacobitism, it retained a sort of poetical existence up to a still later period. In their opposition to the Comprehension Scheme promoted by the King, the University of Oxford was supported by that of Cambridge, in which there long continued to be a strong Jacobite minority, but which, by comparison with Oxford, soon came to be regarded as a nursery of Whig principles. Still the commission appointed to prepare a scheme of Comprehension included the names of Aldrich, afterwards dean of Christchurch, who had succeeded the Romanist Massey, and Jane, Regius Professor of divinity, who had been converted from extreme Toryism by James II.'s aggression on Magdalen, but was reconverted by William III.'s neglect of his claims to a bishopric. The hopes of a Jacobite reaction, excited by the accession of Queen Anne, found an enthusiastic echo in the University. On July 16, 1702, a grand 'Philological Exercise' was celebrated in the theatre for the special purpose of honouring the new Queen. On August 26 of the same year, Queen Anne herself visited Oxford, where a fierce struggle for precedence at her reception took place between the University and City, which afterwards showed more respect for the

Stuart dynasty in exile than when it was on the throne. Burnet complains bitterly of the clerical Toryism and ecclesiastical bigotry which prevailed at Oxford in 1704, accusing the University of ‘corrupting the principles’ of its students. Hearne, the learned Oxford chronicler, writing on September 2, 1705, notices a thanksgiving sermon preached by a Mr. Evans, of St. John’s, a clergyman of doubtful character, of which Dr. Lloyd, bishop of Worcester, said that ‘he was very glad there was one even in Oxford that would speak for King William.’ He adds, three days later, that Evans had talked mightily of publishing this sermon, but that ‘there is none in Oxford will print a thing so scandalously partial against the Church of England.’

Popularity of
Sacheverell.
Position of the
Whig minority

During the furious outbreak of High Church fanaticism, which rallied the mass of English clergy and shattered the Whig ascendancy at the end of 1709, the gownsmen were active partisans of Dr. Sacheverell, himself a graduate of Magdalen. The vice-chancellor came forward as surety for him, Atterbury, the future dean of Christchurch, defended him with great ability, and Oxford afterwards gave him an enthusiastic reception. The House of Lords marked its sense of this disloyalty in the following year by causing the famous University decree of 1683 to be publicly burned, together with Sacheverell’s sermons. No sooner did Queen Anne disavow her Whig advisers and place herself openly under Tory influences, than Oxford, undeterred by this rebuke, paraded its Toryism without disguise, and, had it retained its old place in national politics, the Hanoverian succession would have encountered a still more formidable opposition. But the Whig oligarchy again saved the country. After four years of Tory policy, another crisis occurred, the Tory ministry broke up, the great Whig lords forced their way into the council chamber, the Hanoverian succession was secured, and Queen Anne opportunely died. The accession of the Elector of Hanover was received at Oxford with sullen disappointment, but the Heads of Houses consulted their own interests by offering a reward of 100*l.* for the discovery of an unknown person who had delivered at the mayor’s house a letter protesting against the proclamation of George I. He was proclaimed, nevertheless, at St. Mary’s, as well as at Carfax, but the scantiness of the attendance and shabbiness of the procession was remarked with satisfaction by the Tories. Baffled in their hopes of support in the highest quarter, the Tory democracy of the University took refuge in libels, disloyal toasts, and offensive lampoons.

The Whig gowmsmen, few as they were, and mostly confined to New College, Oriel, and Merton, had an influential protector in Gardiner, the Warden of All Souls', and vice-chancellor from 1712 to 1715, himself a moderate Tory, but resolute in saving the University from the risk of casting in its lot with the Pretender. They formed themselves into a club, which they called the 'Constitution Club,' and to which no one below the rank of B.A. was eligible. This club soon became the chief object of Tory resentment, at last culminating in a riot which called for the intervention of the government.

Jacobite demonstrations. A troop of horse sent to Oxford

On May 28, 1715, being the first anniversary of George I.'s birthday since his accession, the Whig club had assembled to commemorate the day at the King's Head tavern. They were attacked by a Tory mob, and a fray ensued, which broke out afresh on the following day, being the Restoration-day. The Heads of Houses, and even the grand jury for the county, sheltered the aggressors, and reserved all their rebukes for the obnoxious club. The government naturally took a different view of the case, and called for explanations. Feeling that matters, had gone far enough, the University authorities took means to suppress Jacobite demonstrations on June 10, the Pretender's birthday; but they were at no pains to conceal their real inclinations. On the impeachment and resignation of Ormond, the University hastened to elect his brother, the Earl of Arran, as his successor in the chancellorship, and conferred the degree of D.C.L. on Sir Constantine Phipps, a Tory of Tories, with special marks of honour, while its representatives in Parliament were prominent leaders of the same party. At last the patience of the government was exhausted. On the birthday of the Prince of Wales there were no signs of rejoicing, and complaint of this omission was made to the mayor by an officer in command of a recruiting party then in Oxford. Another disturbance ensued, of which conflicting accounts were sent to London, and the whole affair came before the House of Lords in the course of a debate on the Mutiny Bill. The University was ably represented, and a plausible defence was offered on its behalf, but the verdict of the House was unfavourable. In the meantime, an address to the Crown voted by the University on the outbreak of the rebellion in Scotland had met with the reception which its insincerity deserved, and the government determined to employ decisive measures. A body of dragoons under Major-General Pepper entered Oxford, martial law

was at once proclaimed, and the students were ordered to remain within their colleges on pain of being marched off to military execution. After a few seizures had been made, the dragoons were replaced by Colonel Handyside's regiment of foot, which continued to be quartered in Oxford for the express purpose of overawing the University—no unnecessary measure when a rebellion of unknown extent had been planned not only in Scotland and the north of England but in the western counties. It was on this occasion that an Oxford wit contrasted the King's severe treatment of Oxford with his munificent present of a library to Cambridge in lines which, together with the Cambridge repartee, have become historical.

The Constitution Club. Government scheme for reforming the University

On May 29 of the following year, while Colonel Handyside's regiment was still in Oxford, the Constitution Club was again the scene of a political commotion, though of a less serious nature. Meadowcourt, the steward of the club, having forced the junior proctor to drink the King's health, was suspended from his degree for the space of two years; and it was further ordered that he should not be allowed to supplicate for his grace 'until he confesses his manifold crimes and asks pardon upon his knees.' In spite of the King's Act of Grace, to which he skilfully appealed, he was twice refused his M.A. degree. He lived, however, to bring the disaffection of the University under the notice of the government in 1719, when the vice-chancellor refused to notice a disloyal sermon preached by Warton, though he was disappointed to receive no more than a letter of thanks for his zeal. Other Whigs endured similar persecutions; the Whig satirist, Amherst, was driven out of St. John's College, and social penalties were freely inflicted on members of Merton, Exeter, Christchurch, and Wadham, then suspected of being anti-Jacobite societies. The Constitution Club died out before the end of George I.'s reign, and many academical Whigs became so disheartened as to conceal their principles or even to affect Toryism for the sake of preferment. Indeed, the avowed hostility of Oxford and the doubtful fidelity of Cambridge to the reigning dynasty were regarded with so much anxiety at Court that it was seriously contemplated to introduce a Bill to suspend the constitution of both Universities. The draught of this Bill empowered the 'King to nominate and appoint all and every the Chancellor, Vice-Chancellor, Proctors, and other officers of the said Universities, and all Heads of Houses, Fellows, Students, Chaplains, Scholars, and

Exhibitioners, and all members of and in all and every the College and Colleges, Hall and Halls in the said Universities or either of them, upon all and every vacancy and vacancies,' &c. This provisional administration was to last for seven years, and the project of it was approved by fifteen bishops. Lord Macclesfield, the Lord Chancellor, had drawn up a separate plan of reform with the same object of controlling the University through government patronage. The election of Heads was to be vested in the great officers of State, with the concurrence of the Visitor and the bishop. The disposition of all other college emoluments was to be placed in the hands of a commission. The fellowships were to be limited to a term of twenty years, lest they should conduce to idleness and self-indulgence. Professorships and minor fellowships charged with educational duties were to be founded. The benefices of the Crown and the nobility were to be conferred only on 'well-affected persons.' Colleges in which 'honest and loyal men' predominate were to be specially favoured in the distribution of Crown patronage, 'till the true interest in them was become superior to all opposition.' Happily wiser counsels prevailed, and there is reason to believe that Archbishop Wake was largely instrumental in averting the danger. He knew that Oxford Tories could only be influenced through Tory leaders, and discreetly used such mediation to keep the factious spirit of the University within tolerable bounds, until the design against its independence was abandoned. But George I. never deigned to visit Oxford, being the first sovereign who had failed to do so since the reign of Mary.

Gradual decline of Jacobitism in Oxford during the reign of George II.

During the earlier years of Walpole's administration the University seems to have been comparatively free from political turmoil. Many of the gownsmen, however, took part with the citizens in the disorderly revels, lasting for three nights, which celebrated the withdrawal of the Excise Bill, in 1733, when the healths of Ormond, Bolingbroke, and James III. were publicly drunk round the bonfires. On the other hand, in the following year the University accorded an enthusiastic reception to the Prince of Orange, who came to marry the Princess Anne. The city shared in these festivities, conferring its freedom upon the prince at the north gate on his return from Blenheim, while bell-ringing, illuminations, and bonfires were kept up for three nights together. Still covert Jacobitism found expression in the University pulpit, and John Wesley, desiring to guard himself against the imputation of it when he preached before the University

in 1734, got the vice-chancellor to read and approve his sermon beforehand. Even after the suppression of the rebellion in 1745 it was not extinct, and in 1748 the government resorted to somewhat excessive severity against three students who had toasted the Pretender, although the vice-chancellor and proctors, apprehensive of the result, had issued a peremptory order declaring their resolution to put down seditious practices. Further proceedings were instituted against the vice-chancellor and the University itself, but the motion was negatived by the Court. The government, however, was not appeased. When the peace of Aix-la-Chapelle was proclaimed at Oxford, the vice-chancellor, Heads of Houses, professors, and proctors took care to participate in public rejoicings with the mayor and corporation, but a congratulatory address from the University on this event was rejected with disdain. The loyalty of the University was still justly distrusted. In 1754 Dr. King, a notorious Jacobite, and Principal of St. Mary Hall, elicited rounds of applause from the whole audience in the theatre, filled with peers, members of Parliament, and country gentlemen, by thrice pausing upon the word *Redeat*, purposely introduced into his speech to gratify 'the Old Interest.' No wonder that in the same year Pitt denounced Oxford Jacobitism in the House of Commons; notwithstanding which, in the following year (1755), a Tory and Jacobite mob, guarding the approaches to the polling-booths at the county election for days together, prevented the Whigs from giving their votes. Again, in 1759, Lord Westmoreland, who had been a zealous Hanoverian, but had afterwards turned Jacobite out of resentment against Sir Robert Walpole, was elected by the University as its Chancellor. Yet the days of Oxford Jacobitism were already numbered; it was well nigh dead as a creed, and it soon ceased to be a fashion. The marvellous victories of the same year kindled genuine enthusiasm among the gowmsmen, and a most fulsome address was presented to George II. by the Oxford Convocation, begging 'leave to approach your sacred person with hearts full of duty and affection,' and applauding the measures taken 'for the support of the Protestant religion and the liberties of Europe.'

Revival of loyalty
after the accession
of George III. His
visits to Oxford

With the accession of George III. Jacobitism disappeared or faded into Toryism of the modern type. In its congratulatory address the University took special credit to itself for having been 'ever faithful to monarchy on the most trying occasions.' The King's

reply was guarded, recommending 'sound principles of religious and civil duties early instilled into the minds of youth.' His advice seems to have been adopted; at all events, we hear no more of academical Jacobitism, loyalty to George III. became fashionable, Dr. King himself appeared at Court, and the University was probably sincere when, in 1763, it proposed inviolable 'attachment to your Majesty's person and government.' It may perhaps have been in recognition of this salutary change in its attitude that in 1768 the Speaker of the House of Commons paid it an elaborate compliment, in censuring the authorities of Oxford City for a gross act of political corruption, specially recommending for imitation the conduct of their learned neighbour. In the following year, the University presented another address to the Crown deprecating political agitation 'under pretence of defending civil and religious liberties,' and assuring his Majesty of its determination to imbue its students with sound principles. By a happy inconsistency, academical loyalists now managed to reconcile their old worship of the king *de jure* with a hearty acceptance of the Hanoverian succession. Probably Dr. Nowell, Principal of St. Mary Hall, fairly represented these sentiments when he reasserted the doctrines of divine right and passive obedience in a sermon preached before the House of Commons in 1772, for which he was first thanked and then censured. It deserves notice, however, that a more liberal spirit already made itself felt in regard to religious toleration. Though Sir Roger Newdigate, on behalf of the University, stoutly opposed the relief of clergymen from subscription to the Thirty-nine Articles, a strong minority in the Oxford Convocation supported, in February 1773, a proposal for requiring from candidates for matriculation only a declaration of conformity to the worship and liturgy of the Established Church. An attempt was afterwards made to qualify the effect of subscription by appending to the statute requiring it an explanatory note whereby it was virtually reduced to a declaration of conformity, but the legal validity of such an enactment was challenged, and the proposal was quietly dropped. In March 1779, a petition was presented by the University, through its chancellor, Lord North, against the Dissenters' Toleration Bill, then before Parliament. This petition embodied a protest against the principle of allowing dissenting ministers and schoolmasters to preach and teach without making any profession of belief in Christianity or revelation, but the petitioners were careful to describe themselves as friends of toleration, so far as it could be reconciled with the interests of Christianity

and the Established Church. These were the sentiments of the King himself, and a crowning proof of its fidelity to George III. was given by the University in 1783, when it publicly thanked the King for dismissing the Coalition Ministry (including its own Chancellor), and giving his confidence to Pitt—a service which the king rewarded by visiting Oxford twice from Nuneham Park, in 1785 and 1786. On each occasion he received an enthusiastic welcome, but as it was in the middle of the Long Vacation, he stayed but a few hours, and the traditional solemnities of royal visits were not repeated. A like enthusiasm was shown by the University on his recovery from his first illness in 1788.

CHAPTER XV.

UNIVERSITY STUDIES IN THE EIGHTEENTH CENTURY.

Decay of University
education in the
eighteenth century

If we seek to estimate the intellectual life of Oxford during the century following the Revolution, we find a significant dearth of trustworthy materials. Such evidence as we possess, however, justifies on the whole the received opinion that this period is the Dark Age of academical history. The impulse given to culture and scholarship by the new learning of the Renaissance had died away as completely as that given by the scholastic revival of the thirteenth century, and nothing came in to supply its place. The old disputations were almost obsolete, the Laudian system of examinations had fallen into scandalous abuse, the *sex solemnes lectiones* required for the B.A. degree had degenerated into ‘wall lectures’ read in an empty school. The practice of cramming, however, was unknown, and there were no artificial restrictions to prevent Oxford becoming a paradise of mature study and original research.

Contemporary
evidence

Unhappily, it was far otherwise. Though undergraduates were freely admitted to the Bodleian Library, and it was frequently enriched by donations, we learn that between 1730 and 1740 many days passed without there being a single reader there, and it was rare for more than two books to be consulted in a day. Dean Prideaux, who had long resided in Oxford, professes, in 1691, ‘an unconquerable aversion to the place,’ doubtless aggravated by his impatience of Jacobite ascendancy in the University, but partly founded on his conviction of its decline as a seat of education. Hearne, writing in 1726, declared that in nearly all the colleges the fellows were busied in litigation and quarrels having no connection with the promotion of learning, adding that ‘good letters miserably decay every day, insomuch that this Ordination on Trinity Sunday at Oxford there were no fewer (as I am informed) than fifteen denied Orders for insufficiency—which is the more to be noted, because our bishops and those employed by them are themselves generally

illiterate men.’ Similar complaints against the degeneracy of University teaching abound in eighteenth-century literature. Adam Smith, in particular, attributes the inefficiency of tutors and professors chiefly to the fact of their being paid by fixed stipends instead of by fees. Johnson testifies that he learned very little at Pembroke College; Lord Malmesbury regarded his two years at Merton College as the most unprofitable of his life; Swift represents drinking strong ale and smoking tobacco as the chief accomplishments—not indeed of all students, but of ‘young heirs’ sent to Oxford in deference to custom; Lord Chesterfield speaks of the University as known only for its ‘treasonable spirit,’ and says that, having been at Oxford himself, he resolved not to send his son there; Lord Eldon describes the degree-examination in his own time as merely nominal. But perhaps the most emphatic condemnation of the Oxford system in the eighteenth century is supplied by the historian Gibbon, whose reminiscences of his own University career are often quoted as conclusive evidence on the state of the University in 1752-3. He laments the fourteen months which he spent at Magdalen College as the ‘most idle and unprofitable of his whole life.’ He declares that ‘in the University of Oxford, the greater part of the Public Professors have for these many years given up even the pretence of teaching.’ He testifies that, in his time, ‘the Fellows of Magdalen were decent easy men who supinely enjoyed the gifts of the Founder; their days were filled by a series of uniform employments: the chapel and the hall, the coffee-house and the common-room; till they retired, weary and well-satisfied, to a long slumber. From the toil of reading, or thinking, or writing, they had absolved their conscience.’ He proceeds to allege that gentlemen-commoners were left to educate themselves, that ‘the obvious methods of public exercises and examinations were totally unknown,’ that no superintendence was exercised over the relations of tutors with their pupils, that his own tutor, though a good old-fashioned scholar, took no pains to stimulate or encourage his industry, and that he was allowed to make ‘a tour to Bath, a visit into Buckinghamshire, and four excursions into London, in the same winter.’

Decline in numbers
and dearth of
eminence in science
and literature

We cannot but acknowledge that Gibbon’s estimate of the University in the middle of the century is confirmed by an examination of University records. If we may judge by the statistics of matriculation, the nation at large had lost confidence in Oxford education, for the

annual number of admissions, which had often exceeded 300 in the reigns of Anne and George I., never reached that modest total between 1726 and 1810, while it often fell below 200 about the end of George II.'s reign. It is equally certain that Oxford contributed far less than in former ages to politics or literature. In learning it was distanced by Cambridge, where the modern examination system was developed earlier, and where the immortal researches of Newton and the solid learning of Bentley had raised the ideal of academical study. But the real intellectual leadership of the country was transferred from both Universities to London. Indeed, London itself was no longer the only non-academical centre of science, art, and culture; for even provincial towns, like Birmingham and Manchester, Derby and Bristol, Norwich, Leeds, and Newcastle, were already acquiring an industrial independence, and intellectual life, of their own. The Methodist Revival, indeed, of which Gibbon was probably unconscious, owed its origin to a small band of enthusiasts at Oxford.^[15] But, except Methodism, the great movements of thought which underlay the artificial society of the eighteenth century had no connection with the University, and the minds which dominated the world of politics and literature were trained in a wholly different school. The broad constructive ideas, and 'encyclopædic spirit,' as it has been well called, which animated so many writers and politicians of that age, in all the countries of western Europe, had little or no place in the University of Oxford. It was hardly to be expected that engineers and inventors, like Watt, Arkwright, and Brindley, should have received an University education, nor do we look in degree-lists for the names of eminent soldiers like Wellington, or nautical explorers like Cook. But it is certainly remarkable that so many English poets and humourists—Pope and Gay, Defoe, Smollett, and Hogarth—should have received no University education, while Swift, Congreve, and Goldsmith were students of Dublin, Thomson of Edinburgh, Fielding of Leyden, Prior, Sterne, and Gray, of Cambridge. Again, if we look to graver departments of literature, or the history of science, the result is still the same. Robertson was educated at Glasgow, Hume in France, Berkeley in Dublin; Herschel and Priestley owed nothing to University education, nor did John Howard, or Joshua Reynolds, or John Wilkes, or many others who powerfully influenced the minds of the Georgian era. Jeremy Bentham, it is true, received a part of his education at Queen's College, but he carried away no kindly recollection of his college life, and sums up his estimate of Oxford training in a single

acrimonious sentence—‘Mendacity and insincerity—in these I found the effects, the sure and only sure effects, of an English University education.’

Counter-evidence
showing that
education and
learning were not
wholly neglected

On the other hand, it would be easy to overstate both the intellectual sterility and the educational torpor of the University in the century following the Revolution. The ripe scholarship and academic wit of Addison may still be appreciated in the pages of the ‘Spectator,’ and Dr. Parr, in replying to Gibbon, was able to compile an imposing list of Oxford graduates in the eighteenth century ‘distinguished by classical, oriental, theological, or mathematical knowledge, by professional skill, or by parliamentary abilities.’ We must remember that when the historian entered Magdalen College as a gentleman-commoner, he was in his fifteenth year; when he left it, he was barely sixteen. The college did not then bear a high reputation for industry, there were no commoners, and gentlemen-commoners, being of a different social class from the ‘demies,’ were supposed to enjoy the privilege of idleness. Gibbon himself mentions that Corpus was fortunate in possessing an admirable tutor in John Burton. He also candidly admits that Bishop Lowth was a bright exception to professional sinecurism, and quotes the bishop’s description of his own academical life, which is too often forgotten, when Gibbon’s adverse criticism is magnified into a judicial utterance. ‘I spent many years,’ says Lowth, ‘in that illustrious society, in a well-regulated course of useful discipline and studies ... where a liberal pursuit of knowledge, and a genuine freedom of thought, was raised, encouraged, and pushed forward by example, by commendation, and by authority.’ Moreover, Gibbon allows that his father may have been unfortunate in the selection of a college and a tutor, that Sir William Scott’s tutorial, and Blackstone’s professorial, lectures had done honour to Oxford, that learning had been made ‘a duty, a pleasure, and even a fashion’ at Christchurch, and that reforms in the system of instruction had been effected elsewhere. Lord Sheffield, the editor of his memoirs, adds further proofs of the same improvement, and, on the whole, Gibbon’s testimony must be taken as a somewhat one-sided statement of a witness strongly prejudiced against the ecclesiastical character of Oxford, and irritated by the necessity of quitting it, owing to his conversion to Romanism. Similar deductions must be made from the testimony of Bentham, who entered Queen’s in 1760, at the age of 13, and took his degree, in 1763, at the age of 16, having cherished a precocious contempt

for juvenile amusements, and a precocious, though reasonable, objection to signing the XXXIX Articles, in spite of conscientious doubts.

It is impossible to ascertain how far the admitted decay of University lectures and examinations was compensated by college tuition. But it is clear that some colleges maintained an educational system of their own, and imposed exercises on their members, often in the form of declamations or disputations, which stood more or less in the place of those formerly required by the University. At Merton College, for instance, there were regular hall-disputations, in which even gentlemen-commoners were expected to bear their part, besides more solemn disputations in divinity for Bachelors of Arts, and 'Variations' for 'Master-Fellows' at the end of the Act Term. These Variations, as described in a work published in 1749, do not seem to have possessed any great educational value, and, according to a contemporary author, 'were amicably concluded with a magnificent and expensive supper, the charges of which formerly came to 100*l.*, but of late years much retrenched.' Such logical encounters were clearly mere survivals or revivals of mediæval dialectics, but there is some reason to believe that sounder and more useful knowledge was quietly cultivated, and rewarded by fellowships, though not yet recognised by University honours. When John Wesley was elected a fellow of Lincoln, in 1726, disputations were held six times a week, as at Merton, but he formed his own scheme of studies. He allotted Mondays and Tuesdays to classics; Wednesdays to logic and ethics; Thursdays to Hebrew and Arabic; Fridays to metaphysics and natural philosophy; Saturdays to rhetoric, poetry, and composition; Sundays to divinity; besides which, he bestowed much attention on mathematics. Doubtless, John Wesley was no common man, but he was never regarded as a prodigy of learning by his fellows, and it was the deliberate opinion of Johnson, in the next generation, that college tuition was not the farce which Gibbon imagined it. Speaking of Oxford in 1768, Dr. Johnson said: 'There is here, sir, such a progressive emulation. The students are anxious to appear well to their tutors; the tutors are anxious to have their pupils appear well in the college; the colleges are anxious to have their students appear well in the University; and there are excellent rules of discipline in every college.' Sir William Jones, who obtained a scholarship at University College in 1764, and a fellowship two years later, found means to prosecute his Oriental researches there, and mapped out his own time, like Wesley, between different branches of study. By the statutes of Hertford College,

framed in 1747, undergraduates were required to produce a declamation, theme, or translation every week, composing it in English during their second and third years, and in Latin during their fourth. Nor were fellowship-examinations by any means an unmeaning form in good colleges. Those at All Souls' had long been a real test of intellectual merit, though motives of favouritism sometimes governed the choice of the electors. At Merton, in the early part of the eighteenth century, we read of fellowship-elections being preceded by a thorough examination, including two days of book-work in Homer, Xenophon, Lucian, Tacitus, and Horace, besides a 'theme,' doubtless in Latin. When we find that some two hundred and fifty editions of classical works, mostly, but not wholly, in the ancient languages, were published in Oxford during the first half of the eighteenth century, it is hardly possible to doubt that many industrious readers must have existed among the students and fellows of colleges, however imperfect may have been the organisation of lectures. Dr. Charlett, the eminent Master of University College, writing in 1715, was able to praise the youths under his own charge as 'sober, modest, and studious,' nor is there any reason to doubt that many students in other colleges deserved a like character. Degenerate as it was, and far inferior to Cambridge in the performance of its higher functions, the University was not so utterly effete as it is sometimes represented. It produced few great scholars and fewer great teachers, but it was not wholly unfaithful to its mission of educating the English clergy and gentry, and the great philosopher, Berkeley, who had described it as an ideal retreat for learning and piety, deliberately chose it as his final home and resting-place.

FOOTNOTES:

[15] No description is here given of the origin and progress of Methodism in Oxford, since the history of the Methodist Revival is reserved for a separate volume in the present series.

CHAPTER XVI.

THE UNIVERSITY DURING THE REIGNS OF GEORGE III.

AND GEORGE IV.

Stagnation of
University
legislation in the
eighteenth century

We may pass lightly over the history of the University during the latter part of the eighteenth century, when its external and internal life were equally barren of memorable events. Only eight statutes had been enacted by Convocation between 1636 and 1759; nor was the succeeding period more prolific of reforms. The legislative energy of the University was confined for the most part to amendments of mere administrative details, and it was even suggested that such trifling measures were beyond its powers. In the year 1759, the right of the University to abrogate any of the Laudian statutes without the consent of the Crown was challenged by the proctors. The objection, however, was overruled, and the principle was established that, whereas it was not competent for the University to make any statutes as immutable as the laws of the Medes and Persians, it could not delegate any such power to the King himself, so that any statute made under royal sanction was subject to repeal, like ordinary bye-laws. In 1770, a new statute was passed for the regulation of academical habits, which provoked a long controversy, and incidentally established the principle, applicable to more important subjects, that no individual Head of a college, nor even all the Heads of colleges together, could dispense with statutable rules, independently of Convocation.

Statutes affecting
the University

Meanwhile, a considerable number of Acts were passed by Parliament confirming or enlarging the privileges of the University. For instance, in 1774, the Universities of England and Scotland were empowered by special enactment to hold in perpetuity their exclusive right of printing books, the copyright of which should have been vested in them by the authors. Other Acts granted colleges special exemptions from the land tax in respect of

their buildings, and from legacy duty in respect of collections and other specific articles bequeathed to them. Resident members of the University were further exempted from service in the Militia, and the stringent Act of 1799, 'for better preventing treasonable and seditious practices,' was expressly limited so as not to curtail the freedom of University lectures or the University press.

Political sympathies
of the University
after the outbreak of
the French
Revolution

In 1793, the installation of the Duke of Portland as successor to Lord North in the chancellorship was signalised by festivities on an unprecedented scale, and a tumultuous struggle for admission to the Sheldonian Theatre led to a fray which reflected little credit on academical manners. The hero of the day, and favourite of the gownsmen, was Edmund Burke, whose son received an honorary D.C.L. degree, but who is said to have declined it for himself on the ground that, in 1790, the Heads of Houses had negatived a requisition from forty-nine Masters of Arts proposing that a D.C.L. degree should be conferred on him 'by diploma.' The political sympathies of the University were, in fact, strongly called forth on behalf of the Royalist cause in France, and a large subscription was raised in 1792 for the relief of the French refugees, especially Catholic priests, three of whom settled at Oxford. In 1794 nearly 2,500*l.* was contributed for purposes of national defence by the resident body of graduates, including a grant of 200*l.* from the University chest. In 1798, a further contribution of 4,000*l.* 'in aid of the revenue of the country' was sent to the government from the University and colleges of Oxford, while an University volunteer corps, mustering about five hundred men, was formed and drilled, as in the days of the Civil War. This martial ardour, and the drain of students into the army, doubtless contributed to increase the depression of academical studies which preceded and rendered necessary the 'new examination statutes' of 1800. But academical studies must also have suffered from the prevailing distress which marked the winter of 1799, when bread-riots took place in Oxford, and large subscriptions were raised in the University for the relief of the poor townspeople.

Accessions to
professoriate in the
eighteenth century

Notwithstanding the decline of academical vigour during the eighteenth century, both the professorial staff and the public buildings of the University received a considerable extension. In 1708 the Professorship of

Poetry was founded out of funds bequeathed for the purpose by Henry Birkhead. In 1724 the Regius Professorship of Modern History was established by George I. In 1728 the Professorship of Botany, then in a state of suspended animation, was re-endowed out of the munificent bequest of William Sherard. In 1749 the first Professor of Experimental Philosophy was appointed, with a salary of 30*l.*, out of the Crewe benefaction. In 1758 the bequest of Charles Viner took effect by the election of William Blackstone to the new Vinerian Professorship of Common Law. In 1780 the Clinical Professorship was founded in connection with the Radcliffe Infirmary. In 1795 the Professorship of Anglo-Saxon was constituted, forty years after the death of its founder, Dr. Rawlinson, the famous antiquary, and in 1798 George Aldrich, formerly of Merton College, bequeathed property for the endowment of Professorships in Anatomy, Medicine, and Chemistry.

Architectural
improvements

Meanwhile the mediæval aspect of Oxford was modified by many new architectural features. Early in the century additional buildings sprang up in Magdalen, Corpus, Queen's, and Oriel. To the same age belong the Codrington Library at All Souls', with the new Library and Peckwater Quadrangle at Christchurch, and other college buildings. In 1713 the Clarendon Building was opened to receive the University Press. Books had been printed in Oxford since 1468, when Caxton's invention was still on its trial, but Delegates of the Press were not appointed until 1586, and the University privilege of printing dates from the patent granted in 1633, at the instance of Archbishop Laud. After 1669 the University Press was set up and worked in the Sheldonian Theatre, but the copyright of Clarendon's 'History of the Rebellion' having been presented to the University, the profits were applied towards the cost of erecting the fine edifice known as the 'Clarendon Press' for 118 years. A still more important benefaction was that of the celebrated Dr. Radcliffe, who died in 1714, leaving a large sum of money to be accumulated for the foundation of a Medical Library, an Infirmary, and an Observatory. The first stone of the library was laid in 1737, all the houses in 'Cat Street,' north of St. Mary's Church, having been demolished to make room for it. It was opened for the use of students on April 13, 1749, after a 'two days' solemnity,' including a Public Act, and a concert managed by Handel, whose oratorios had been received with great applause at Oxford six years earlier, and whose 'Sampson' was performed in the Sheldonian

Theatre on the following day. The Infirmary and Observatory were completed in 1770 and 1795 respectively, but are not under University control, though closely associated with University studies. In 1788 Sir Robert Taylor, an architect of some eminence, bequeathed a large sum to found a building for the cultivation of 'the European languages,' but this bequest did not take full effect until 1848, when the present 'Taylor Institution' was opened. Meanwhile, in 1771, an Act of Parliament had been passed enabling the City to rebuild Magdalen Bridge, and take down the east and north gates, the south and west gates having been already demolished. By these alterations the conversion of Oxford into an University town was finally consummated, and few of its inhabitants now realise that it was once a fortified city sheltering a cluster of poor schools and halls not yet aspiring to the dignity of colleges.

Effects of the French war upon the University. Opposition to reforms

The general history of the University in the present century may be divided into two periods: the first terminated by the Reform Act of 1832, and the great ecclesiastical reaction which followed upon it; the second embracing the last two or three years of William IV.'s reign, and the whole reign of Queen Victoria. The new Examination Statute of 1800, and the subsequent introduction of the class system,^[16] were the only events of any academical importance in the earlier of these periods, and nothing occurred to disturb the repose of the University during the last twenty years of George III.'s reign, or the ten years' reign of George IV. The domestic records of this interval are meagre and trivial in the extreme. When the Peace of Amiens was proclaimed in 1802, there seems to have been a short-lived revival of educational vigour at Oxford; when the war broke out afresh in 1803 volunteers were again enrolled from the University, and Oxford studies again began to languish. In 1805 these were vigorously attacked by Sydney Smith in the 'Edinburgh Review,' and vigorously defended by Mr. Copleston, afterwards Provost of Oriel, himself among the foremost of University reformers. While the country was engaged in its desperate struggle with Napoleon, the 'class system' was being quietly introduced, and supplying a new incentive to industry. The political animosities which had agitated the University in the last century had completely died out, but it is certain that Oxford was profoundly affected by the anti-Jacobin panic which set in after the French Revolution and lasted for a whole generation. It is, however, some proof of

a latent inclination to moderate Liberalism among Oxford graduates that in 1809 Lord Grenville was elected Chancellor after a contest with Lord Eldon. On the other hand, the sympathies of the University on all 'Church and State' questions were identical with those of George III. So far back as 1810 a petition was presented against Catholic Emancipation, and when Robert Peel was elected member for the University in 1817, it was fully understood that he was to oppose the Catholic Claims. In 1829, the University Convocation reaffirmed its reprobation of these claims by a solemn vote. Peel resigned his seat, and upon a new election was defeated by Sir Robert Inglis. In a like spirit the University petitioned in 1831 against Parliamentary Reform, in 1833 against the Irish Church Temporalities Bill, and in 1834, with only one dissentient, against the grant of a charter to the new London University. No doubt, in this last case the instinctive hostility of Churchmen to a non-religious academical body was quickened by a less honourable jealousy of a rival institution to be invested with the power of granting degrees. In spite of the Oxford protest, the charter was granted at the close of 1836, and in the following year a similar privilege was conferred upon Durham University.

Reception of the
Allied Sovereigns.
Abolition of the
Mayor's Oath

Two other incidents in University life during this somewhat obscure period deserve a passing notice. In 1814 Oxford was enlivened by the famous visit of the Allied Sovereigns, when Blucher was received with enthusiastic plaudits in the Sheldonian Theatre. Had the loyalty of the University been doubtful, the Prince Regent must have been reassured by the fervent display of it on this occasion; but these royal visits had lost their significance when the adhesion of Oxford ceased to be a factor in Imperial politics, and the subsequent receptions of Queen Adelaide and Queen Victoria, though almost as hearty as that of Queen Elizabeth, were tributes of respectful homage and not of political devotion. In 1825 the mayor and bailiffs of Oxford were released by a document under the University seal from the penance laid upon them after the great riot on Scholastica's Day in 1354, when they were required, as we have seen, to attend St. Mary's Church yearly with sixty leading citizens, to celebrate a mass for the souls of the murdered scholars, and to offer one penny each at the altar. No sooner was the Sacrifice of the Mass forbidden in the reign of Elizabeth than the citizens hastened to give up this annual appearance, but were compelled to resume it by an Order of Council, a litany being

substituted for the mass. The whole ceremony was now abolished; but another grievance of earlier origin still remained, and was not finally removed until the year 1859. By the letters patent of Henry III., already mentioned, dated 1248, the mayor and bailiffs, on taking office, were directed to swear that they would keep ‘the liberties and customs of the University,’ the Chancellor having been previously informed, in order that he might witness the oath personally or by a deputy. This obligation, though it may have been sometimes evaded, does not seem to have been disputed for more than six centuries. In 1855, however, the mayor and corporation requested the University to dispense with the oath. The University at first demurred, but after friendly conferences gave its sanction to a Bill for abolishing the oath, upon condition, however, of its being once more taken by the mayor and sheriff for the last time. In 1859 this Bill, introduced at the instance of the City, but with the concurrence of the University, was passed into law, and the standing feud so long maintained between these ancient corporations was thus brought to an amicable conclusion. The harmony which has since prevailed between the authorities of the University and the City may have been partly due to other causes, but it has certainly been promoted by the disuse of a humiliating formality, well calculated to revive the memory of barbarous violence on one side and invidious pretensions on the other.

FOOTNOTES:

[16] See Chapter [XVII](#).

CHAPTER XVII.

OXFORD STUDIES AND EXAMINATIONS IN THE NINETEENTH CENTURY.

Examination Statute
of 1800 and later
amendments

‘The studies of the University were first raised from their abject state by a statute passed in 1800.’ Such is the testimony of the Oxford University Commissioners appointed in 1850, and it is amply confirmed by University records. The Laudian system was doomed to failure from the first, inasmuch as it provided no security for the capacity of examiners or against their collusion with the candidates, while these were animated by little fear of rejection and no hope whatever of distinction. The statute of 1800, for which the credit is mainly due to Dr. Eveleigh, then Provost of Oriel, was directed to cure these defects. That it was regarded as a vigorous attempt to raise the standard of degree examinations is proved by the fact that in 1801, the last year of the ‘old system,’ the number of B.A. degrees suddenly rose to 250, largely exceeding the average of degrees and even of matriculations in several preceding years. The new statute was deliberately based on the Laudian system, in so far as it presupposed an inherent supremacy in the faculty of Arts, and it was unconsciously based on the old mediæval curriculum of Trivials and Quadrivials, in so far as it specified grammar, rhetoric, logic, moral philosophy, and the elements of mathematics—with the important addition of Latin and Greek literature—as the essential subjects of examination. But it effected a grand reform in the method of examination. Candidates were to offer themselves either for what has since been known as a ‘pass,’ or for Honours, and the Honour-list was to be divided into two classes, in which the names were to be arranged in order of merit. There was also to be a further examination for the M.A. degree, comprising higher mathematical subjects, history, and Hebrew; while candidates for the B.C.L. degree were to be examined in history and jurisprudence, besides the subjects required for the B.A. degree. Moreover, the examiners were thenceforth to be paid by salary, and chosen by

responsible officers to serve for considerable periods. They were solemnly charged to deliberate maturely and secretly on the merits of the candidates, *sepositis omnino amicitia et odio, timore ac spe*. Material changes were introduced into this system by statutes of 1807, modified again in 1809, 1825, 1826, and 1830. The general effect of these changes was to substitute, in the main, written papers for oral questions, to establish two stated times in the year for examination, to subdivide the list of honours into three classes, to relegate mathematics to a 'School' by itself, to abrogate the examination for the M.A. degree, and to make the Greek and Latin languages, philosophy, and history, the staple of examination in what now came to be called the *Literæ Humaniores* School, though permission was given to illustrate the ancient by modern authors. Meanwhile, the old scholastic exercise of Responsions *in Parviso* was replaced by an elementary examination, bearing the same name, to be passed in the second year.

Examination Statute
of 1850 and later
amendments

Such was the Oxford examination-system when it was transformed afresh in 1850, by a statute which has been amended and extended by many supplementary measures. A 'First Public Examination,' popularly known as 'Moderations,' was interposed between Responsions and the final examination for the B.A. degree, thenceforth officially designated the 'Second Public Examination.' This intermediate examination, in which honours are awarded, was specially designed to encourage and test a scholarlike knowledge of the Greek and Latin languages, ancient history, philosophy, and logic being mainly reserved for the Final Classical, or *Literæ Humaniores*, School. The Honour School of Mathematics was retained, and two new Schools were established, the one for Natural Science, the other for Law and Modern History. This last School was afterwards divided into two schools, of Jurisprudence and of Modern History, respectively, while a sixth Honour School was added for Theology. Until the year 1883, two examinations were held annually in each of the six Honour Schools, but in and since that year one only has been held, and that in Trinity Term. Two examinations, however, continued to be held annually for candidates seeking an ordinary degree, and these 'pass examinations' were subdivided into several branches, for the purpose of securing a tolerable degree of proficiency in more than one subject of study.

University
Commission of
1850

The important examination statutes of 1850 were in contemplation, but not yet in operation, when a Royal Commission was issued, on August 31, in that year, 'for the purpose of inquiring into the state, discipline, studies, and revenues' of the University and colleges. The report of this Commission is the most comprehensive review of the whole University system which has ever been published. It recommended various important reforms, of which some were effected by an Act of Parliament enacted in 1854, and others through Ordinances framed by executive commissioners, therein appointed, for the several colleges. In 1850, the sole initiative power in University legislation, and by far the largest share of University administration, was still vested in the 'Hebdomadal Board,' consisting solely of heads of colleges with the two proctors, and described by no unfriendly critic of Oxford institutions as 'an organised torpor.' The assembly of resident and 'regent' Masters of Arts, known as the 'House of Congregation,' still existed for the purpose of granting degrees, but its other business had dwindled to mere formalities. The University Convocation included, as ever, all Masters of Arts, resident or non-resident, and had the right of debating, but this right was virtually annulled by the necessity of speaking in Latin—all but a lost art—and Convocation could only accept or reject without amendment measures proposed by the Hebdomadal Board. No student could be a member of the University without belonging to a college or hall, while every member of a college or hall was compelled to sleep within its walls, until after his third year of residence. Persons unable to sign the Thirty-nine Articles were absolutely excluded, not merely from degrees, but from all access to the University, inasmuch as the test of subscription was enforced at matriculation. Nevertheless, college fellowships were further protected against the intrusion of dissenters by the declaration of conformity to the liturgy required to be made under the Act of Uniformity. If professorial lectures were not at so low an ebb as in the days of Gibbon, they were lamentably scarce and ineffective. The educational function of the University had, in fact, been almost wholly merged in college tuition, but the scholarships, as well as the fellowships, of the colleges were fettered by all manner of restrictions, which marred their value as incentives to industry. The great majority of fellows were bound to take Holy Orders, and the whole University was dominated by a clerical

spirit, which directly tended to make it, as it had so long been, a focus of theological controversy.

Act of 1854 and
new College
Ordinances

Though several of the wise and liberal measures recommended by the Commission of 1850 were postponed to a more convenient season, a profound and most beneficial reform was wrought in the whole spirit and working of the University system by the Act of 1854, and the College Ordinances framed under its provisions. The Hebdomadal Board was replaced by an elective Council, on which Heads of colleges, professors, and resident Masters of Arts were equally represented. A new 'Congregation' was created, embracing all resident members of Convocation, and soon became a vigorous deliberative assembly, with the right of speaking in English. The monopoly of colleges was broken down, and an opening made for ulterior extension by the revival of private halls. The professoriate was considerably increased, reorganised, and re-endowed, by means of contributions from colleges. The colleges were emancipated from their mediæval statutes, were invested with new constitutions, and acquired new legislative powers. The fellowships were almost universally thrown open to merit, and the effect of this was not merely to provide ample rewards for the highest academical attainments, but to place the governing power within colleges in the hands of able men, likely to promote further improvements. The number and value of scholarships was largely augmented, and many, though not all, of the restrictions upon them were abolished. The great mass of vexatious and obsolete oaths was swept away, and though candidates for the M.A. degree and persons elected to fellowships were still required to make the old subscriptions and declarations, it was enacted that no religious test should be imposed at matriculation, or on taking a bachelor's degree. The University itself had supplemented the extension of its curriculum and examination system by the foundation of a new museum specially consecrated to natural science. The permanence of this extension was, however, additionally secured by a clause introduced into the College Ordinances, whereby it was directed that fellowships should be appropriated, from time to time, for the encouragement of all the studies recognised by the University.

Effect of these

Other salutary changes naturally grew out of this comprehensive reform, and far greater progress was

reforms

made by the University during the thirty years immediately following it than in any previous century of its history. The impulse given to education reacted upon learning and research; Oxford science began once more to command the respect of Europe; the professoriate received an accession of illustrious names; and college tuition, instead of being the mere temporary vocation of fellows waiting for livings, gradually placed itself on the footing of a regular profession. Instead of drying up the bounty of founders, as had been confidently predicted, the reforms of 1854 apparently caused the stream of benefactions to flow with renewed abundance. Nearly all the older colleges have extended their buildings, mostly by the aid of private munificence, a new college has been erected, bearing the name of the Rev. John Keble, and Magdalen Hall has been refounded, under its original name of Hertford College, with a large new endowment, provided by Mr. C. Baring. Meanwhile, a new class of 'unattached' or 'non-collegiate' students has been created, the number of which rose to 284 in the year 1880, though it has since manifested a tendency to fall. The aggregate strength of the University has been doubled within the same period of thirty-two years, and the net total of undergraduates in residence has been swelled from about 1,300 to upwards of 2,500, and the annual matriculations have increased in a like proportion.

Abolition of
University Tests

The relaxation of the 'classical monopoly' and the opening of scholarships was supplemented, in 1871, by a still more important reform—the complete abolition of University Tests, already reduced by the Act of 1854. This great concession to religious liberty was brought about by a persistent movement chiefly emanating from the Universities themselves. In the year 1862 a petition was presented from 74 resident fellows of colleges at Cambridge, praying for a repeal of the clause applicable to fellowships in the Act of Uniformity. In the year 1863, a petition was presented from 106 Heads, professors, fellows, ex-fellows, and college tutors at Oxford, praying for the removal of all theological restrictions on degrees. In the year 1868, a petition against all religious tests, except for degrees in theology, was signed by 80 Heads, professors, lecturers, and resident fellows at Oxford, while a similar petition was signed by 123 non-resident fellows and ex-fellows. In the same year a petition to the same effect was signed by 227 heads and present or former office-holders and fellows of Cambridge. Separate petitions, specially

directed against the declaration of conformity, were presented by Trinity and Christ's Colleges at Cambridge. Supported by the whole Nonconformist body and by the Liberal party in Parliament, these efforts were ultimately successful. The contest in Parliament lasted no less than nine years, and one Bill after another was defeated or withdrawn, but in 1871 the abolition of University Tests was adopted as a government measure and accepted by the House of Lords. Experience has not justified the fears of its opponents, and neither the religious character nor the social peace of the University has been in the slightest degree impaired by the admission of Nonconformists to its degrees and endowments.

Local examinations,
and board for
examination of
public schools

But the impulse given to academical education by the legislation of 1854 is not to be measured solely by the internal growth of the University, now accessible to every class in the nation. Since that period it has initiated and carried out two educational movements of national importance, the one in concert, the other in friendly rivalry, with the University of Cambridge. The first of these was the scheme of local examinations for pupils of middle-class schools, established by a statute passed at Oxford in 1857, afterwards adopted by Cambridge, and now exercising a regulative influence on middle-class education throughout England. The examination of public schools by a joint-board representing the two Universities was originated in 1873, and was doubtless facilitated by the fear, then prevalent, of State-inspection being applied to endowed schools. At these examinations certificates are granted, which, under certain limitations, carry with them an exemption from Responsions at Oxford, as well as from a part of the 'previous examinations' at Cambridge, and of the military examinations. Such certificates may be regarded as supplying the rudiments of a missing link not only between secondary and University education, but also between secondary and professional education.

Commission of
inquiry (1872) and
Act of 1876

In the meantime, a new wave of democratic sentiment in Parliament impelled Mr. Gladstone to issue, in January 1872, a commission to inquire into academical property and revenues, as a preliminary step to further legislation. The functions of this commission were strictly limited to investigation and to matters of finance, no power being entrusted to it either of passing judgment on the actual application of University and college

funds, or of suggesting a better application of them—much less of entering on general questions of University reform. These questions were destined to be reopened, and a fresh appropriation of academical endowments to be made, by the Conservative Government which came into office in the spring of 1874. At this period the system established by the Oxford Reform Act of 1854, and the executive commission thereby appointed, had barely taken root, but a vigorous agitation was already in progress against it, mainly on the ground that it had done too much for educational competition and too little for learning or research. The principle upon which a fresh commission was now demanded was not so much the expediency of redistributing college revenues for the benefit of the colleges themselves, as the expediency of diverting them from the colleges to the University, especially in the interests of Natural Science. The Marquis of Salisbury, as Chancellor of the University and an important member of the government, heartily espoused these claims, and introduced a Bill expressly designed to enrich the University at the expense of the colleges.

Commission of
1877

This Bill was passed, with some amendments, in 1877. Its preamble recited the expediency of making larger provision out of college revenues for University purposes. It proceeded to institute an executive commission, armed with sweeping powers of revision and legislation; but, as a safeguard for the interests of colleges, it gave each college, not indeed a veto upon the statutes to be framed, but a share in framing them, by means of elected representatives, associated *pro tempore* with the commissioners. It further enjoined that in assessing contributions on colleges, regard should first be had to the educational wants of the college itself. Accordingly, the commissioners sat for several years, and elaborated an entirely new code both for the University and for the colleges, repealing all previous college statutes or ordinances, but leaving the legislative constitution of the University untouched. They charged the colleges with an aggregate subsidy of 20,000*l.* and upwards for the endowment of professorships and readerships or lectureships, the contributions of wealthy colleges being fixed on a higher scale than those of poorer colleges. By the same process they set free a certain amount of University income for such objects as the maintenance of buildings and libraries. They regulated the payment, duties, and appointment of professors and readers, as well as the nomination of University examiners, which had been subjected to much criticism. They

made some approach towards an organisation of University teaching, by grouping studies roughly under Faculties, and giving 'Boards of Faculties' a certain limited control over the distribution of lectures. They formulated extremely minute rules for the publication of University and college accounts. They remodelled the whole system of college fellowships, attaching the greater number of them to University or college offices, but retaining about one hundred sinecure fellowships, terminable in seven years, with an uniform stipend of 200*l.* a year, and subject to no obligations of residence or celibacy. With certain exceptions, they abolished all clerical restrictions on fellowships or headships, but regulated various details of college management and tuition which the former commissioners had left in the discretion of each governing body. They established an uniform standard of age and value for college scholarships, requiring, as a rule, that no candidate should have exceeded nineteen, and that no scholarship should be worth more than 80*l.* annually. They also provided for the appropriation of any surplus revenues which should accrue, to college or University purposes.

Character of last reforms

It is too soon to pronounce a judgment on the effect of these reforms, some of which have not yet come into full operation, and which have been supplemented by incessant changes in the examination statutes, made by the University itself. Indeed, notwithstanding the bold amendments which it has undergone, the constitution and educational system of the University must be regarded as still in a state of transition. It has ceased to be a mere aggregate of colleges, but it has not ceased to be essentially collegiate in many parts of its organisation, and the dualism of the professorial and tutorial systems has been perpetuated. Professorships have been freely created, but attendance on their lectures has not been made obligatory, and it has been found easier to provide them with salaries out of college revenues than to provide them with audiences at the expense of college lecturers. The number of necessary examinations has been increased, and many obstacles have been thrown in the way of persistent idleness; but the door of the University has not been closed against complete ignorance by an effective entrance examination, and a dunce ignorant of his letters may still matriculate and reside, if he can find a college to admit him. The student is free to choose his Final School, and, unless he chooses the Classical School, he may abandon Latin and Greek, in any case, after Moderations. But a minimum proficiency in these

languages is still necessary for Responsions as well as for Moderations, several alternatives for which have been offered with an utter disregard of symmetry or equality between studies. Women have been admitted to certain University examinations, but not to all, nor on the same terms as men; and the names of those who obtain honours are published in a class-list, but not the ordinary class-list. Religious equality has been established for most purposes, but not for all, and the Faculty of Theology maintains its exclusive connection not only with the Anglican Church but with the Anglican clergy. Such are some of the anomalies which have been left to adjust themselves by successive commissions and successive groups of University legislators. They have not proved inconsistent with a vigorous internal life, but while they exist and continue to be multiplied, the University cannot be said to have attained a state of stable equilibrium, nor can a poetical unity be imparted to an historical narrative of recent University reforms.

CHAPTER XVIII.

THE NEO-CATHOLIC REVIVAL, KNOWN AS THE 'OXFORD MOVEMENT.'

Character of the
'Oxford Movement'

The great Neo-Catholic Revival of the nineteenth century is so intimately identified with Oxford that it came to be widely known as the 'Oxford Movement.' It was less important than Methodism in its purely moral aspect, since it was far less popular and practical, leaving no such profound impression upon the religious life of the nation. On the other hand, it exercised a more powerful influence on Anglican theology, since it wore a more scholarlike garb, was more attractive to cultivated and imaginative minds, allied itself with the speculative and historical spirit of the age, and purported to be essentially constructive or reconstructive. It had from the first a centre, and solid base of operations, in the University, with branches stretching far and wide, wherever zealous Churchmen were found. The assaults of Methodism upon religious apathy in high places had been more in the nature of guerilla warfare; those of 'Tractarianism,' as it came to be called, assumed the character of a well-organised campaign.

A reaction against
the rising tide of
Liberalism

Whatever may have been the aims of its leaders, the Oxford Movement was in truth a reaction, and its real origin must be sought in political rather than in ecclesiastical causes. The question of Catholic Emancipation, which had been stifled at the Union, was revived in 1812 and fiercely debated for the next seventeen years. The measure was equally opposed by the High and Low Church parties in the Church, but carried in 1829 by a Tory Government in deference to political exigencies. It was followed by the Reform Act, and in 1832 the reformed Parliament assembled, with a large majority, not merely Erastian, but hostile to the National Church. The vote of the bishops on the Reform Bill had exposed them to popular obloquy; Lord Grey himself had openly threatened them,

and the press was full of attacks on Episcopacy and the Establishment. Lord Grey's Act for suppressing ten Irish bishoprics was regarded as the first outburst of the gathering storm; timid Churchmen trembled for the very existence of their Church, and the Oxford Movement was set on foot with the deliberate purpose of defending the Church and the Christianity of England against the anti-Catholic aggressions of the dominant Liberalism.

Oriel the centre of
the Movement

The University of Oxford was the natural centre for such a reaction. The constitution of the University and colleges was semi-ecclesiastical; the Heads were clerical dignitaries; nearly all the fellows were bound to be in Holy Orders. Among the colleges, Oriel then held the first rank, both as a place of education, and as the home of a speculative and learned society among the fellows. Copleston, its last Provost, had been a man of remarkable capacity, and he was ably seconded by such colleagues as Davison and Whately. The system of tuition at Oriel was the best in Oxford, and as it was the first college to throw open its fellowships, it was able to attract the ablest of the young graduates. It was known that Oriel fellows were selected not merely on the evidence of the class-list, or by the results of competitive examination, but also by a discriminating, though arbitrary, estimate of their social qualities and probable intellectual development. They were, therefore, a select body, somewhat inclined to mutual admiration, producing little, but freely criticising everything. The result was an Oriel school of thought, commonly known as the *Noetics*, who applied an unsparing logic to received opinions, especially those concerning religious faith, but whose strength lay rather in drawing inferences and refuting fallacies than in examining and settling the premisses from which their syllogisms were deduced. Still, Oriel fostered a bright and independent intellectual life of its own; the Oriel school was a standing protest against the prevailing orthodoxy of mere conformity, and it became the congenial head-quarters of the Oxford Movement.

John Henry
Newman

Pusey and Keble were among the fellows of Oriel, when John Henry Newman was elected to a fellowship in 1823, and later, in 1826, became tutor in succession to Jelf. Newman's early life at Oxford was a solitary one. He did not seek friends, and in the Oriel common-room his shy and retiring nature sometimes concealed his real power. As Wesley's sympathies were originally with High Church doctrines, so Newman's were originally with

Evangelical doctrines; he was connected with the Evangelical set at St. Edmund Hall; he was for a time secretary to the Society for Promoting Christian Knowledge, and he actually helped to start the 'Record' newspaper. In the early development of his ideas he owed much to the robust intellect of Whately and the accurate criticism of Hawkins, who succeeded Copleston as Provost in 1827. But his reverence was reserved for Keble, whose 'Christian Year' appeared in the same year and gave the first secret impulse to the Movement, of which Newman became the head. In the following year, Pusey, then little known to Newman, returned to Oxford as Professor of Hebrew and Canon of Christchurch, unconsciously destined to give his own name to Newman's followers.

Origin of 'Tracts
for the Times'

At this period Newman had no intention of heading the Oxford Movement, still less of founding a new party in the Church. His Evangelical principles were gradually falling away from him, and he was girding himself up for a great struggle with Secularism as represented by a Liberal Government, but the first steps in the Tractarian agitation were not taken by him. In 1832 he travelled in Italy with his friend and pupil, Richard Hurrell Froude; and it was from him that Newman imbibed his veneration for the Virgin and the Saints, his antipathy to the Reformation, and his respectful toleration of the Roman Catholic Church. They went so far as to inquire upon what conditions they would be allowed to communicate in that Church, but were repelled on hearing that a subscription to the decisions of the Council of Trent would be required. It was during Newman's absence abroad, in July 1833, that Keble preached his Assize Sermon on 'National Apostasy,' which may be said to have struck the first note of the Movement, and in the same year Peter Maurice sounded the alarm against 'Popery in Oxford.' A series of 'Tracts for the Times' was projected at a conference, also held during Newman's absence, by a small body of his friends, but the plan was matured at subsequent conferences in Oriel, where Newman was present, and Keble warmly supported it in letters of advice to which the utmost deference was paid. The proposed aim of these Tracts was expository rather than controversial; they purported to enlighten the prevailing ignorance on Church principles and Church history. They were to appear anonymously, and each writer was to be responsible only for his own production. The difficulty of maintaining this principle of limited liability was foreseen from

the first, and prudent friends of the Movement were in favour of a judicious censorship, but Newman was inflexible, and his will prevailed.

Association formed

The immediate outcome of these Oriel conferences was the formation of an association designed to rally all friends of the Church against the common enemy. This was the signal for which zealous Churchmen had been waiting, and it met with an enthusiastic response in all parts of the country. An address to the Archbishop of Canterbury was drawn up and signed by eight thousand of the clergy, insisting upon the necessity of restoring Church discipline, maintaining Church principles, and resisting the growth of latitudinarianism. A large section of the laity ranged themselves on the side of the revival. Meetings were held throughout England, and the King himself volunteered a declaration of his strong affection for the National Church, now roused from its apathy, and prepared to defend itself vigorously, not merely as a true branch of the Catholic Church, but as a co-ordinate power with the State.

Newman assumes the lead

Newman had returned from Italy deeply imbued with the conviction that he had a definite mission to fulfil. He was no less firmly assured of the need for individual action at this juncture than impelled to it by his own self-reliant nature. While others, therefore, were urging combinations and committees as the best methods of working, Newman's strong individuality revolted from joint control, especially in the form of a 'Committee of Revision,' and pressed him forward to strike the first blow for himself. He took counsel with Froude alone, when, in the autumn of 1833, he suddenly brought out the first of that series of Tracts from which his party derived its familiar name of Tractarians. In so doing he took his own colleagues by surprise, and precipitated the crisis destined to result from the publication of the Tracts. From that day forth he was the recognised leader of the Tractarians. No one among them was equally fitted for that position. Keble was too modest and studious by disposition, Pusey was not an original pioneer of the movement, Froude was disqualified by delicate health. Newman stepped naturally into the place. The influence which he gained in his own college as a tutor, and in the University as a preacher from the pulpit of St. Mary's, had drawn round him a band of followers; his sympathetic character won the confidence of young minds; his confessions of speculative doubt added

weight to his acceptance of dogmatic authority. Yet the secret of his personal ascendancy was never fully revealed to himself, nor did he ever fully realise the impression produced by his sermons. To him the Tractarian Movement was 'no movement, but the spirit of the times.' He felt himself, not the leader of a new party, but a loyal son of the old Church; now awakened from her lethargy. He claimed no allegiance and issued no commands. It was through friends and disciples, as we learn from himself, that his principles were spread, and, as in the case of Socrates, their reports of his conversations were perhaps the main source of the spell which he exercised over the University and the Church.

Spread and objects
of the movement.
Publication of Tract
XC.

The adhesion of Pusey in 1835 was a great accession of strength to the Tractarians. He had contributed a Tract to the series in December 1833, but he did not formally join the Movement until a year and a half later. His learning, social connections, and official position gave it a certain dignity and solidity in which it had been lacking. Recruits now offered themselves in abundance, and gifted young men spent their days and nights in poring over materials for the Library of the Fathers originated by Pusey, or in journeying from place to place, in the spirit of the Methodist Revivalists, though in the pursuit of a very different ideal. But the influence of Tractarianism over Oxford thought must not be exaggerated. While it fascinated many subtle and imaginative minds of a high order, and gathered into itself much of the spiritual and even of the intellectual life of the University, there were many robust intellects and earnest hearts which it not only failed to reach but stirred into hostility. If it would be easy to draw up an imposing list of eminent Oxford men who became Tractarians, it would not be less easy to enumerate an equal number of equally eminent men who consistently opposed Tractarianism, and predicted that it must lead to Romanism. Nothing was further from the original intentions and expectations of Newman himself. His object was to revive the usages and doctrines of the primitive Church; to co-operate, indeed, with the Church of Rome, so far as possible, but to keep aloof from its pernicious corruptions; to establish the catholicity of the Anglican Church, but, above all, to hold the *via media* laid down by its founders. His faith in Anglicanism was first disturbed in the Long Vacation of 1839 by his supposed discovery of a decisive analogy between the position of the Monophysite heretics and that of the Anglican communion. Still, though he was gradually assimilating the

doctrines, he rebelled against the abuses and excesses, of the Roman Church. Anglicanism as a distinctive creed had become untenable to him, but he clung to a hope that its title might be lineally deduced from the primitive Church, instead of being founded on a secession from the Church of Rome. It was in this frame of mind that he published Tract XC. in the year 1841, for the purpose of showing that the Articles of the English Church were directed, not against the doctrines of the Church of Rome as interpreted by the Council of Trent, but against earlier heresies disavowed by that Council.

Collapse of
Tractarianism, and
secession of
Newman

This Tract brought the Movement to a climax. It was received with a storm of indignation throughout the country. The bishops delivered charges against it, the great mass of Churchmen regarded it as an attack on the Protestant Establishment, and a direct invitation to Romanism. The Bishop of Oxford intervened, and the farther issue of Tracts was stopped. Henceforth the real tendency of Tractarianism was disclosed, and its promoters were hopelessly discredited. Newman found, to his own great surprise, that his power was shattered. He retired, during Lent 1840, to his parish at Littlemore, entrusting St. Mary's to a curate, in view of his possible resignation. His loyalty to the English Church wavered more and more as he renewed his study of the Arian controversy, and his misgivings were intensified by the hostile attitude of the bishops, as well as by an incident which to a secular mind would have appeared trivial—the institution of the Jerusalem bishopric on a semi-Anglican and semi-Lutheran basis. His resignation of St. Mary's in the autumn of 1843, two years after the publication of Tract XC., was due to an impulse of despondency on failing to dissuade a young friend from conversion to Romanism. After preaching his last sermon there he retired into lay-communion, giving up all idea of acting upon others, and turning all his thoughts inwards. Two years later, on October 8, 1845, his remaining difficulties being removed, he was himself received into the Church of Rome, and finally left Oxford early in the following year. Though his defection had long been foreseen, it caused a profound shock throughout the English Church. The first panic was succeeded by a reaction; some devoted adherents followed him to Rome; others relapsed into lifeless conformity; and the University soon resumed its wonted tranquillity.

The 'Hampden
Controversy'

The 'Hampden Controversy,' in 1836, may be regarded as an episode of the Tractarian revival, already in full course of development. This controversy arose out of Dr. Hampden's Bampton Lectures on Scholastic Philosophy, delivered in 1832, which, however, had attracted little attention until he was appointed Regius Professor of Divinity four years later. No sooner was this appointment known, than an anti-Hampden Committee was formed, of which Pusey and Newman were members. The Crown was actually petitioned to recall its nomination, but this petition was coldly rejected by Lord Melbourne, and a vote of censure on Dr. Hampden, proposed by the Hebdomadal Board, was defeated in Convocation by the Proctors' joint-veto—a very unusual, but perfectly constitutional, exercise of the Proctorial authority. A war of pamphlets ensued, and the vote of censure being reintroduced, after a change of Proctors, was carried by an overwhelming majority. According to the opinion of eminent counsel, the proceeding was illegal, as transgressing the jurisdiction of the University under the Charter of 1636, but the sentence was never reversed, and Dr. Hampden remained under the ban of the University, excluded from various privileges of his office, until his elevation to the See of Hereford in 1847. The opposition to him then broke out afresh, and the Dean of Hereford, in a letter to Lord John Russell, held out a threat of resistance to the Royal *congé d'élire*. The answer of Lord John Russell was such as might be expected, but thirteen bishops supported the Dean's protest by a remonstrance, which Lord John Russell met by a peremptory refusal to make the prerogative of the Crown dependent on the caprice of a chance majority at one University, largely composed of persons who had since joined the Church of Rome. Nevertheless, a final attempt was made to negative the 'confirmation' of Dr. Hampden's appointment at Bow Church. An argument on this point in the Court of Queen's Bench ended in a dismissal of the case, owing to differences of opinion among the judges, and on March 25, 1848, Dr. Hampden was duly consecrated Bishop.

Proceedings against
Pusey and Ward

On the other hand, while Newman was in retirement at Littlemore, Pusey was suspended from preaching in the University pulpit for two years, on a report from a board appointed to examine a sermon delivered by him at Christ Church, in which he was alleged to have affirmed the Real Presence in a sense inconsistent with the doctrines of the Church. Soon afterwards, Dr.

Hampden, as Regius Professor of Divinity, inhibited from his B.D. degree a candidate who had declined to be examined by him on Tradition and Transubstantiation. The right of examination was challenged by the candidate, but upheld by the Delegates of Appeals, to whom the question was referred. On November 20, 1844, Mr. Ward, a fellow of Balliol, was summoned before the Vice-Chancellor, and questioned respecting the authorship of a book entitled 'The Ideal of a Christian Church.' A war of pamphlets ensued, but in the end, on February 13, 1845, a proposition was submitted to Convocation, densely crowded with non-residents, condemning Ward's doctrines as inconsistent with the Articles, with his subscription thereto, and with his own good faith in subscribing. This resolution was carried by a large majority, and a further resolution, for the degradation of Ward, was carried by a smaller majority. A third resolution, condemning Tract XC., had been appended, but was negatived by the joint veto of the Proctors. It had actually been intended to subjoin to the first resolution a declaration annexing a new sense to subscription, and thus creating a new test, but this addition was ultimately withdrawn in deference to a legal opinion, which also denied the validity of Ward's deprivation.

Effect of the
'Oxford Movement'

With these proceedings the academical history of the Tractarian Movement may properly be closed, though many distinguished members of the University joined the Church of Rome at a later period, especially after the celebrated judgment in the 'Gorham Case,' establishing liberty of opinion on Baptismal Regeneration. For several years after Newman's conversion, the progress of the Neo-Catholic Revival was arrested, and when it took a new departure under the name of Ritualism, it ceased to draw its inspiration from the University of Oxford. Nevertheless, the work of Newman and his fellows left its mark on the University as well as on the English Church. The effect of his speculative teaching was infinitely weakened by his own conversion to Rome, but the effect of his practical teaching could not be dissipated. In the widespread restoration of churches, in the improvement of church-services, and in the greater energy of religious life within the Anglican communion, we may still recognise the influence for good which emanated from the Oriel common-room.

Controversy on the
Endowment of the

Thirty years after his own suspension, Dr. Pusey, now regarded as a champion of orthodoxy, came forward

Greek
Professorship.
Defeat of Mr.
Gladstone in 1865

with certain other Doctors of Divinity, to bring a charge of heresy against Mr. Jowett, of Balliol, the Regius Professor of Greek, who had contributed to the volume called 'Essays and Reviews.' A suit was instituted in the Chancellor's Court, and on February 6, 1863, a judgment was delivered by Mr. Mountague Bernard, as assessor. This judgment disallowed the defendant's protest against the jurisdiction of the Court in spiritual matters, or over a Regius Professor; but, in effect, arrested the proceedings without deciding the case on its merits. A somewhat undignified controversy followed, and greatly disturbed the peace of the University, on the question of increasing the very meagre endowment of the Greek Professorship—a measure which Dr. Pusey opposed on the sole ground that it would strengthen the position of the existing Professor. The partisanship engendered by the long struggle on this question divided the senior members of the University into hostile camps, and often determined their votes on matters which had no connection with the subject. At last, on February 18, 1865, a compromise was effected, by accepting the offer of Christchurch to endow the Professorship. The University, in truth, was heartily sick of the controversy, and even the High Church residents were unwilling to please the non-resident clergy by perpetuating an apparent injustice which damaged their own credit with the abler students. In the following summer, Mr. Gladstone, who had been elected Member of Parliament for the University in 1847, and whose seat had been contested at every subsequent election, was defeated by Mr. Gathorne Hardy. This event established the supremacy of the Conservative party in the constituency, and, though a contest took place in 1878, the result was never doubtful, and the fierce passions incident to constant trials of political strength have sensibly died away. Thus, two fruitful sources of academical discord were removed within a few months of each other. The last twenty-one years have witnessed many warm discussions and close divisions in the University legislature, but they have been mainly on academical issues, and have seldom been embittered by the *odium theologicum*. Since 1865, a tacit *concordat* has prevailed between the two great schools of thought in Oxford, and a philosophical toleration of opinion has superseded the intolerant dogmatism, not confined to one party in the Church, which had its origin in the Neo-Catholic Revival.

CHAPTER XIX.

THE UNIVERSITY IN 1886

Reign of Queen
Victoria

The last chapter of University history covers a period within living memory, and practically coextensive with the reign of Queen Victoria. Its main interest consists in the rapid succession of theological controversies which have agitated the academical mind, and in the series of internal reforms dating from 1850. Both of these subjects have been separately considered, but it still remains to review briefly the strange transformation wrought in the various aspects of University life within the lifetime of the present generation, not so much by external interference as by the natural growth of new social conditions.

State of the
University on the
Queen's accession

On the accession of Queen Victoria the college-system was already established on its present basis, and effective University examinations had put an end to the licensed idleness of the eighteenth century. But the University and the colleges were still governed respectively by antiquated codes of statutes, which it would have been no less disastrous than impossible to enforce strictly, but from which, as we have seen, it required the intervention of the Legislature to release them. Though a considerable number of able students destined for the Bar were attracted by scholarships and the prospect of fellowships, Oxford was still mainly a clerical and aristocratic seminary, exercising a very slight influence on the scientific or commercial world, and little affected by their fashions. Until it was connected with the metropolis by railway, it retained the distinctive character of a provincial town, and many eccentric recluses of a type now obsolete were still to be found in college rooms, who had never entered a London club or drawing-room. The whole authority of the University was, in fact, exerted to keep the railway at a distance, and the Oxford branch was not opened before June 12, 1844. Though Oxford was much frequented by visitors in the summer term, not without injury to continuity of study, its atmosphere was still essentially academical, if not scholastic, and the

conversation as well as the social tone of its residents, both graduates and undergraduates, differed sensibly from those of their contemporaries in the metropolis and elsewhere. Oxford Dons had not altogether lost the traditional characteristics of their class; the model Oxford first-class man, assuming to have mastered classical literature, Greek philosophy, and ancient history, which he regarded as the staple of human knowledge, was accused of exhibiting the pride of intellect in its purest form; young priests of the new 'Oxford School' assuredly carried sacerdotal presumption to its logical extreme; and the chartered libertinism of 'fast men' in one or two Oxford colleges sometimes brought scandal on the whole University. No doubt the habits of Oxford 'collegians' fifty years ago would have compared favourably with those of their grandfathers, still more with those of the squalid but industrious students who begged their way to the University in the Middle Ages. Nevertheless, hard drinking and its concomitant vices were by no means obsolete, even in common-rooms, and though undergraduates cultivated the manners of young gentlemen, their ordinary moral code was probably but little above that which then prevailed in the army and the navy. Side by side, however, with the self-indulgent circles of undergraduate society, there was a limited set deeply impressed by the ascetic teaching of the Neo-Catholic school, whose practical influence on its disciples resembled in many respects that of the Evangelical school at Cambridge, however different in its theological basis. The prevailing narrowness and intensity of theological opinion was perhaps favoured by the narrowness of the University curriculum. Classics and mathematics retained a monopoly of studies; few wasted time on modern languages, history, or natural science; while music and art in all its aspects were regarded by most as feminine accomplishments. Since professors were very scarce, and tutors (being fellows) were unable to marry, family life and social intercourse with ladies had no place in an University career. The members of each college associated comparatively little with 'out-college men,' in the absence of clubs, debating societies, and other bonds of non-collegiate union. Rowing and cricket were vigorously cultivated by young men from the great public schools, and hunting was carried on, especially by noblemen and gentlemen-commoners, with a lordly disregard of economy; but for the mass of students there was no great choice of games and recreations, at least in the winter. Those who did not aspire to Honours, being the great majority, had no occasion to read hard, and often lived for

amusement only, since there was an interval of full two years between Responsions and 'the Schools,' unbroken by any examination. Those who read for Honours generally read with a steadiness and singleness of purpose incompatible with much attention to any other pursuit. Various as these elements were, they were readily assimilated by the University, which seldom failed to leave a distinctive stamp upon one who had passed through it, and Oxford culture retained a peculiar flavour of its own.

Influence of recent changes

In the course of the last fifty years, a profound though almost unseen change has gradually passed over the face of the old University. The introduction of representative government into the academical constitution has not only cleared away many abuses, but has at once popularised and centralised University administration. The recognition of Unattached Students has broken down the monopoly of colleges; the abolition of close fellowships has infused new blood and new ideas into the more backward collegiate bodies; the spontaneous development of numerous clubs and associations—athletic, literary, or political—has created many new ties among undergraduates, and weakened the old exclusive spirit of college partisanship. The 'Combined Lecture System,' under which the inmates of one college may receive instruction in another, has also favoured a division of labour among tutors which is directly conducive to specialism in teaching. The great extension of the professoriate, including the new order of University Readers, and still more the liberal encouragement of new studies, has infinitely expanded the intellectual interests both of teachers and of students; the admission of Nonconformists and the progress of free thought have powerfully modified theological bigotry; the multiplication of feminine influences has undermined the ideal of semi-monastic seclusion, and greatly increased the innocent æsthetic distractions which are the most formidable rivals of the austerer Muses. The gulf between Oxford society and the great world outside, never very impassable, has been effectually bridged over in every direction. A very large proportion of professors and college tutors have travelled widely; many are well known in London as contributors to scientific and literary periodicals or otherwise; while Oxford itself is constantly thronged with visitors from the metropolis. In ceasing to be clerical and aristocratic, the University has become far more cosmopolitan; all religions are there mingled harmoniously, nor is it uncommon to meet in

the streets young men of Oriental race and complexion wearing academical costume.

Present character of
the University

In the meantime, a marked and widespread reformation has been wrought in the morals of the University, and notwithstanding the influx of a large plebeian element, the manners of undergraduates have become gentler as their tastes have become more refined. The ostentation of wealth has been visibly diminished, and, notwithstanding the increase of amusements, there is probably more of plain living and high thinking in modern Oxford than in the Oxford of Charles II. or Elizabeth. The University, it is true, has yet to harmonise many conflicting elements, which mar the symmetry of its constitution; but it is becoming more and more identified with the highest intellectual aspirations of the nation as a whole. In ceasing to be the intellectual stronghold of the mediæval Church, or the instrument of Tudor statecraft, or the chosen training-school for the Anglican clergy, it may have lost something of its ancient supremacy, but it has asserted its national character; and it has perhaps never exercised a more widespread control over the national mind than it possesses in these latter years of the nineteenth century.

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